



CIVILIAN COMPLAINT REVIEW BOARD

ERIC L. ADAMS, Mayor

ARVA RICE, Interim Chair

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Semi-Annual Report

2024

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MISSION

The New York City Civilian Complaint Review Board (CCRB, the Agency, or the Board) is an independent agency that is empowered to receive, investigate, prosecute, mediate, hear, make findings, and recommend action on civilian complaints against members of the New York City Police Department (NYPD or the Department) that allege the use of excessive or unnecessary Force, Abuse of Authority, including biased-based policing and racial profiling, Discourtesy, and the use of Offensive Language. The CCRB is also authorized to investigate, hear, make findings, and recommend action on the Untruthfulness of an official statement made by a subject officer during the course of a CCRB investigation (FADO&U). The Agency's staff, composed entirely of civilian employees, conduct investigations, mediations, and prosecutions in an impartial manner.

IN FULFILLMENT OF ITS MISSION, THE BOARD PLEDGES TO:

- encourage members of the community to file complaints when they believe they have been victims of police misconduct;
- respect the rights of civilians and officers;
- encourage all parties involved in a complaint to come forward and present evidence;
- expeditiously investigate each allegation thoroughly and impartially;
- make fair and objective determinations on the merits of each case;
- offer civilians and officers the opportunity to mediate their complaints, when appropriate, in order to promote understanding between officers and the communities they serve;
- recommend disciplinary actions that are measured and appropriate, if and when the investigative findings substantiate that misconduct occurred;
- engage in outreach in order to educate the public about the Agency and respond to community concerns;
- report relevant issues and policy matters to the Police Commissioner and the public; and
- advocate for policy changes related to police oversight, transparency, and accountability that will strengthen public trust and improve police-community relations.



Dear Fellow New Yorkers,

I am pleased to release the NYC Civilian Complaint Review Board's (CCRB) 2024 Semi-Annual Report.

Effective August 15, 2024, I am resigning from the CCRB, both as a Board member and as Interim Chair.

Before joining the CCRB, I worked with then-Police Commissioner Dermot Shea on an advisory board to re-imagine policing and focus on ensuring that public safety be fair and just for all New Yorkers. It was during this time that I became even more familiar with the system of civilian oversight in New York City. As a result of this, I was both honored and excited when I was appointed to the Board and given the opportunity to continue this work in such a meaningful way.

Civilian police oversight in New York City is crucial work. I have endeavored to address every issue brought before me with a fair and balanced approach, whether it met with criticism or applause.

I am proud of the CCRB's accomplishments during my tenure, including:

- Reduced investigation times and the elimination of the open investigations backlog that resulted from the COVID-19 crisis.
- Increased transparency, with redacted case closing reports now publicly available.
- Publication of CCRB's *2020 NYC Protests Report*, a detailed analysis of NYPD's response to the 2020 summer protests.
- Creation of CCRB's Racial Profiling and Bias-Based Policing Unit, which closed forty-one (41) substantiated allegations of bias-based policing in the first half of 2024.

Meanwhile, the work of the CCRB continues. In April 2024, the CCRB received the Police Commissioner's final decision in the case of Kawaski Trawick, the young man who was killed in his home in 2019 by two NYPD officers. It took over eighteen (18) months for the Department to fulfill the CCRB's request for BWC footage, making it impossible for the CCRB to complete its investigation within the statute of limitations period, and thereby imposing the additional burden on the CCRB's Administrative Prosecution Unit (APU) of proving that the officers' actions constituted criminal conduct. The Department determined that the CCRB did not meet its threshold at trial and ultimately dismissed all charges on grounds that the statute of limitations had expired. This outcome was an unacceptable circumvention of the disciplinary system. To help avoid such outcomes in the future, the CCRB and the NYPD signed a Memorandum of Understanding agreeing that the NYPD will share evidence within ninety (90) days of a CCRB request, whether or not there is an ongoing internal NYPD investigation.

Thank you again for the opportunity to serve this great City alongside my talented and hardworking fellow Board members and the CCRB staff. While I will no longer serve on the CCRB, my commitment to holding police officers accountable for misconduct remains unchanged.

Sincerely,

A handwritten signature in black ink, appearing to read 'Arva Rice'.

Arva Rice

Complaints Received

In the first half of 2024, the CCRB received 2,855 complaints within its jurisdiction – more than in the first six months of any year since 2012. This follows the increase in complaints seen in 2023, when the CCRB received 2,772 complaints over the first six months – which was also a ten-year high.

OMB PEG Directive Closures

On September 9, 2023, the Office of Management and Budget (OMB) announced citywide budget cuts as part of its Program to Eliminate the Gap (PEG) initiative, depriving the CCRB of the resources needed to fully investigate all the complaints it receives within its jurisdiction. As a result – effective January 1, 2024 – CCRB suspended the following types of investigation:

- Failure to provide officers' business cards pursuant to the Right to Know Act (RTKA) with no other allegations;
- Refusal to provide name or shield number with no other allegations;
- Discourteous words or actions with no other allegations;
- Threats with no action with no other allegations;
- Refusal to process a civilian complaint with no other allegations;
- Property seizures with no other allegations;
- Forcible removal to hospital with no other allegations;
- Untruthful statements with no other allegations;
- Any complaint that has only the above referenced allegations.

In the first half of 2024, the CCRB closed 616 complaints that fell into one of the above-listed categories. These complaints were not investigated and were closed with the disposition “OMB PEG Directive Closure.”

New Evidence Sharing Agreement with NYPD

In December 2023, the CCRB and the NYPD signed a Memorandum of Understanding (MOU)¹ ensuring that the Department will share evidence with the CCRB within ninety (90) days of a request regardless of whether there is an ongoing NYPD investigation of the incident. This MOU resulted from the CCRB’s investigation into the death of Kawaski Trawick, who was killed in his home by NYPD officers in April 2019. The NYPD refused to provide body-worn camera footage related to the Trawick case for more than one and a half years, citing an ongoing investigation by the Department’s Force Investigation Division (FID). In the end, FID dismissed its case against the officers. When the CCRB finally received the evidence to fully investigate the matter, it substantiated the allegations against the officers and brought the case to trial. The delays in the investigation resulted in the CCRB using an exception to the statute of limitations in order to bring charges against both officers. Using this exception created additional evidentiary burdens for the prosecution. While the CCRB produced enough evidence to meet the additional burdens, the Department determined that the CCRB did not meet that threshold and ultimately dismissed the charges against the officers as being time barred.

Racial Profiling & Bias Based Policing Unit

In 2021, the New York City Council passed legislation clarifying that the CCRB’s jurisdiction included investigations of racial profiling and bias-based policing. The CCRB’s Racial Profiling and Bias-Based Policing Unit (RPBP) substantiated allegations of bias-based policing against thirty-nine (39) officers in the first half of 2024. Thus far, one of the officers has resigned and the Police Commissioner has retained

¹ Read the evidence sharing MOU here:

https://www.nyc.gov/assets/ccrb/downloads/pdf/about_pdf/board/2023/MOU/NYPD-FID-CCRB-MOU.pdf

the cases against two officers; the remaining cases are pending with the CCRB's Administrative Prosecution Unit (APU).

Middle East Protests

In the first half of 2024, the CCRB received thirty-five (35) complaints related to Middle East protests, containing allegations against forty-six (46) identified subject officers. Six of these complaints were specifically related to on-campus protests. The Agency will continue to monitor these cases as the investigations progress.

Body-Worn Cameras Assigned to Warrant Squads

While most NYPD officers began carrying body-worn cameras in 2019, warrant squad officers were excluded from the initial rollout. This absence of body-worn cameras has impacted many of the CCRB's warrant squad investigations. For example, in 2023, 47% of the allegations against warrant squad officers were closed as "Unable to Determine." By comparison only 15% of the allegations against identified officers, taken as a whole, were closed as "Unable to Determine." As of 2024, warrant squad officers now carry body-worn cameras. The CCRB expects to see a significant fall in the percentage of warrant squad allegations closed as "Unable to Determine."

NYPD's Expanding Use of "Short SOL" Decisions

Under New York law, disciplinary proceedings against a police officer generally must be commenced within eighteen months of the date of the alleged misconduct. This is known as the statute of limitations (SOL) period, after which disciplinary proceedings against an officer cannot be pursued.

In many cases, when the CCRB substantiates an allegation of misconduct against an officer, the NYPD refuses to pursue discipline because it believes that the Board's decision was made too close to the expiration of the SOL period. In the first half of 2024, the NYPD aggressively expanded its use of these "Short SOL" decisions, refusing to impose discipline on 279 officers whose substantiated allegations were closed by the Board sixty (60) or more days prior to the expiration of the SOL.

INTRODUCTION: THE BOARD AND AGENCY OPERATIONS

The Civilian Complaint Review Board (CCRB, the Agency, or the Board) is an agency of the City of New York. It became independent from the New York City Police Department (NYPD or the Department) and was established in its current all-civilian form in 1993.

Board members review and make findings on misconduct complaints once they have been fully investigated. The Board consists of fifteen (15) members: the City Council appoints five Board members (one from each borough); the Police Commissioner designates three; the Public Advocate appoints one; and the Mayor appoints five. The Chair of the Board is jointly appointed by the Mayor and Speaker of the City Council.²

Under New York City Charter § 440, the Board must reflect the diversity of the City's residents and all members must live in New York City. No member of the Board may have a law enforcement background, except those designated by the Police Commissioner, who must have prior experience as law enforcement professionals. No Board member may be a public employee or serve in public office. Board members serve three-year terms, which can be renewed. They receive compensation on a per-session basis, although some Board members choose to serve pro bono.

From 1993 to 2013, all cases in which the Board substantiated an allegation of misconduct against an officer were referred to the Police Commissioner with a disciplinary recommendation. Pursuant to a Memorandum of Understanding between the CCRB and the NYPD³ (effective April 11, 2013), a team of CCRB attorneys from the Agency's Administrative Prosecution Unit (APU) handles most of the cases in which the Board recommends that Charges and Specifications (the most severe form of discipline) be brought against an officer. When the Board recommends discipline other than Charges and Specifications (Command Discipline B, Command Discipline A, or Formalized Training), the case is still referred directly to the Police Commissioner.

² New York City Charter § 440(b)1.

³ https://www1.nyc.gov/assets/ccrb/downloads/pdf/about_pdf/apu_mou.pdf

SECTION 1: COMPLAINT ACTIVITY

CCRB COMPLAINTS RECEIVED

For most New Yorkers, contact with the CCRB begins with filing a complaint alleging police misconduct. This section covers the number of complaints received by the Agency and their characteristics.

All complaints received are entered into the CCRB's Complaint Tracking System, but only those complaints that fall within the Agency's Force, Abuse of Authority, Discourtesy, Offensive Language, and Untruthful Statements⁴ (FADO&U) jurisdiction are investigated.

Figure 01: Complaints Received within CCRB Jurisdiction

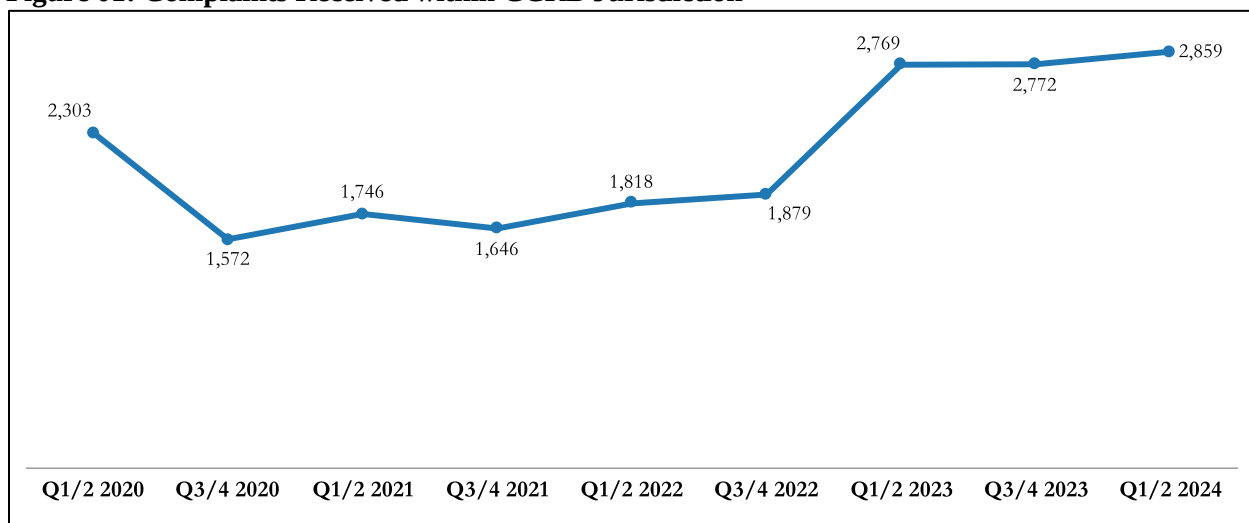
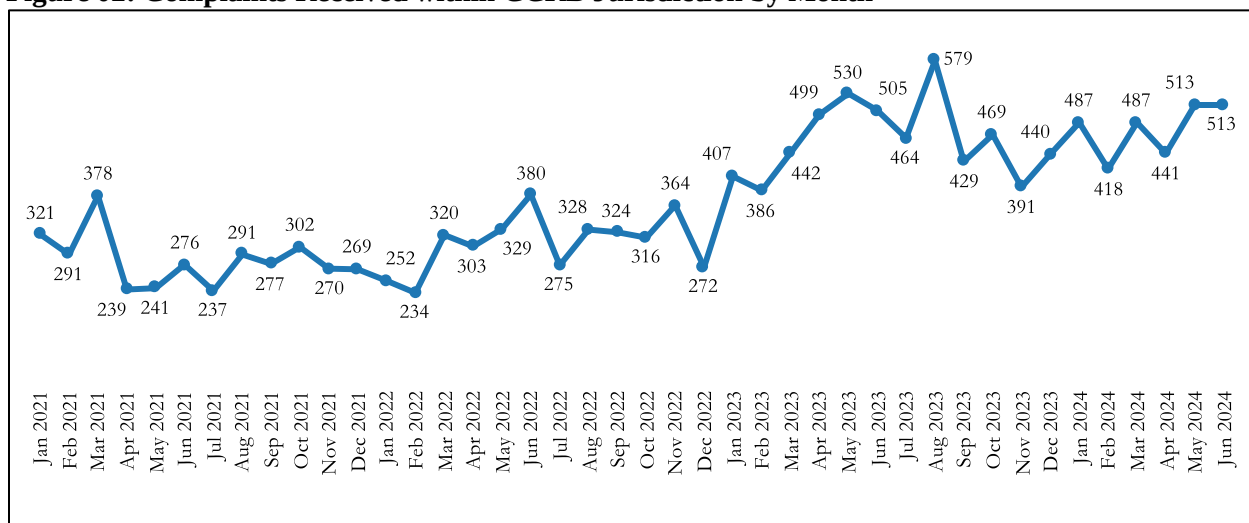


Figure 02: Complaints Received within CCRB Jurisdiction by Month



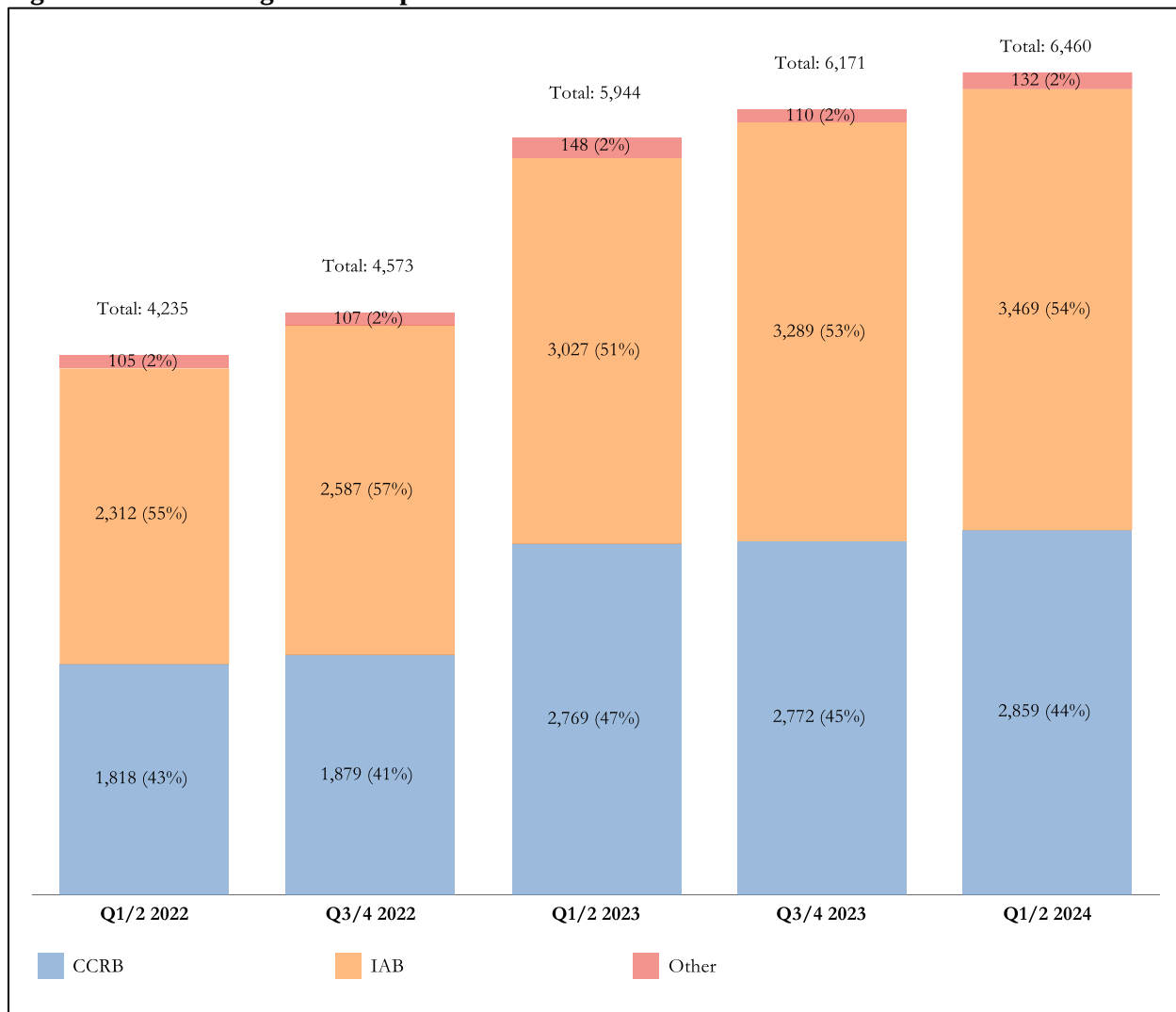
⁴ Pursuant to a ballot measure revising the New York City Charter, which went into effect on March 31, 2020, the CCRB has jurisdiction to investigate the truthfulness of official statements made by subject officers during the course of CCRB investigations.

TOTAL COMPLAINT FILINGS AND REFERRALS

The CCRB receives a number of complaints that fall outside of the Agency's jurisdiction. These complaints are referred to the governmental entities with the jurisdiction to process them.

Examples of complaints that do not fall within the CCRB's jurisdiction include: (1) complaints against Traffic Enforcement Agents and School Safety Agents; (2) complaints against an NYPD officer involving a summons or arrest dispute that does not include a FADO allegation; (3) complaints against an NYPD officer involving corruption; and (4) complaints against individuals who are not members of the NYPD, such as law enforcement from other municipalities, state police, or members of federal law enforcement, like the Federal Bureau of Investigation (FBI).

Figure 03: Total Filings and Complaints Received⁵



⁵ In previous years, the CCRB distinguished between NYPD referrals made to the Office of the Chief of Department (OCD) and those made to the Internal Affairs Bureau (IAB). The Agency no longer makes this distinction because, in practice, IAB serves as the point of contact for all CCRB complainants following up on a complaint referred to the NYPD.

PLACE AND MODE OF FILING

The CCRB's Intake Unit receives and processes complaints filed directly with the CCRB. The Agency also receives referrals from IAB and other government offices.

The Agency is more likely to succeed in fully investigating complaints filed directly with the CCRB (see Fig. 25). When complaints are not filed directly with the CCRB, the Agency may have difficulty locating and making initial contact with an unidentified complainant/victim or a complainant/victim who has not been informed that the complaint was referred to the CCRB for investigation.

Figure 04: Complaints Received by Complaint Place

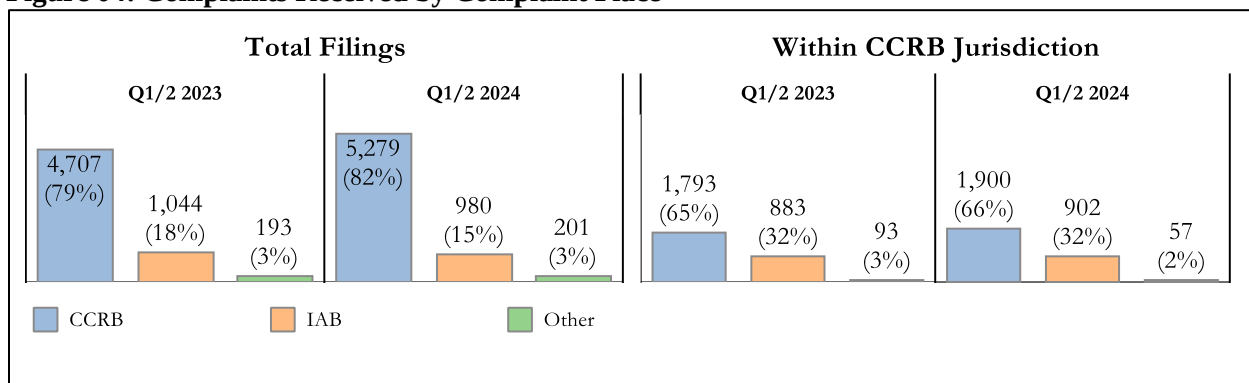


Figure 05: Complaints within CCRB Jurisdiction by Complaint Mode

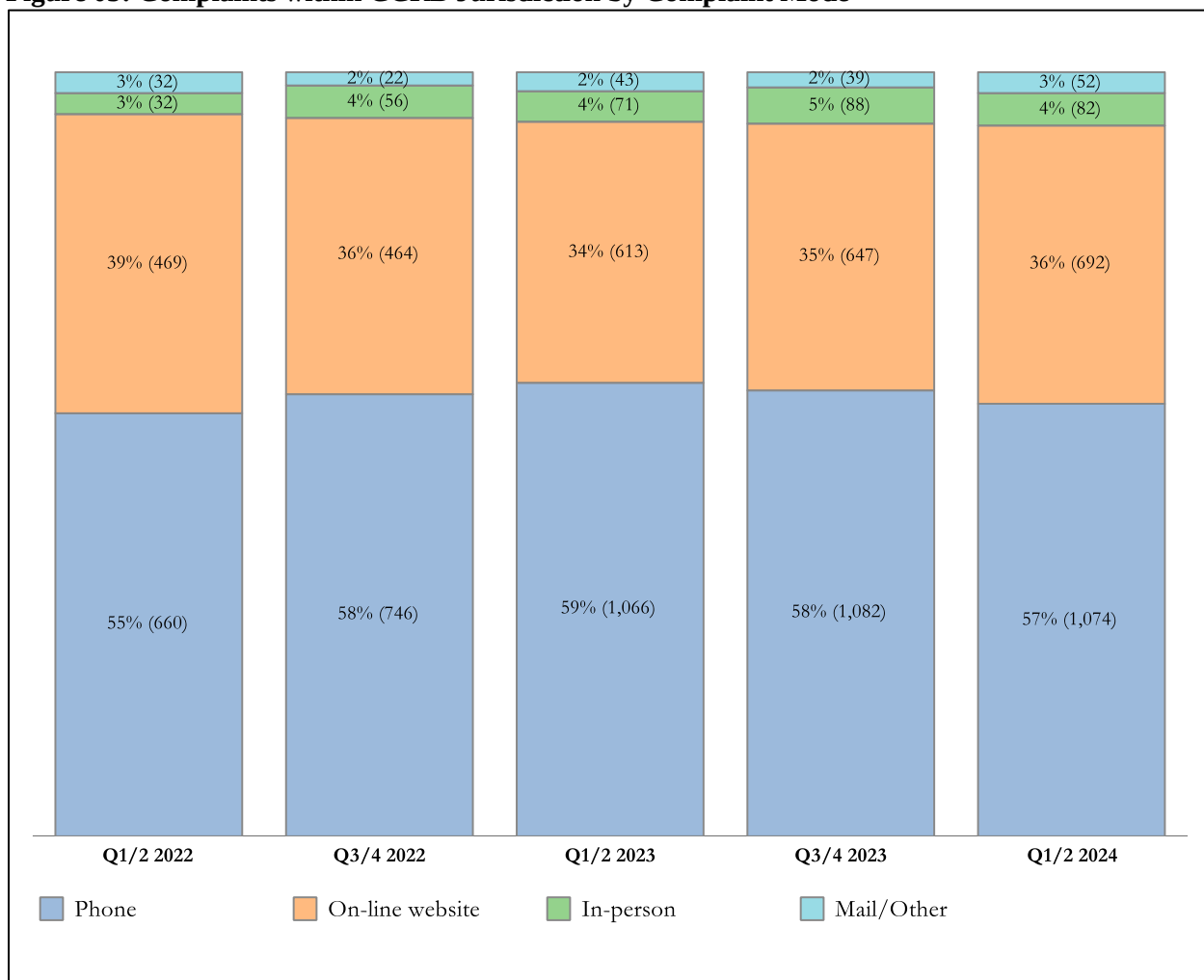


Figure 06: Complaints Received within CCRB Jurisdiction by Borough

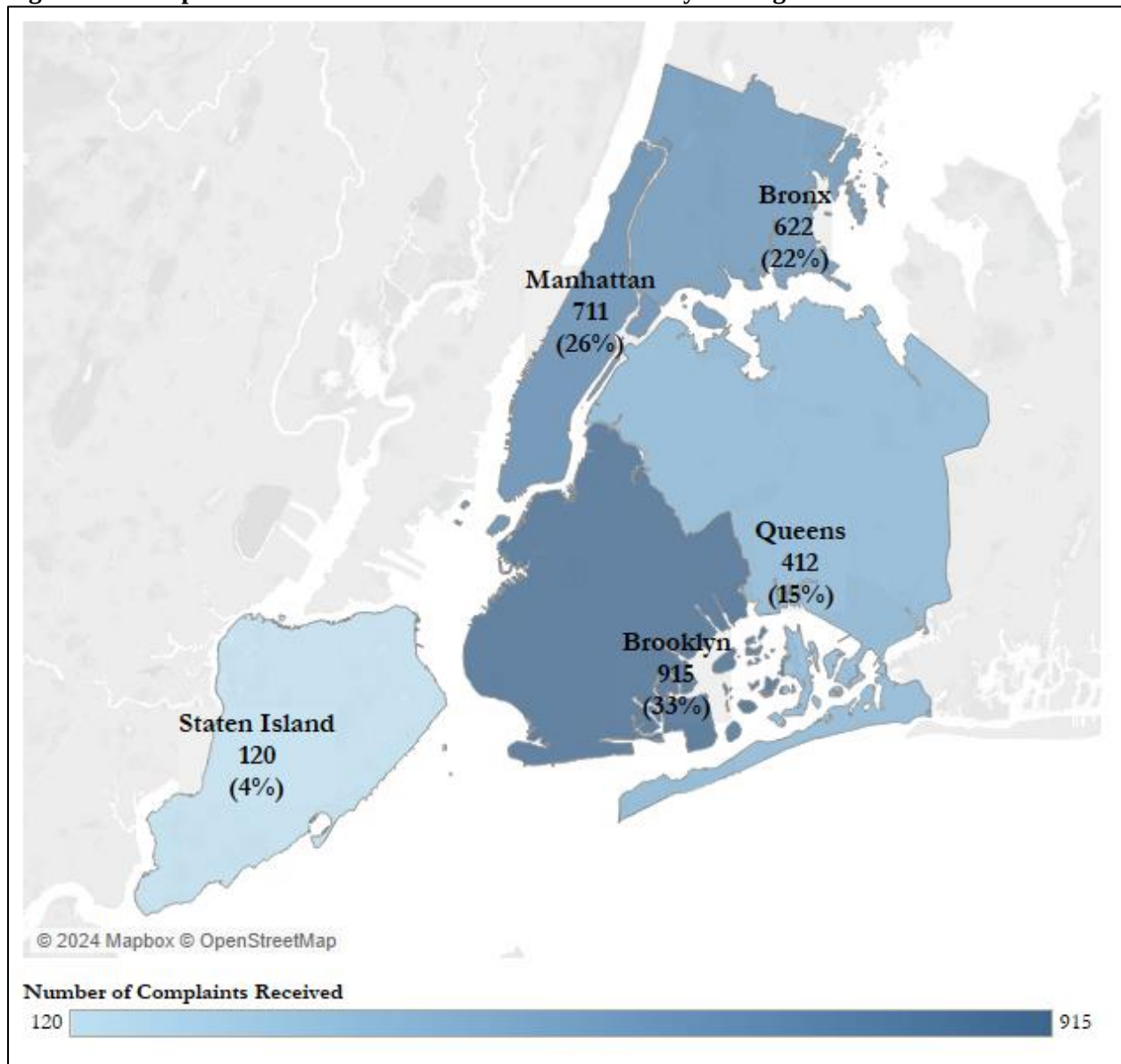


Figure 07: Complaints Received within CCRB Jurisdiction by Precinct

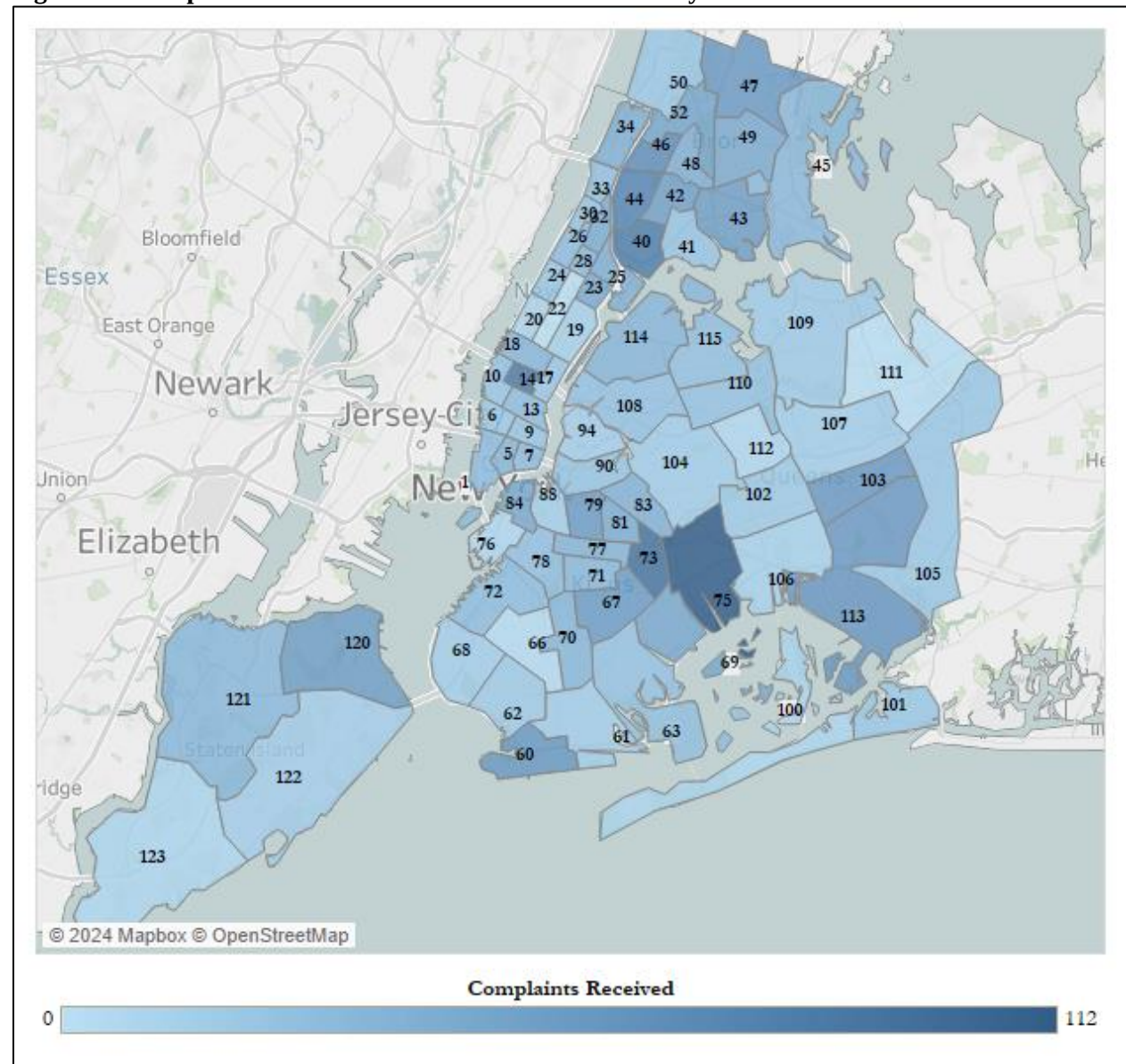


Figure 08: CCRB Complaints Received per Precinct of Occurrence

Precinct	Q1/2 2023	Q1/2 2024
	Complaint Count	Complaint Count
1	27	31
5	27	36
6	22	22
7	23	31
9	26	24
10	23	24
13	32	31
14	63	87
17	20	22
18	38	36
19	23	15
20	11	12
22	1	
23	38	45
24	29	23
25	37	41
26	19	31
28	49	33
30	17	24
32	45	44
33	45	28
34	36	41
40	95	83
41	39	25
42	53	54
43	51	55
44	91	76
45	21	33
46	48	68
47	58	58
48	58	42
49	36	46
50	17	22
52	58	49
60	50	61
61	19	19
62	17	20
63	23	27
66	7	7

Precinct	Q1/2 2023	Q1/2 2024
	Complaint Count	Complaint Count
67	67	57
68	15	18
69	45	48
70	43	36
71	18	35
72	28	31
73	78	93
75	99	112
76	16	10
77	30	38
78	12	28
79	52	57
81	35	44
83	42	40
84	40	47
88	25	18
90	36	25
94	12	17
100	6	12
101	21	22
102	31	20
103	52	59
104	22	19
105	46	23
106	12	15
107	28	18
108	19	27
109	24	20
110	32	27
111	7	3
112	25	10
113	47	59
114	60	37
115	17	28
120	47	56
121	22	34
122	23	17
123	11	11

CHARACTERISTICS OF ENCOUNTERS RESULTING IN A COMPLAINT

Figure 09: Top Reasons for Initial Contact

	Q1/2 2023		Q1/2 2024	
	Count	% Total	Count	% Total
PD suspected C/V of violation/crime - auto	150	5%	215	8%
PD suspected C/V of violation/crime - street	288	10%	325	11%
Report of other crime	196	7%	168	6%
C/V requested investigation of crime	165	6%	160	6%
Report-dispute	124	4%	151	5%
PD suspected C/V of violation/crime - subway	137	5%	153	5%
Other violation of VTL	141	5%	140	5%
Moving violation	143	5%	113	4%
Report-domestic dispute	100	4%	108	4%
CV already in custody	96	3%	88	3%
C/V intervened on behalf of/observed encounter w/3rd party	91	3%	103	4%
EDP aided case	73	3%	75	3%
C/V telephoned PCT	91	3%	61	2%
PD suspected C/V of violation/crime - bldg	61	2%	64	2%
Other specified categories combined	604	22%	600	21%
Not Specified	309	11%	335	12%
Total	2,769	100%	2,859	100%

Figure 10: Outcome of Encounters Resulting in CCRB Complaints

	Q1/2 2023		Q1/2 2024	
	Count	% Total	Count	% Total
No arrest made or summons issued	1,521	55%	1,528	53%
Arrest - other violation/crime	693	25%	741	26%
Summons - other violation/crime	130	5%	168	6%
Arrest - resisting arrest	79	3%	95	3%
Moving violation summons issued	86	3%	55	2%
Other VTL violation summons issued	69	2%	55	2%
Arrest - assault (against a PO)	43	2%	41	1%
Summons - disorderly conduct	34	1%	38	1%
Arrest - OGA	30	1%	46	2%
Parking summons issued	30	1%	24	1%
Arrest - disorderly conduct	7	0%	11	0%
Juvenile Report	5	0%	8	0%
Arrest - harrassment (against a PO)	0	0%	1	0%
Summons - OGA	1	0%	1	0%
Summons - harrassment (against a PO)	0	0%	0	0%
N/A	41	1%	47	2%
Total	2,769	100%	2,859	100%

NUMBERS AND TYPES OF ALLEGATIONS CLOSED AND RECEIVED

An individual complaint may contain multiple allegations against one or more members of service (MOS). While each complaint is associated with a distinct report date, the allegations associated with a complaint are not static and can change over time. CCRB investigators may add or remove allegations associated with a complaint as an investigation proceeds.

Figure 11: Types of Allegations Closed

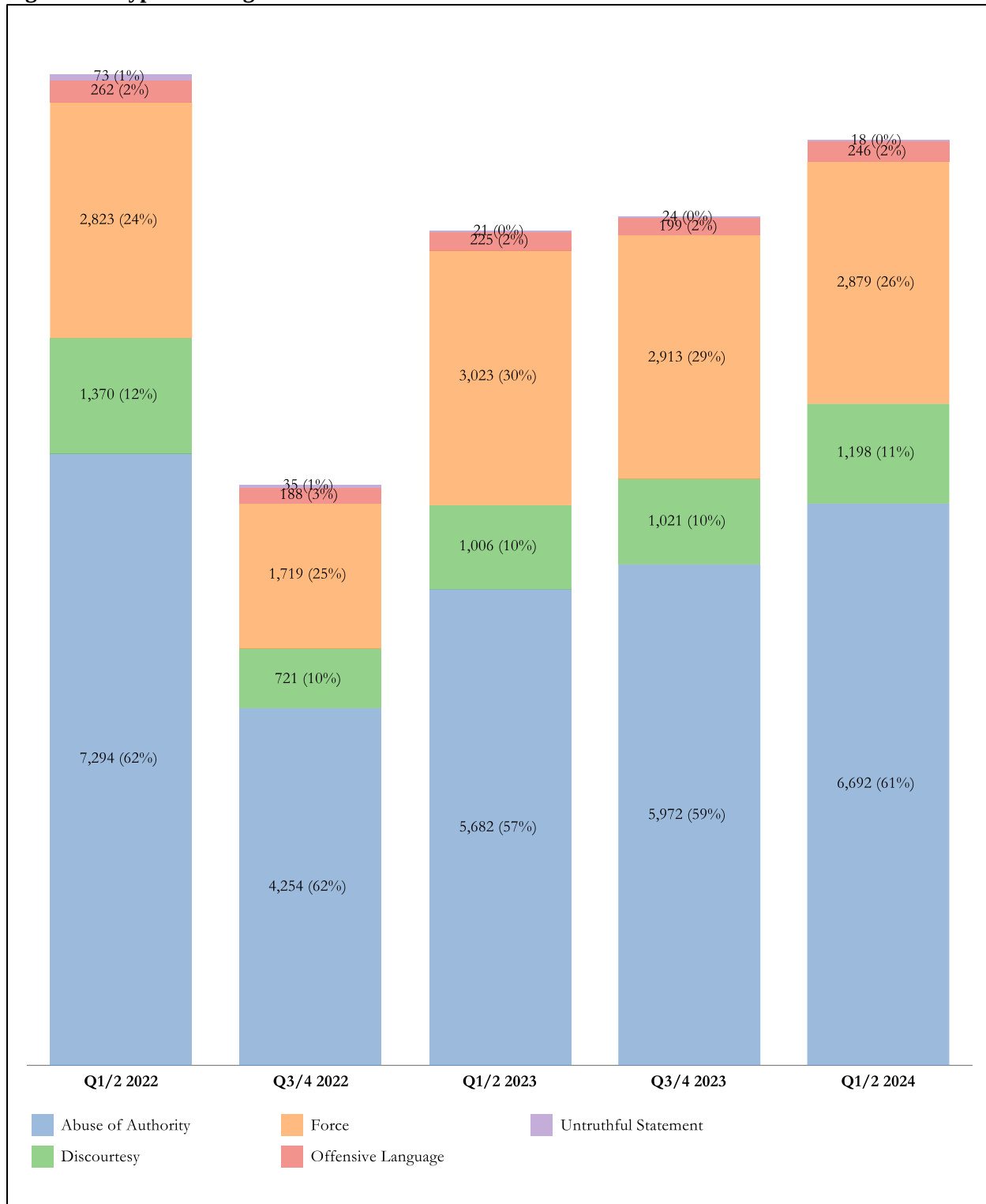


Figure 12: FADO&U Allegations in Complaints Received by Type

Force (F) Allegations	Q1/2 2023		Q1/2 2024	
	Count	% of Total	Count	% of Total
Physical force	2,407	74%	2,588	74%
Hit against inanimate object	163	5%	244	7%
Restricted Breathing	125	4%	118	3%
Chokehold	112	3%	99	3%
Gun Pointed	162	5%	109	3%
Nonlethal restraining device	93	3%	94	3%
Other	55	2%	55	2%
Handcuffs too tight	38	1%	47	1%
Vehicle	48	1%	49	1%
Pepper spray	21	1%	21	1%
Nightstick as club (incl asp & ba.)	12	0%	21	1%
Gun fired	19	1%	14	0%
Other blunt instrument as a club	4	0%	13	0%
Gun as club	4	0%	3	0%
Less Than Lethal Force/Device	2	0%	1	0%
Radio as club	2	0%	2	0%
Animal	1	0%	0	0%
Flashlight as club	1	0%	0	0%
Police shield	1	0%	1	0%

Discourtesy (D) Allegations	Q1/2 2023		Q1/2 2024	
	Count	% of Total	Count	% of Total
Word	1,038	78%	752	75%
Action	256	19%	229	23%
Gesture	12	1%	12	1%
Other	14	1%	7	1%
Demeanor/tone	8	1%	0	0%

Offensive Language (O) Allegations	Q1/2 2023		Q1/2 2024	
	Count	% of Total	Count	% of Total
Gender	95	33%	79	33%
Race	56	19%	61	26%
Other	46	16%	35	15%
Disability	40	14%	27	11%
Sexual orientation	30	10%	21	9%
Ethnicity	14	5%	6	3%
Religion	8	3%	7	3%
Gender Identity	0	0%	0	0%

Untruthful Statement (U) Allegations	Q1/2 2023		Q1/2 2024	
	Count	% of Total	Count	% of Total
False official statement	31	74%	6	55%
Misleading official statement	10	24%	4	36%
Inaccurate official statement	1	2%	1	9%
Impeding an investigation	0	0%	0	0%

Abuse of Authority (A) Allegations	Q1/2 2023		Q1/2 2024	
	Count	% of Total	Count	% of Total
Failure to provide RTKA card	641	8%	554	7%
Stop	551	7%	540	7%
Threat of arrest	525	6%	528	7%
Improper use of body-worn camera	603	7%	421	6%
Entry of Premises	505	6%	464	6%
Refusal to provide shield number	419	5%	417	6%
Refusal to provide name	439	5%	327	4%
Vehicle stop	302	4%	422	6%
Forceful Removal to Hospital	362	4%	318	4%
Search (of person)	331	4%	306	4%
Frisk	341	4%	262	4%
Threat of force (verbal or physical)	311	4%	286	4%
Vehicle search	281	3%	271	4%
Bias-Based Policing (Race)	319	4%	186	3%
Property damaged	229	3%	244	3%
Question	183	2%	210	3%
Search of Premises	214	3%	174	2%
Seizure of property	170	2%	205	3%
Refusal to obtain medical treatment	164	2%	177	2%
Refusal to process civilian complaint	190	2%	116	2%
Interference with recording	106	1%	92	1%
Other	79	1%	80	1%
Threat to damage/seize property	88	1%	62	1%
Threat re: removal to hospital	63	1%	68	1%
Gun Drawn	64	1%	59	1%
Threat of summons	57	1%	51	1%
Failure to Explain	47	1%	54	1%
Failed to Obtain Language Interpretation	43	1%	50	1%
Strip-searched	33	0%	60	1%
Unlawful Summons	50	1%	29	0%
Sexual Miscon (Inappropriate Touching)	44	1%	25	0%
Sex Miscon (Humiliation: fail to cover)	41	0%	26	0%
Obstructed Shield Number	32	0%	26	0%
Bias-Based Policing (National Origin)	25	0%	30	0%
Sex Miscon (Sexual Harassment, Verbal)	36	0%	19	0%
Unlawful Arrest	38	0%	15	0%
Photography/Videography	16	0%	34	0%
Sexual Miscon (Forcible Touching)	23	0%	25	0%
Search of recording device	25	0%	20	0%
Bias-Based Policing (Disability)	16	0%	15	0%
Retaliatory summons	17	0%	14	0%
Refusal to show search warrant	23	0%	6	0%
Bias-Based Policing (Gender)	24	0%	3	0%
Threat to notify ACS	14	0%	13	0%
Body Cavity Searches	12	0%	12	0%
False Official Statements	14	0%	8	0%
Sex Miscon (Sexual/Romantic Proposition)	13	0%	9	0%
Sex Miscon (Sexual Harassment, Gesture)	8	0%	12	0%
Refusal to show arrest warrant	14	0%	5	0%
Bias-Based Policing (Housing Status)	17	0%	1	0%
Electronic device information deletion	9	0%	9	0%
Sexual Miscon (Sexual Assault)	8	0%	10	0%
Bias-Based Policing (Age)	9	0%	7	0%
Bias-Based Policing (Religion)	9	0%	6	0%
Sexual Miscon (Rape)	7	0%	8	0%
Bias-Based Policing (Color)	8	0%	5	0%
Sexual Misconduct (Sexual Humiliation)	7	0%	4	0%
Bias-Based Policing (Sexual Orientation)	7	0%	2	0%
Questioned immigration status	5	0%	3	0%
Misleading Statements	4	0%	1	0%
Sexual Miscon (Penetrative Sex, Contact)	5	0%	0	0%
Bias-Based Policing (Immigration Status)	3	0%	1	0%
Retaliatory arrest	2	0%	1	0%
Sex Miscon (Sexually Motivated Frisk)	3	0%	0	0%
Enforcement Action	2	0%	0	0%
Improper dissemination of medical info	2	0%	0	0%
Inaccurate Statements	2	0%	0	0%
Sex Miscon (Sexually Motivated Search)	1	0%	0	0%
Obstructed Rank Designation	0	0%	0	0%
Sex Miscon (Sexually Motiv Photo/Video)	0	0%	0	0%
Sex Miscon (Sexually Motiv Strip-Search)	0	0%	0	0%
Sex Miscon (Sexually Motivated Question)	0	0%	0	0%
Sex Miscon (Sexually Motivated Stop)	0	0%	0	0%
Sexual Miscon (On-duty Sexual Activity)	0	0%	0	0%
Threat re: immigration status	0	0%	0	0%
Untruthful Statement	0	0%	0	0%

CASE ABSTRACTS: FADO&U EXAMPLES

CCRB allegations fall into five categories, generally simplified to the acronym FADO&U: Force, Abuse of Authority, Discourtesy, Offensive Language, and Untruthful Statements.

1. Force – when an officer uses excessive or inappropriate force against a victim. The use of force requires an analysis of the circumstances in which an officer used force in order to determine if it was appropriate and in line with the Patrol Guide. Some acts of force, such as chokeholds, are always considered dangerous and inappropriate. Examples of force are any form of physical force, including physical strikes, body tackles, punches, kicks, and the use of equipment such as chemical sprays, Tasers, shields, or batons.
2. Abuse of Authority – covers a broad category of acts where officers misuse their police powers. These can include racial profiling and biased-based policing, sexual misconduct, threats of improper actions, improper searches and seizures, refusal to process complaints, failure to abide by the Right to Know Act, and improper arrests.
3. Discourtesy – inappropriate behavioral or verbal conduct by an officer, including general profanity and the use of rude or obscene gestures.
4. Offensive language – an officer using slurs, making derogatory remarks or gestures relating to a protected category such as race, ethnicity, gender, religion, sexual orientation, or disability.
5. Untruthful statements – statements made by officers during the course of a CCRB investigation that are shown to be untruthful. A false official statement is knowingly false, rather than merely inaccurate. A misleading statement is when an officer intentionally tries to misdirect an investigator by omitting facts that they reasonably would be expected to know or remember. An inaccurate official statement is untruthful, even if the officer did not intend to deceive, where the officer makes material statements so incorrect that it constitutes gross negligence.

The following case abstracts are taken from complaints closed in 2024 and serve as examples of the types of misconduct allegations that fall under the CCRB's jurisdiction:

1. Force

An individual was on his way home from work and noticed a black sedan following him. The vehicle's windows were down and the individual saw two people in the vehicle. One of them asked him where he was going, and the individual said he had just finished a job. He kept walking. When the individual got to the end of the block, the car was still following him. The individual then noticed that the occupants were police officers. Police Officer Ednise Sanchez Ramirez asked the individual once again where he was going, the individual answered that he had finished work and he kept on walking. PO Sanchez Ramirez kept on asking the individual questions and began to drive against traffic to continue following the individual. PO Sanchez Ramirez asked the individual if he was going to stop walking and the individual said no. PO Sanchez Ramirez and her partner, Police Officer Darian Wesler exited the vehicle. The individual backed away and PO Sanchez Ramirez grabbed the individual by his jacket while PO Wesley grabbed the individual's lower arms and forced them behind his back, PO Sanchez Ramirez proceeded to frisk him. The incident was captured on three TARU cameras. They showed the individual walking at a normal speed and PO Sanchez Ramirez and PO Wesler's vehicle following him. The cameras captured PO Sanchez Ramirez grabbing the individual's jacket, PO Wesler pulling the individual's arms behind his back and PO Sanchez Ramirez frisking the individual. At their interviews, PO Sanchez Ramirez and PO Wesler stated that they asked had observed a bulge on the left side of the individual's body and assumed it was a gun. Neither officer provided any other information about whether they believed the individual to be currently

involved in criminal activity or provided any information that they had a reasonable suspicion that the individual was about to engage in criminal activity. The Board substantiated the Use of Force and Abuse of authority allegations.

2. Abuse of Authority

An individual stated that he and a coworker were standing on a subway platform when he saw three plain clothes officers walk past them. The officers walked to the end of the platform and walked back towards the individual. One of the officers, Police Officer Albert Chakhalyan, approached the individual and asked him to give him a knife from his pants pocket. The individual stated that he did not have a knife. PO Chakhalyan then placed his hand into the individual's pant pocket. The individual asked for PO Chakhalyan's name and shield number, which he provided. The incident was captured on MTA video footage. When interviewed, PO Chakhalyan could not articulate why he decided to stop and search the individual; he did not recall observing anything that made him suspect that the individual had a weapon in his pocket. The coworker stated that PO Chakhalyan gave no reason for stopping and searching the individual. The individual and his coworker stated that no consent was given for the search and PO Chakhalyan did not ask for consent to search the individual. The investigation found that PO Chakhalyan stopped and searched the individual without justification. The investigation also determined that PO Chakhalyan was required to activate his body-worn camera (BWC) to record the investigative encounter and to provide the individual with a business card at the conclusion of the encounter and he did neither. The Board substantiated the Abuse of Authority allegations.

3. Discourtesy

An individual was conducting a traffic court hearing for a summons. Both the motorist and Police Officer Lawrence Dunlay who issued the summons were present. Also present was an attorney representing the motorist. Both the motorist and PO Dunlay testified before the individual. The individual ruled in favor of the motorist and PO Dunlay said something to the effect of "no fucking way I would conduct a car stop by myself." The individual believed that the statement was made to the motorist because PO Dunlay had been looking at him when he made the statement. The investigation found that the motorist's attorney recalled PO Dunlay being upset at the decision and making a comment that caused a disturbance at the hearing. The motorist did not recall hearing anything PO Dunlay said at that time. PO Dunlay admitted that he said "what the fuck" when he heard the decision. PO Dunlay stated that he did not direct his statement to anyone present. The investigation found that the Patrol Guide states that the use of profanity is considered unprofessional and discourteous, and that PO Dunlay did in fact make the statement. The Board substantiated the Discourtesy allegation.

4. Offensive Language

An individual received text messages from her neighbor alleging that the individual's daughter had assaulted the neighbor's daughter at school. The individual went to her child's school and a fight ensued between the individual and her neighbor. The school called 911 and officers responded, including Police Officer Volkan Yalcin and Sergeant John Pedersen. The incident was captured on BWC, which showed the individual asking the responding officers for their names, and all the officers giving their names, except for PO Yalcin. Sgt. Pedersen was captured with a skull patch on his uniform. The investigation determined that because all of the other officers answered the individual's inquiry for their names, PO Yalcin also heard the request and chose not to provide his name, in violation of the Administrative Guide, which states that officers must

provide their name and shield numbers when requested by a civilian. The investigation also found that the skull patch on Sgt. Pedersen's uniform was a specific image commonly used by white supremacist groups. Sgt. Pedersen stated that the patch was a gift and the skull insignia did not have offensive connotations. The investigation found that the display of the patch on Sgt. Pedersen's uniform was discourteous and offensive to the individual. The Board substantiated the Abuse of Authority, Discourtesy, and Offensive Language allegations.

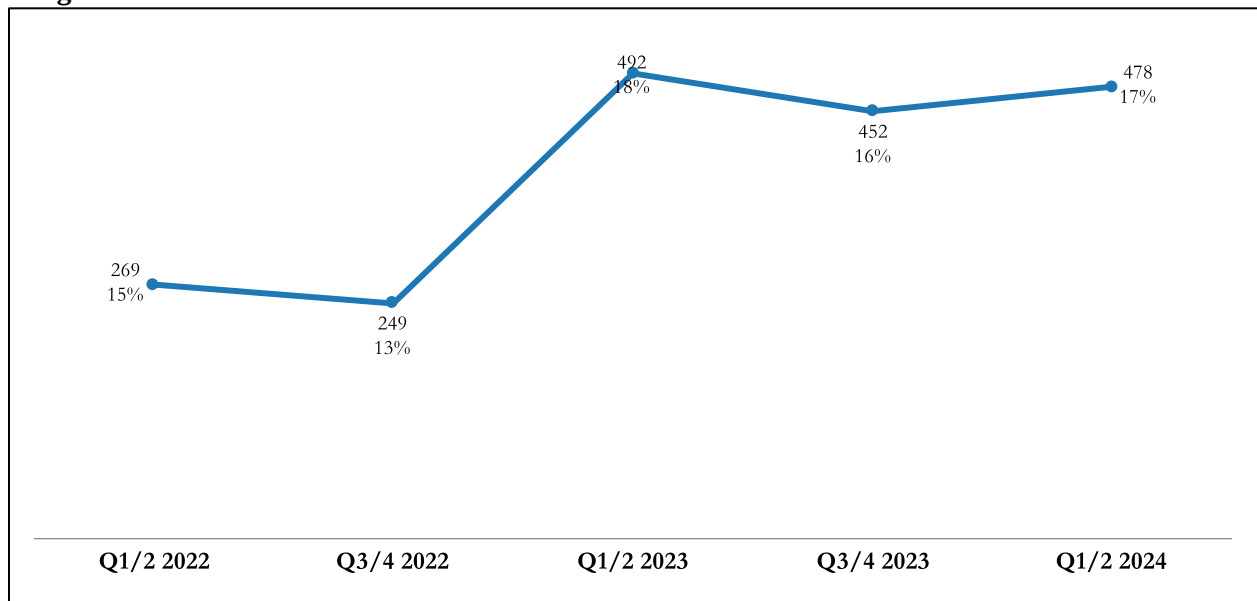
5. Untruthful Statement

An individual was pulled over while driving his vehicle. The individual had a sword in his vehicle, and Sergeant James Haley searched the glove box of the vehicle. The incident was captured on BWC, which showed Sgt. Haley entering the vehicle and examining the sword, which was a replica. Sgt. Haley then searched the center console and glove box of the vehicle. When Sgt. Haley was interviewed by the CCRB, he stated that he did not search the glove box; he did not search anywhere in the vehicle other than where the sword was located. When shown the BWC footage of the glove box being opened, Sgt. Haley maintained that the glove box opened without any action on his part. The investigation determined that Sgt. Haley searched the glove box, which was beyond the permissible search area given the circumstances of the vehicle stop, and that Sgt. Haley made a false statement to the CCRB regarding the search of the glove box. The Board substantiated the Abuse of Authority and Untruthful Statement allegations.

STOP, QUESTION, FRISK AND SEARCH OF PERSON ALLEGATIONS

In light of the longstanding public discussion surrounding “Stop & Frisk” policing, the CCRB keeps track of all complaints containing a stop, question, frisk, or search of person allegation.

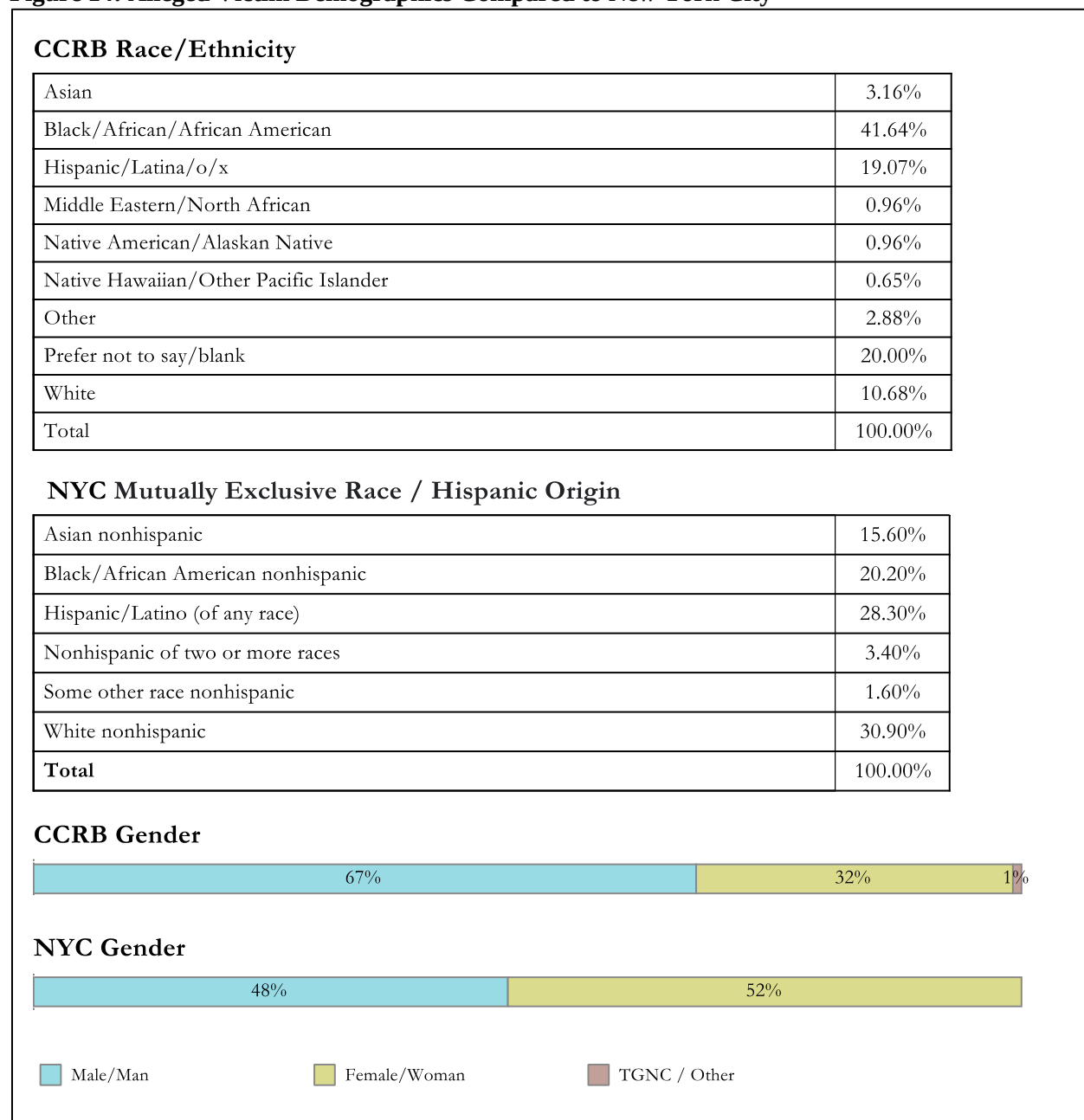
Figure 13: Complaints Received Containing a Stop, Question, Frisk, and Search of Person Allegation



CHARACTERISTICS OF ALLEGED VICTIMS

In September 2022, the CCRB updated the way it collects race/ethnicity information from civilians. Previously, civilians could only identify as one race/ethnicity category. The CCRB now asks civilians to select all racial/ethnic categories that apply. The race/ethnicity percentages for alleged victims shown below use the total number of race/ethnicity selections made as the denominator, rather than the total number of alleged victims.

Figure 14: Alleged Victim Demographics Compared to New York City^{6 7}



⁶ NYC Mutually Exclusive Race / Hispanic Origin: [https://www.census.gov/quickfacts/newyorkcitynewyork](https://popfactfinder.planning.nyc.gov/explorer/cities/ NYC: NYC Gender: <a href=).

⁷ “TGNC” is an acronym that stands for Gender Nonconforming. “Trans” includes individuals who identify as Transmen and Transwomen in CCRB records.

CHARACTERISTICS OF SUBJECT OFFICERS

Figure 15: Subject Officer Demographics Compared to NYPD Officer Population

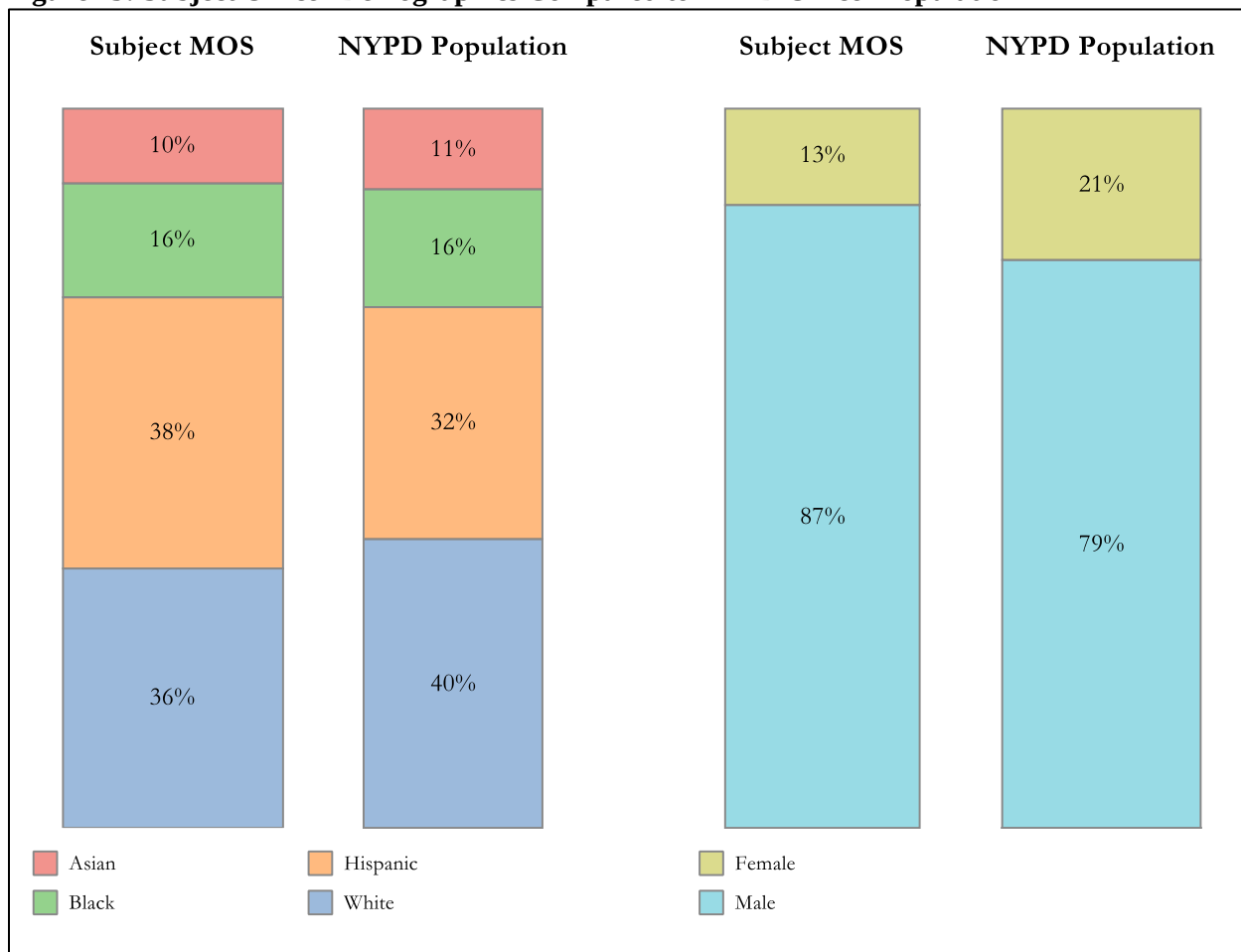


Figure 16: Rank and Tenure of Active MOS with Recently Closed Substantiated CCRB Complaints

Rank	Q1/2 2024	
	Count	Percent
Captain	3	0%
Detective	44	6%
Inspector/Deputy Inspector	2	0%
Lieutenant	35	5%
Police Officer	555	74%
Sergeant	112	15%

Tenure	Q1/2 2024	
	Count	Percent
0-3 Years	111	15%
4-5 Years	220	29%
6-10 Years	206	27%
11-15 Years	109	15%
16-20 Years	92	12%
21+ Years	13	2%

TOTAL COMPLAINTS AGAINST ACTIVE MEMBERS OF SERVICE (MOS)

The charts below depict how complaints are distributed among active members of service.

Figure 17: Active MOS with CCRB Complaints

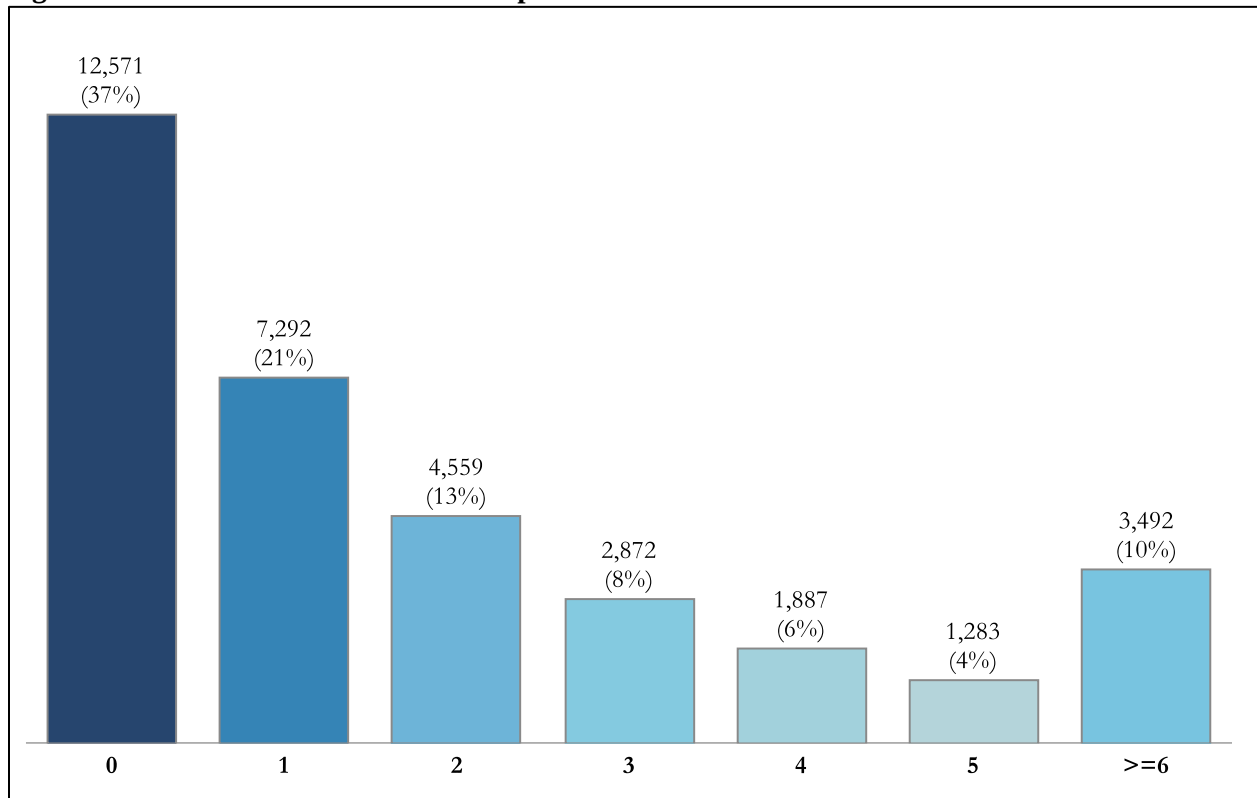
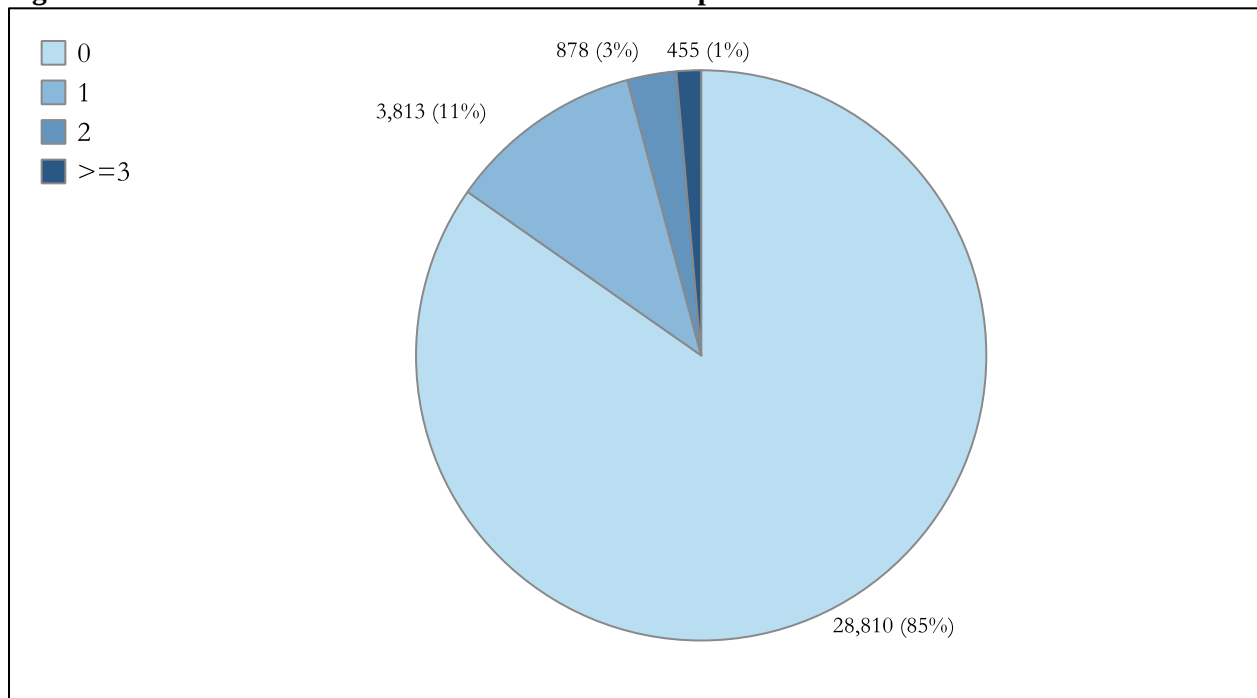


Figure 18: Active MOS with Substantiated CCRB Complaints



SECTION 2: INVESTIGATIONS

Investigating misconduct allegations is the core function of the CCRB. The Agency's primary goal is to complete full and fair investigations.

At the beginning of an investigation, an investigator interviews the complainant and any witnesses, collects evidence, and attempts to identify and interview the police officer(s) involved in the encounter. In many instances, the officers' identities are unknown at the outset of the investigation.

Once all the necessary interviews are conducted and the collected evidence is reviewed, the investigative team recommends a disposition to the Board for each allegation in the case. In most instances, a panel of three Board members, comprised of one mayoral appointee, one City Council appointee, and one Police Commissioner designee, reviews the case and votes on the allegations.⁸ In certain limited circumstances, the full Board will consider a case.⁹

In order to resolve investigations fairly and in accordance with local law, the CCRB generally needs the cooperation of at least one civilian complainant/alleged victim related to the case. The New York City Charter states that the CCRB's findings and recommendations cannot "be based solely upon an unsworn complaint or statement."¹⁰ When a complainant or alleged victim is available for an interview, the Agency deems the resulting investigation a "full investigation." If there is no complainant or alleged victim available for an interview and there is no additional evidence upon which the investigation can proceed, the investigation is closed as "Unable to Investigate." The Investigations Division makes every effort to fully investigate cases.

Every complaint passes through the Investigations Division, even if it is ultimately resolved through mediation. This section covers the performance of the Investigations Division and the outcomes of complaints received by the CCRB.

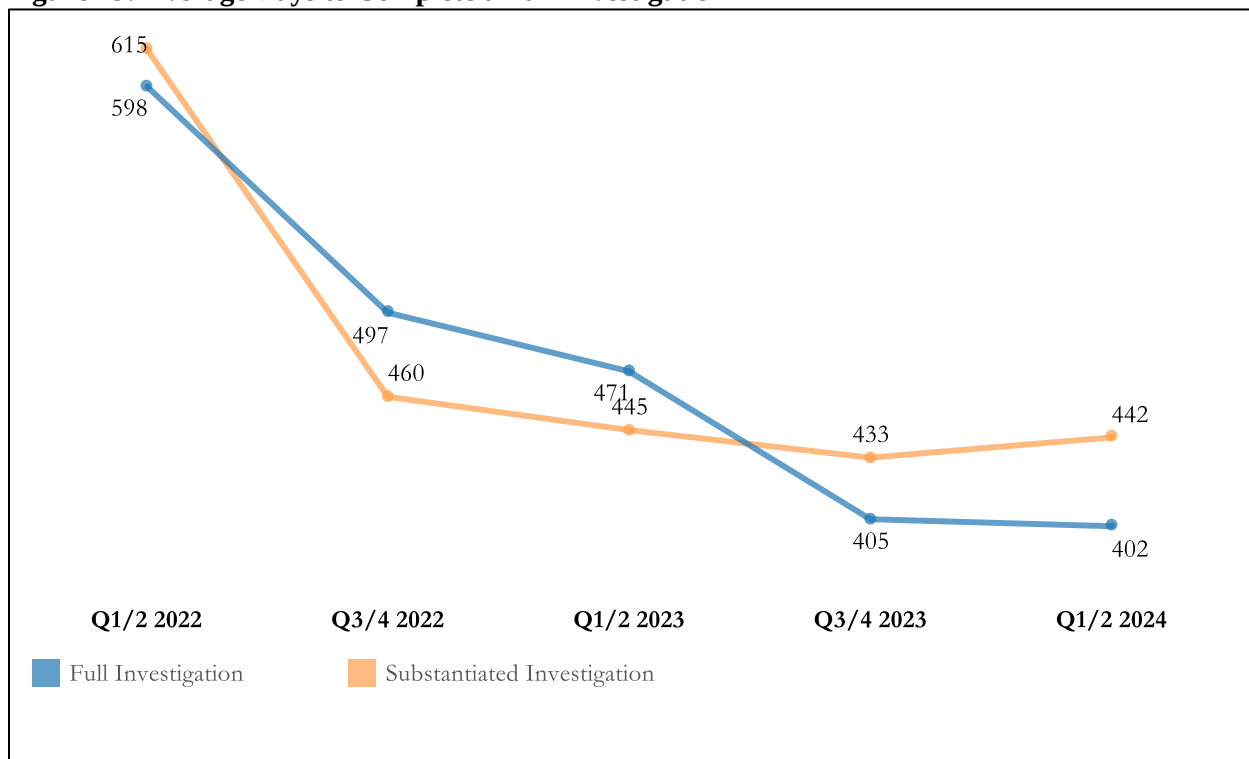
⁸ 38-A RCNY § 1-31.

⁹ 38-A RCNY § 1-32.

¹⁰ New York City Charter § 440(c)(1).

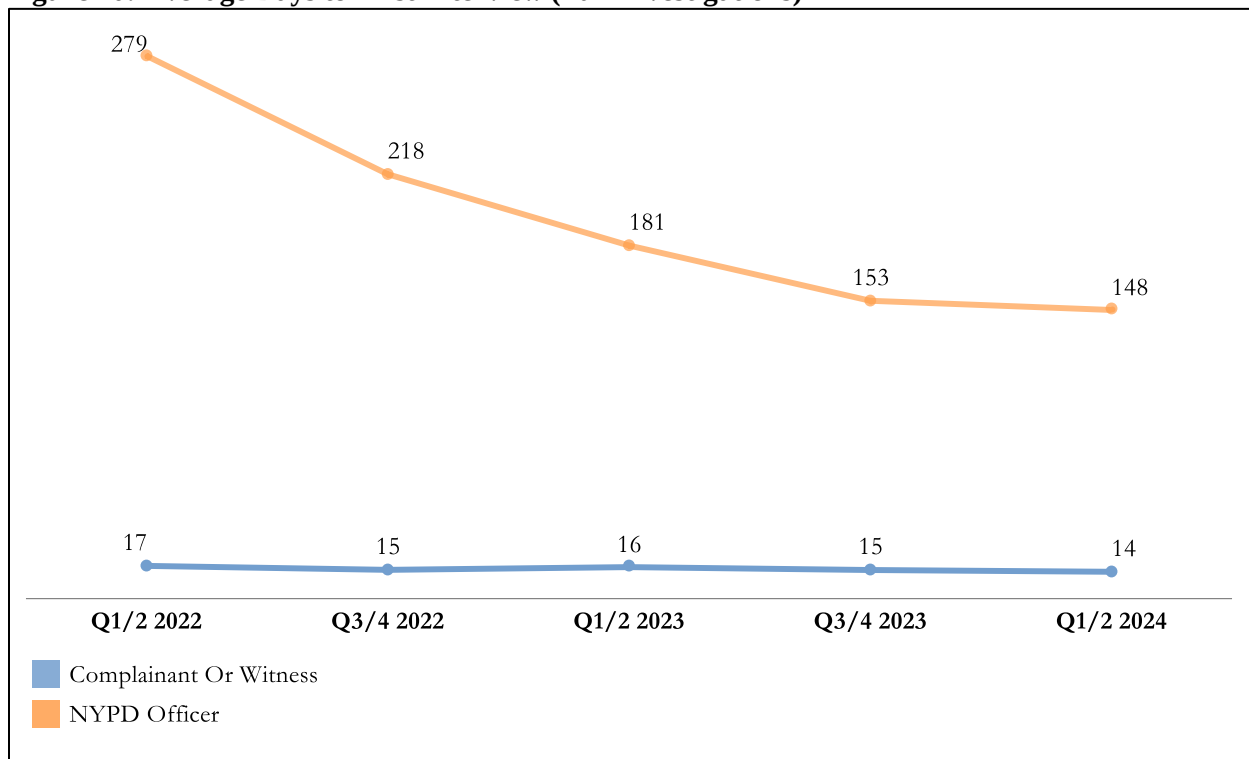
INVESTIGATIONS DIVISION BENCHMARKS

Figure 19: Average Days to Complete a Full Investigation



Average days exclude re-opened cases and cases that have been placed on hold by the District Attorney or the NYPD's Force Investigative Division.

Figure 20: Average Days to First Interview (Full Investigations)



Average days exclude re-opened cases and cases that have been placed on hold by the District Attorney or the NYPD's Force Investigative Division.

INFORMATION REQUESTS

All CCRB investigations involve requesting information from the NYPD. Investigators generally request two types of information from the Department: 1) body-worn camera footage; and 2) other police documents such as roll calls, memo books and officer photographs.

In 2022, the CCRB created a Document Specialists Unit to manage the Agency's information requests and lighten the burden on investigators. In the first half of 2024, the Document Specialists Unit processed and received 14,065 information requests from the NYPD.

The charts below show the NYPD's average response time in days to information requests made by the CCRB.

Figure 21: NYPD BWC Requests: Average Request Turnaround Time in Days

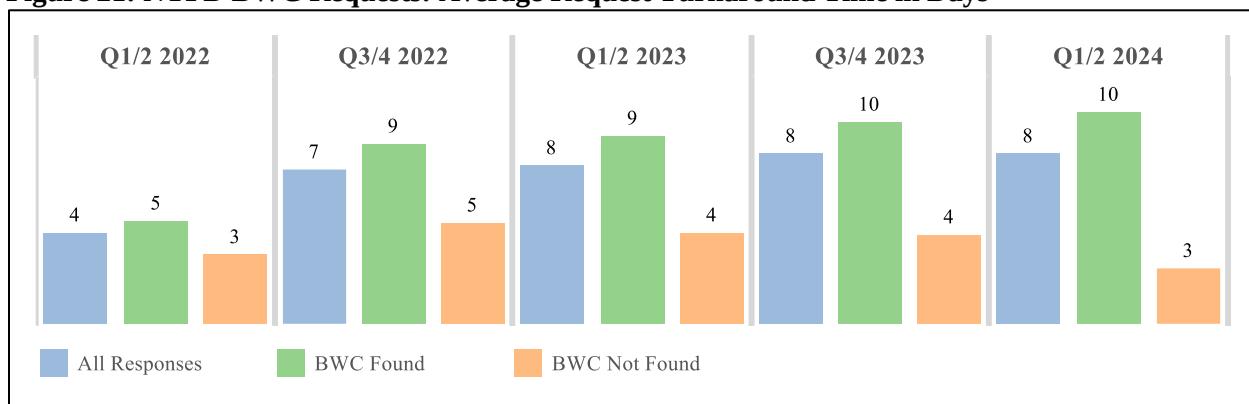
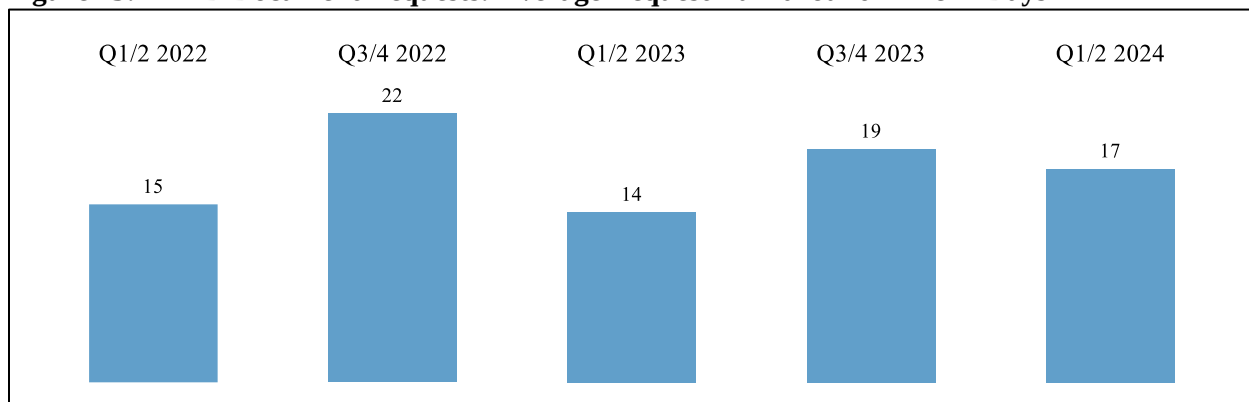


Figure 22: Pending NYPD BWC Requests at 2nd Quarter End

Days Out Group	Complaint Cnt	% of Total
00 <= Days < 30	37	46.3%
30 <= Days < 60	16	20.0%
60 <= Days < 90	13	16.3%
90 >= Days	14	17.5%
Grand Total	80	100.0%

Figure 23: NYPD Document Requests: Average Request Turnaround Time in Days



CASE RESOLUTION AND INVESTIGATIVE OUTCOMES

A complaint can be resolved in various ways. The complaint may be fully investigated, mediated, closed after mediation is attempted,¹¹ or closed as “Unable to Investigate.”¹² There are also a small number of cases where the complainant asks to withdraw their case or where the complaint is closed as a miscellaneous closure, which includes administratively closed complaints and complaints in which the subject officer left the Department before an investigation or mediation was completed.

Figure 24: Case Resolutions

	Q1/2 2022		Q3/4 2022		Q1/2 2023		Q3/4 2023		Q1/2 2024	
	Count	% of Total	Count	% of Total	Count	% of Total	Count	% of Total	Count	% of Total
Full Investigation	1,479	67%	861	51%	1,279	51%	1,301	49%	1,152	41%
Unable to Investigate	388	18%	480	28%	680	27%	799	30%	1,212	43%
Closed - Pending Litigation	110	5%	163	10%	306	12%	279	10%	281	10%
Complaint Withdrawn	108	5%	150	9%	178	7%	225	8%	141	5%
Mediated	42	2%	37	2%	54	2%	50	2%	24	1%
Misc. Closure	25	1%	10	1%	32	1%	14	1%	22	1%
Mediation Attempted	44	2%								

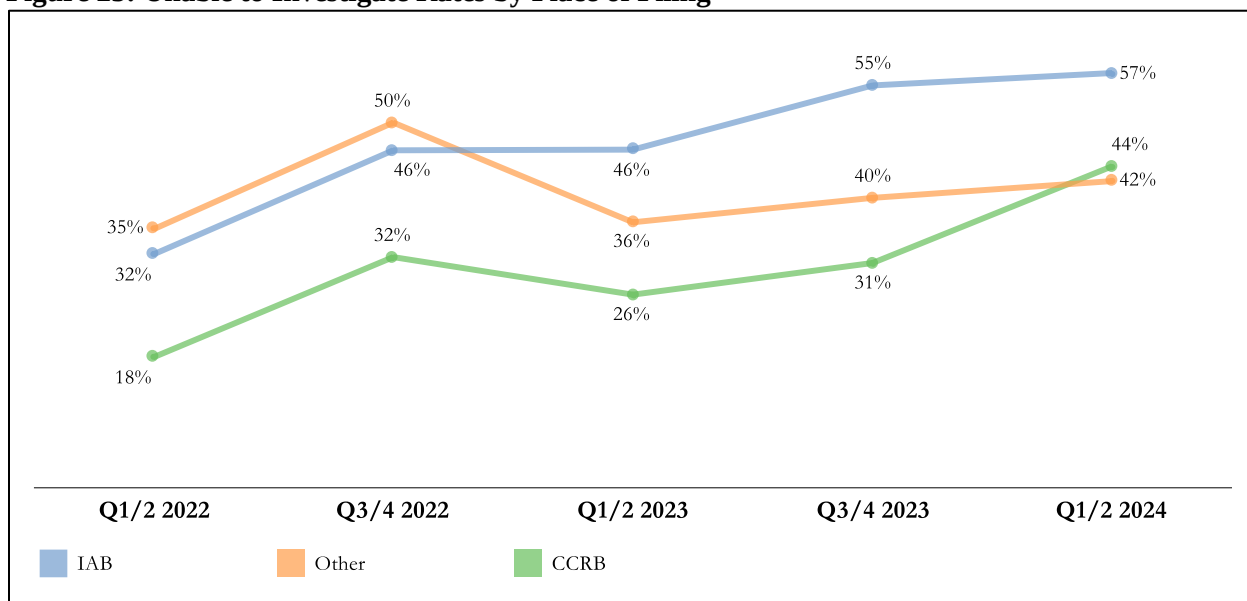
When complaints are not filed directly with the CCRB, it is often difficult to contact the complainant or victim, as they may not be aware that their complaint was referred to the CCRB. Complaints filed directly with the CCRB are less likely to be closed as “Unable to Investigate.”¹³

¹¹ “Mediation attempted” is a designation for a case in which both the officer and the civilian agree to mediate, but the civilian either fails to appear twice for a scheduled mediation session without good cause or fails to respond to attempts to schedule a mediation session and does not request that the case be sent back for a full investigation.

¹² “Unable to Investigate” is a term used for reporting purposes that incorporates the following CCRB dispositions: Complainant/Alleged Victim Uncooperative, Complainant/Alleged Victim Unavailable, Witness Uncooperative, Witness Unavailable, Victim Unidentified, and OMB PEG Closures.

¹³ Another contributing factor to this category is the OMB PEG Closures.

Figure 25: Unable to Investigate Rates by Place of Filing



COMPLAINT AND ALLEGATION DISPOSITIONS FOR FULLY INVESTIGATED CASES

To understand the data presented in the following section, it is important to understand the CCRB terminology used in determining complaint and allegation dispositions.

Allegations that are fully investigated by the CCRB generally result in one of five outcomes:

- An allegation is **Substantiated** if the alleged conduct is found to have occurred and is improper based on a preponderance of the evidence.¹⁴
- An allegation is **Within NYPD Guidelines** if the alleged conduct is found to have occurred but was not found to be improper by a preponderance of the evidence.¹⁵ Allegations may be **Within NYPD Guidelines** if the officer's behavior was found to be allowed under the law and/or the Patrol Guide.¹⁶
- An allegation is **Unfounded** if the alleged conduct is found by a preponderance of the evidence not to have occurred as the complainant described.
- An allegation is closed as **Officer Unidentified** if the CCRB was unable to identify the officer accused of misconduct.
- An allegation is closed as **Unable to Determine** if there is insufficient evidence to determine whether or not misconduct occurred by a preponderance of the evidence.¹⁷

The disposition of a fully investigated complaint depends on the disposition of the fully investigated allegations within the complaint:

- A complaint is **Substantiated** if any allegation within the complaint is substantiated.

¹⁴ "Preponderance of the evidence" is an evidentiary standard used in civil cases, and is commonly interpreted to mean that the fact in question was determined to be "more likely than not" true. See *Foran v. Murphy*, 73 Misc.2d 486 (2d Dept 1973) ("In a disciplinary proceeding, . . . it is sufficient if respondent finds the specifications established by a fair preponderance of the evidence."); *Dep't of Correction v. Jones*, OATH Index No. 393/04 (May 3, 2004) ("burden of proof in this administrative proceeding to prove misconduct by a preponderance of the credible evidence").

¹⁵ Within NYPD Guidelines is reported to the Police Commissioner as Exonerated.

¹⁶ This does not mean that the complainant was untruthful in their account of the incident. Many members of the public are not aware of the range of law enforcement activities that are legally permissible and within the boundaries of proper NYPD protocol.

¹⁷ Unable to Determine is reported to the Police Commissioner as Unsubstantiated.

- A complaint is **Within NYPD Guidelines** if all the allegations made against identified officers are Within NYPD Guidelines.
- A complaint is **Unfounded** if there are no Substantiated or Unable to Determine allegations and there is at least one unfounded allegation.
- A complaint is closed as **Officer Unidentified** if the CCRB was unable to identify any of the officers accused of misconduct.
- A complaint is **Unable to Determine** if there are no substantiated allegations and there is at least one unable to determine allegation.

The following section provides case abstracts to help readers better understand the distinctions between the different dispositions of fully investigated allegations.

The following case abstracts are taken from complaints closed in Q1/Q2 of 2024 and serve as examples of what the different case dispositions mean in practice.

1. Substantiated

An individual who worked as a Federal Reserve officer licensed to carry a firearm was stopped while driving in his vehicle with a friend. During the traffic stop, the individual argued with Sergeant Michael Venditti over his credentials for his licensed firearm. The individual alleged that Sgt. Venditti told him that he was “acting crazy.” The incident was captured on BWC, which showed Sgt. Venditti saying to the individual that he was “crazy” while they argued about the firearm credentials. Sgt. Venditti stated that he used those words to describe the individual’s demeanor because even though the individual had identified himself as a law enforcement officer, he was uncooperative, acting irate, and nervous. The investigation found that the individual was upset with the situation and Sgt. Venditti did not treat him with courtesy and respect as outlined in the Patrol Guide. The Board substantiated the Discourtesy and Offensive Language allegations.

2. Within NYPD Guidelines

An individual was in the shower when they heard a loud banging at the door. When they went to answer the door, they saw officers, including the subject officer, and EMTs standing outside the door. The subject officer and others entered the individual’s home and took them to a hospital. The incident was captured on BWC, which showed the subject officer enter the individual’s home after EMTs entered, and the officers informing the individual that they were there to take them to the hospital because of a 911 call that stated that the individual had posted suicidal threats on social media. The investigation determined that the subject officer was authorized to enter the individual’s home due to the emergency circumstances regarding the individual’s need for assistance and that the removal to the hospital was authorized by the EMTs on the scene in accordance with Patrol Guide procedure. The Board closed the Abuse of Authority allegations as being Within NYPD Guidelines.

3. Unfounded

An individual called a precinct to get an update on a lost dog. The subject officer answered the phone and when the individual asked about the dog, the subject officer responded as if she had no memory of the encounter. The subject officer then tried to get the individual off the phone by saying that she had a line of people in front of her. The individual again asked about the dog and the subject officer allegedly hung up on her. The investigation found that the subject officer told the individual that she was too busy to have a full conversation and that she would call her back. The subject officer stated that she did not get the opportunity to call the individual back while on duty because she had been overwhelmed with 311 calls and people seeking assistance in the precinct. The individual corroborated that the subject officer told her that she could not talk because she had a line of people in front of her. The investigation found that the subject officer did not hang up on the individual. The Board closed the Discourtesy allegation as Unfounded.

4. Officer Unidentified

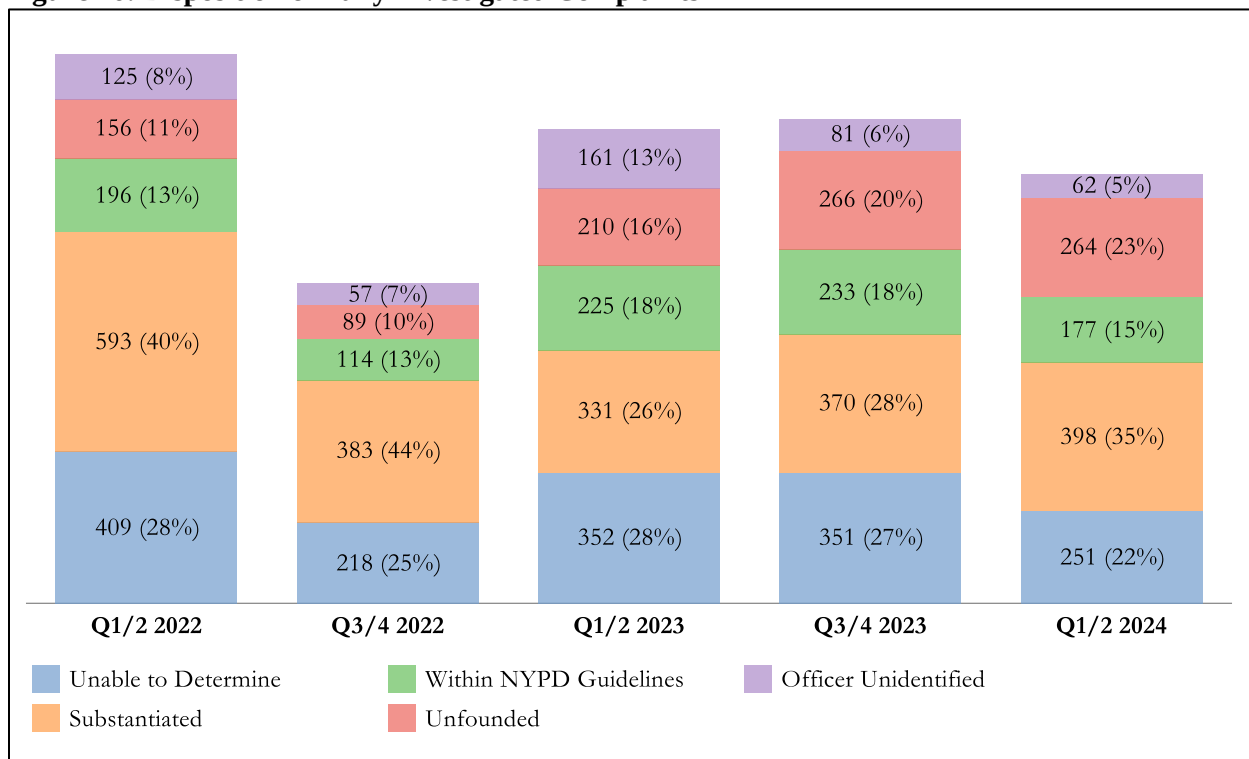
An individual stated that he watched police officers in two unmarked vehicles chase a moped operator. The individual shouted profanities at the officers when they exited their vehicles to continue the chase on foot and one of the officers approached the individual and held a closed fist inches from his face. The individual described the subject officer as a white male wearing khaki pants and provided the license plate of one of the vehicles. The investigation located the vehicle in question and police records showed that it was not at the location at the time of the incident. The officers who were assigned to the vehicle that day did not recall an incident concerning the individual and BWC footage showed that they were at another location at the time of the incident. Without additional pertinent information, the investigation could not identify the subject officer. The Board closed the Abuse of Authority allegation as Officer Unidentified.

5. Unable to Determine

An individual stated that she went to a precinct to file a report and was met by the subject officer who had her wait near the front desk. The subject officer began yelling at the individual and cursed and raised her arms at the individual. Other officers escorted the individual outside and moved the subject officer away. The individual reentered the precinct and completed the report filing. Stationhouse footage, which contains no audio, partially captured the front desk. The footage showed the individual coming in and out of frame as she handed paperwork to the subject officer. The individual then left the precinct and did not return. The subject officer did not recall interacting with the individual and denied using profanities or physical threats towards any civilians during their tour. Due to the conflicting statements, and without any audio from the stationhouse footage, the investigation could not determine if the subject officer used profanities against or physically threatened the individual. The Board closed the Discourtesy and Abuse of Authority allegations as Unable to Determine.

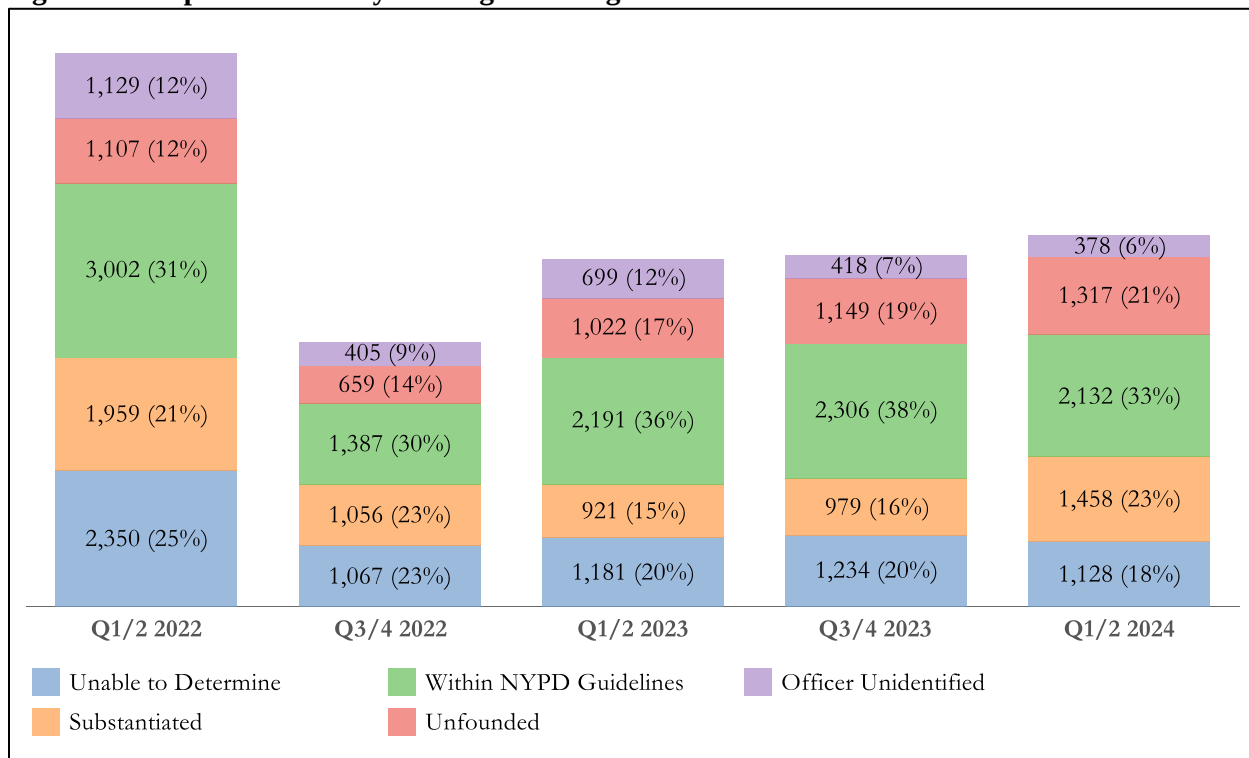
DISPOSITIONS OF COMPLAINTS AND ALLEGATIONS

Figure 26: Disposition of Fully Investigated Complaints



A CCRB complaint may contain one or more allegations. The complaint disposition is a composite of the dispositions of all the distinct allegations within the complaint (see page 26).

Figure 27: Disposition of Fully Investigated Allegations



UNTRUTHFUL STATEMENTS

On November 5, 2019, New Yorkers voted to revise the New York City Charter and expand the CCRB's jurisdiction to include untruthful material statements made by NYPD members of service to the CCRB.

The Charter revision reads as follows:

The board shall also have the power to investigate, hear, make findings and recommend action regarding the truthfulness of any material official statement made by a member of the police department who is the subject of a complaint received by the board, if such statement was made during the course of and in relation to the board's resolution of such complaint.

Following the Charter revision, the CCRB created the "Untruthful Statement" allegation category.¹⁸ There are four distinct "Untruthful Statement" allegations:

1. **False Official Statement:** The false official statement allegation requires a showing of three elements by a preponderance of the evidence: (1) the officer who was the subject of a CCRB complaint made an intentional statement during the course of the CCRB investigation; (2) the officer knew the statement to be untrue; and (3) the statement was material to the outcome of the investigation.
2. **Misleading Official Statement:** Misleading statements are statements in which the officer intends to misdirect the fact finder and materially alter the narrative by omitting material facts, stating repeatedly that they do not recall the event or specific actions that a reasonable person would be expected to recall or have been aware, or materially altering their statement after being confronted with evidence that contradicts their initial statement.
3. **Inaccurate Official Statement:** The officer's testimony includes material statements so incorrect, about information that the officer ought to have knowledge, that it constitutes gross negligence. This allegation does not require an intent to deceive.
4. **Impeding an Investigation:** This allegation is reserved for instances when "an officer engages in impeding actions" such as destroying digital or material evidence or refusing to provide said evidence. The CCRB will not doubly charge an officer for the same untruthful act.

Figure 28: Substantiated Untruthful Statement Allegations

YearQtr	Board Disposition	Misleading Official Statement	Inaccurate Official Statement	False Official Statement
Q1/2 2022	Substantiated (Charges)	32		34
	Substantiated (Command Discipline A)		1	
Q3/4 2022	Substantiated (Charges)	12		18
Q1/2 2023	Substantiated (Charges)	2		14
	Substantiated (Command Discipline B)		3	
Q3/4 2023	Substantiated (Charges)	5		10
Q1/2 2024	Substantiated (Charges)	5		10
	Substantiated (Command Discipline B)		1	

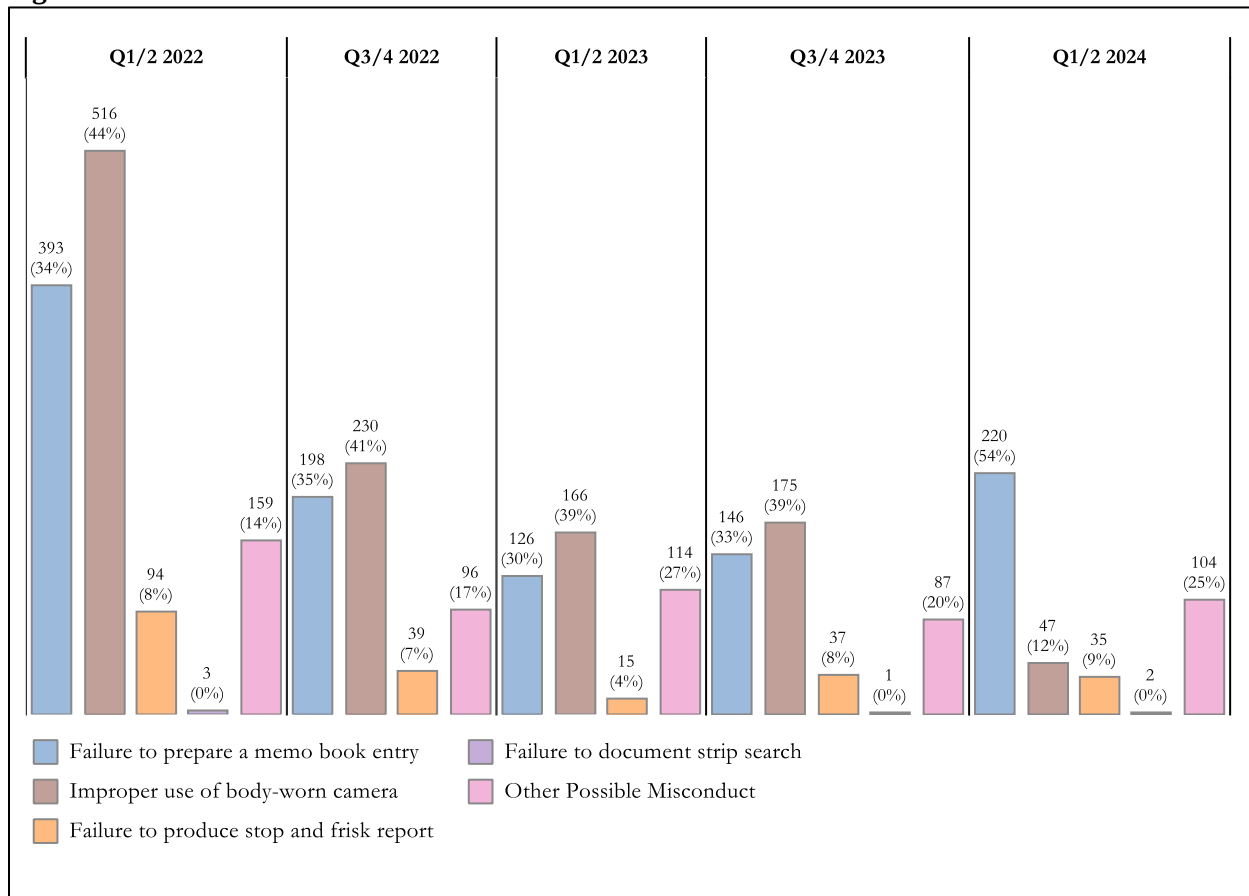
¹⁸ The "Untruthful Statement" allegation category is restricted to officer statements made directly to the CCRB during the course of a CCRB investigation. The CCRB also investigates false, misleading, and inaccurate statements made by officers in other contexts (e.g. in court) under the "Abuse of Authority" allegation category. In the first half of 2024, the CCRB did not substantiate any such "Abuse of Authority" allegations.

OTHER POSSIBLE MISCONDUCT NOTED AND FALSE OFFICIAL STATEMENTS

When a CCRB investigation reveals evidence of a Patrol Guide violation that falls outside of the CCRB’s jurisdiction, the Board files this as “other possible misconduct noted” (OPMN) and reports it to IAB for further investigation and possible disciplinary action.

OPMN allegations should not be confused with allegations of corruption or potential criminal conduct, which are also referred to IAB.

Figure 29: Other Possible Misconduct Noted



SECTION 3: RACIAL PROFILING & BIAS-BASED POLICING

In March 2021, Local Law 47 (2021) amended the New York City Charter to clarify that allegations of racial profiling and bias-based policing fall under the CCRB’s abuse of authority jurisdiction.

Following the enactment of this amendment, the CCRB established its Racial Profiling and Bias-Based Policing Unit (RPBP). The RPBP Unit investigates civilian complaints of profiling/biased policing by uniformed members of the NYPD based on 10 protected categories: race, national origin/ethnicity, color, religion, age, immigration or citizenship status, gender/gender identity, sexual orientation, disability, and housing status.

Racial profiling occurs when an officer takes law enforcement action against a person (for example: vehicle stop, stop of a person on the street, arrest, summons, search, or move-along order) because of a person’s actual or perceived race, ethnicity, national origin, or color. Bias-based policing occurs when an officer takes law enforcement action against a person because of their actual or perceived religion, age, immigration or citizenship status, gender/gender identity, sexual orientation, disability, or housing status.

Below are some examples of racial profiling/bias-based policing:

1. A civilian who wears a turban is pulled over in his vehicle after performing a rolling stop at a stop sign. Most other drivers, who do not appear to be wearing turbans, are not pulled over by the NYPD when they do a rolling stop at the stop sign.
2. After school dismissal, NYPD officers tell Black students from a middle school to leave the neighborhood. White students from the same school are allowed to remain in the area.
3. On a weekend night, two women are standing on the same corner checking their mobile phones. The first, a transgender woman, is stopped by officers, questioned about her activities, and asked for identification. The second, who appears to be cisgender, is not stopped, questioned, or asked for identification.
4. On a subway car late at night, NYPD officers remove a sleeping man who appears to be homeless and issue him a summons. Two other men who are also sleeping in the subway car, but who do not appear to be homeless, are allowed to remain on the train.
5. Two officers stop a group of three young Latino men around 2 a.m., ask them if they have any weapons, and pat them down. When they ask why they were stopped, the officers explain that there have been several recent shootings in the area committed by Latino men in their 20s and that the three men should not be walking around so late at night.
6. A male civilian enters a police station to report domestic abuse by his partner, a woman. The officer on duty refuses to accept the civilian’s complaint, saying that he should “man up.”

In the event that the Board, the NYPD, the City Commission on Human Rights, the Department of Investigation, or a state or federal court in New York finds an officer to have engaged in an act of bias, the CCRB is also empowered to investigate possible bias in the past professional conduct of that officer.^{19 20}

¹⁹ New York City Charter § 441.

²⁰ To date, no investigations into the past professional conduct of an officer have been opened.

BIAS-BASED COMPLAINT INVESTIGATIONS: INFORMATION REQUESTS

At the end of 2024, the RPBP Unit had 547 open investigations of complaints that included at least one allegation of bias-based policing.

To conduct bias-based policing investigations, the RPBP Unit needs specific bias-related information from the NYPD—this information previously was not available to the CCRB. The RPBP Unit typically requests a subject officer’s profiling complaint history, lawsuit history, adverse credibility assessments, prior equal employment opportunity bias allegations, and performance evaluations. In many cases, the RPBP Unit also requests various datasets from the NYPD, such as a listing of all the stop reports completed by a subject officer in the year prior to the incident under investigation or a listing of all the summonses issued by a subject officer in the previous year.

In 2023, the CCRB reached a data-sharing agreement with the NYPD, and the Department began fulfilling these information requests from the RPBP Unit.²¹

Figure 30: Average Turnaround Time of Information Requests Specific to Bias-Based Policing Investigations, in Days

Request Month	Info Request Type Desc Modified	Requests	Open Requests	Partially Received Requests	Rejected Requests	Received Requests	Avg. Closed Received Days Out
Jan, 2024	Data Requests	9	0	3	0	6	48
	Document Requests	14	0	0	0	14	32
Feb, 2024	Data Requests	11	0	0	0	10	39
	Document Requests	18	0	0	0	18	55
Mar, 2024	Data Requests	17	0	0	0	17	123
	Document Requests	42	0	4	0	38	36
Apr, 2024	Data Requests	11	0	1	0	9	99
	Document Requests	22	0	0	0	22	19
May, 2024	Data Requests	14	0	0	0	14	71
	Document Requests	29	0	1	0	28	18
Jun, 2024	Data Requests	14	14	0	0	0	
	Document Requests	30	14	16	0	0	

²¹ A copy of the data-sharing agreement between CCRB and the NYPD can be found at: https://www.nyc.gov/assets/ccrb/downloads/pdf/rpbp_mou.pdf.

BIAS-BASED COMPLAINTS & ALLEGATIONS CLOSED

Figure 31: Disposition of Complaints Containing At least One Bias-Based Policing Allegation²²

YearQtr	Investigation Type	Disposition	Count
Q1/2 2024	Fully Investigated Complaint	Substantiated (Charges)	24
		Substantiated (Command Discipline B)	8
		Substantiated (Command Discipline A)	9
		Substantiated (Formalized Training)	3
		Unable to Determine	15
		Unfounded	15
		Officer(s) Unidentified	3
	Not Fully Investigated Complaint	Closed - Pending Litigation	1
		Complaint Withdrawn	2
		Miscellaneous	1
		Miscellaneous - Subject Retired	1
		Unable to Investigate	26
Grand Total			108

Figure 32: Disposition of Bias-Based Policing Allegations

YearQtr	Inv. Type	Disposition	Allegation	Count	
Q1/2 2024	Fully Investigated Allegations	Substantiated (Charges)	Bias-Based Policing (Color)	2	
			Bias-Based Policing (Disability)	10	
			Bias-Based Policing (National Origin)	5	
			Bias-Based Policing (Race)	23	
		Substantiated (CD A)	Bias-Based Policing (Gender)	1	
		Unable to Determine	Bias-Based Policing (Age)	4	
			Bias-Based Policing (Disability)	3	
			Bias-Based Policing (Gender)	1	
			Bias-Based Policing (Housing Status)	3	
			Bias-Based Policing (National Origin)	10	
			Bias-Based Policing (Race)	52	
			Unfounded	Bias-Based Policing (Age)	8
				Bias-Based Policing (Disability)	3
		Bias-Based Policing (Gender)		10	
		Bias-Based Policing (Housing Status)		3	
		Bias-Based Policing (Immigration Status)		2	
		Bias-Based Policing (National Origin)		1	
		Bias-Based Policing (Race)		51	
		Officer(s) Unidentified	Bias-Based Policing (Color)	1	
			Bias-Based Policing (Housing Status)	1	
			Bias-Based Policing (Race)	3	
	Not Fully Investigated Allegations	Closed - Pending Litigation	Bias-Based Policing (Color)	1	
			Bias-Based Policing (Race)	1	
		Complaint Withdrawn	Bias-Based Policing (Race)	2	
		Unable to Investigate	Bias-Based Policing (Color)	1	
			Bias-Based Policing (Gender)	3	
			Bias-Based Policing (Housing Status)	3	
			Bias-Based Policing (National Origin)	5	
			Bias-Based Policing (Race)	22	
			Bias-Based Policing (Religion)	3	
			Miscellaneous - Subject Resigned	Bias-Based Policing (Color)	1
		Bias-Based Policing (Disability)		1	
		Bias-Based Policing (Housing Status)		1	
		Bias-Based Policing (National Origin)		1	
		Bias-Based Policing (Race)		7	
		Miscellaneous - Subject Retired	Bias-Based Policing (Race)	3	
		Miscellaneous	Bias-Based Policing (Gender)	1	
Grand Total				253	

²² Only 17 of the 44 substantiated complaints listed contained a substantiated Bias-Based Policing allegation.

SECTION 4: DISCIPLINARY PROCESS

DISCIPLINARY PROCESS AND THE CCRB'S ADMINISTRATIVE PROSECUTION UNIT (APU)

After the CCRB substantiates an allegation of misconduct, the NYPD portion of the disciplinary process begins. Although the CCRB recommends the discipline that it deems appropriate, pursuant to the New York City Charter,²³ New York City Administrative Code,²⁴ and New York State Civil Service Law,²⁵ the Police Commissioner has final approval over all member of service (MOS) discipline. The Commissioner can accept, reject, or modify any discipline recommendation made by the CCRB.

In 2021, pursuant to a Memorandum of Understanding (MOU) with the NYPD,²⁶ the Board began using the NYPD's Disciplinary System Penalty Guidelines, often referred to as the Disciplinary Matrix,²⁷ to determine its discipline recommendations. Using the Disciplinary Matrix should result in more consistent discipline recommendations from the CCRB, and consequently, less deviations from those recommendations by the Police Commissioner.

The Board follows this three-step process to determine its Disciplinary Matrix recommendation for each officer:

1. Using the Disciplinary Matrix, the Board assigns a penalty day value to each substantiated allegation.
2. The penalty day value of all the substantiated allegations against the officer is summed to arrive at an overall penalty day value.
3. Based on the overall penalty day value, the Board selects one of the following disciplinary recommendations:
 - Less than 1 day: Formalized Training²⁸
 - 1–5 days: Command Discipline A²⁹
 - 6–10 days: Command Discipline B³⁰
 - 11+ days: Charges and Specifications³¹

In the first half of 2024, the CCRB closed substantiated allegations against 751 members of service. The Board's discipline recommendation deviated from the Disciplinary Matrix in 15 cases.

²³ New York City Charter § 440(d)3.

²⁴ New York City Administrative Code §§ 15-08; 15-17.

²⁵ NYS Civil Service Law § 75(3-a).

²⁶ The MOU can be found here: https://www1.nyc.gov/assets/nypd/downloads/pdf/public_information/nypd-ccrb-discipline-matrix-mou-final.pdf.

²⁷ The version of the NYPD Disciplinary Guidelines that went into effect in January 2021 can be found here: https://www1.nyc.gov/assets/nypd/downloads/pdf/public_information/disciplinary-system-penalty-guidelines-effective-01-15-2021-compete-.pdf. The updated Guidelines, effective February 15, 2022, can be found here: https://www1.nyc.gov/assets/nypd/downloads/pdf/public_information/nypd-disciplinary-penalty-guidelines-effective-2-15-2022-final.pdf.

²⁸ Examples include training delivered at the command, the Legal Bureau, and the Police Academy.

²⁹ Issued by the commanding officer and may include a penalty ranging from warning and admonishment up to the officer forfeiting five vacation days.

³⁰ Issued by the commanding officer and may include a penalty ranging from warning and admonishment up to the officer forfeiting ten vacation days.

³¹ Leads to a prosecutorial process in which officer may either plead guilty or go to trial before the NYPD Deputy Commissioner of Trials or an Assistant Deputy Commissioner of Trials.

After the Board sends its discipline recommendation to the Police Commissioner, the case against that officer can be resolved in one of the following ways:

1. If the Board recommends Instructions,³² Formalized Training, Command Discipline A, or Command Discipline B:
 - a. The recommendation is sent to the Department Advocate's Office, the unit within the NYPD that reviews the CCRB's disciplinary recommendations.
 - b. The Police Commissioner determines what discipline to impose, if any.
 - c. If the Police Commissioner chooses not to impose discipline, or imposes a lesser penalty than recommended, the CCRB is informed in writing of the reason for the decision.³³
2. If the Board recommended Charges and Specifications:
 - a. The Police Commissioner can retain the case and choose whether to impose discipline.³⁴
 - b. The officer can accept a guilty plea, subject to Police Commissioner approval.³⁵
 - c. The officer can be prosecuted by the APU at an administrative trial. The Police Commissioner can accept or reject the trial verdict and decide whether to impose discipline.

POLICE COMMISSIONER DOWNWARD DEPARTURE LETTERS

As a result of the November 2019 amendments to the New York City Charter, the Police Commissioner must submit a letter to the CCRB explaining any downward departures from the Board's discipline recommendations.³⁶ While these letters had always been submitted for APU cases, the Charter amendment extended this requirement to all CCRB cases.

³² With the adoption of the NYPD's Disciplinary Matrix, the Board no longer issues "Instructions" as a discipline recommendation.

³³ This letter differs from the letter sent when the Police Commissioner deviates from the Board's recommendation.

³⁴ Pursuant to a MOU between the CCRB and the NYPD, the Police Commissioner can retain a case when the Police Commissioner determines that the APU's prosecution of a case would be detrimental to the NYPD's disciplinary process. The MOU can be found here:

https://www1.nyc.gov/assets/ccrb/downloads/pdf/about_pdf/apu_mou.pdf.

³⁵ The APU may reach an agreed upon disposition with the subject officer that is different from the Board's recommendation if there are new aggravating or mitigating facts.

³⁶ New York City Charter § 440(d)3.

Figure 33: Complaints Substantiated & Officers with Substantiated Allegations

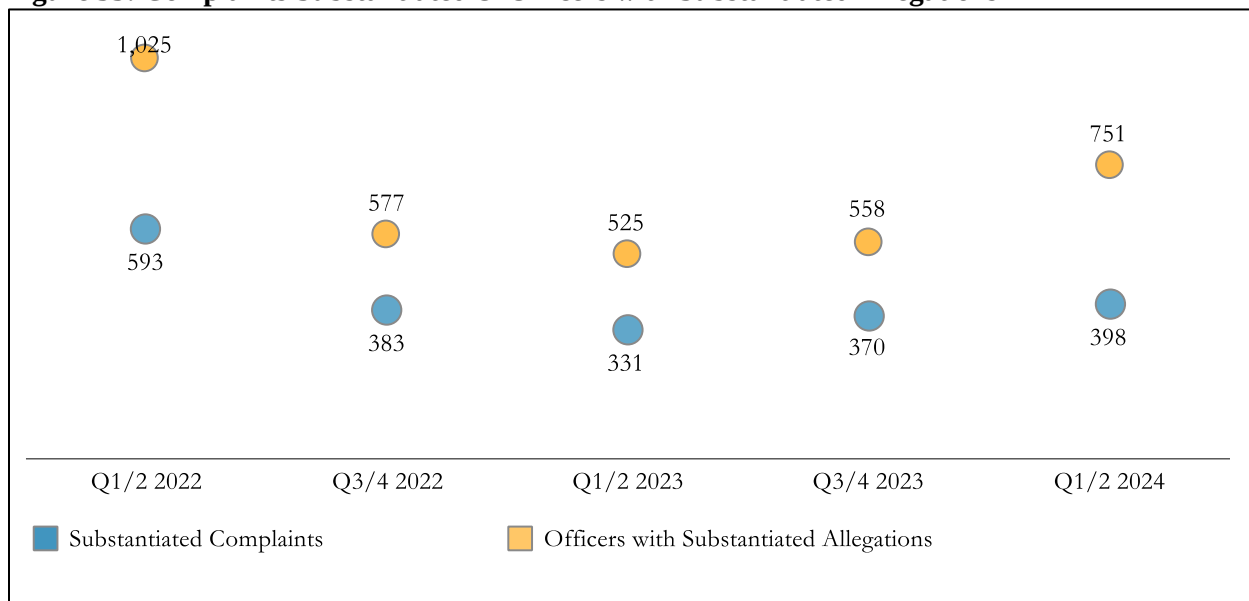


Figure 34: Board Recommendations for Officers with Substantiated Allegations

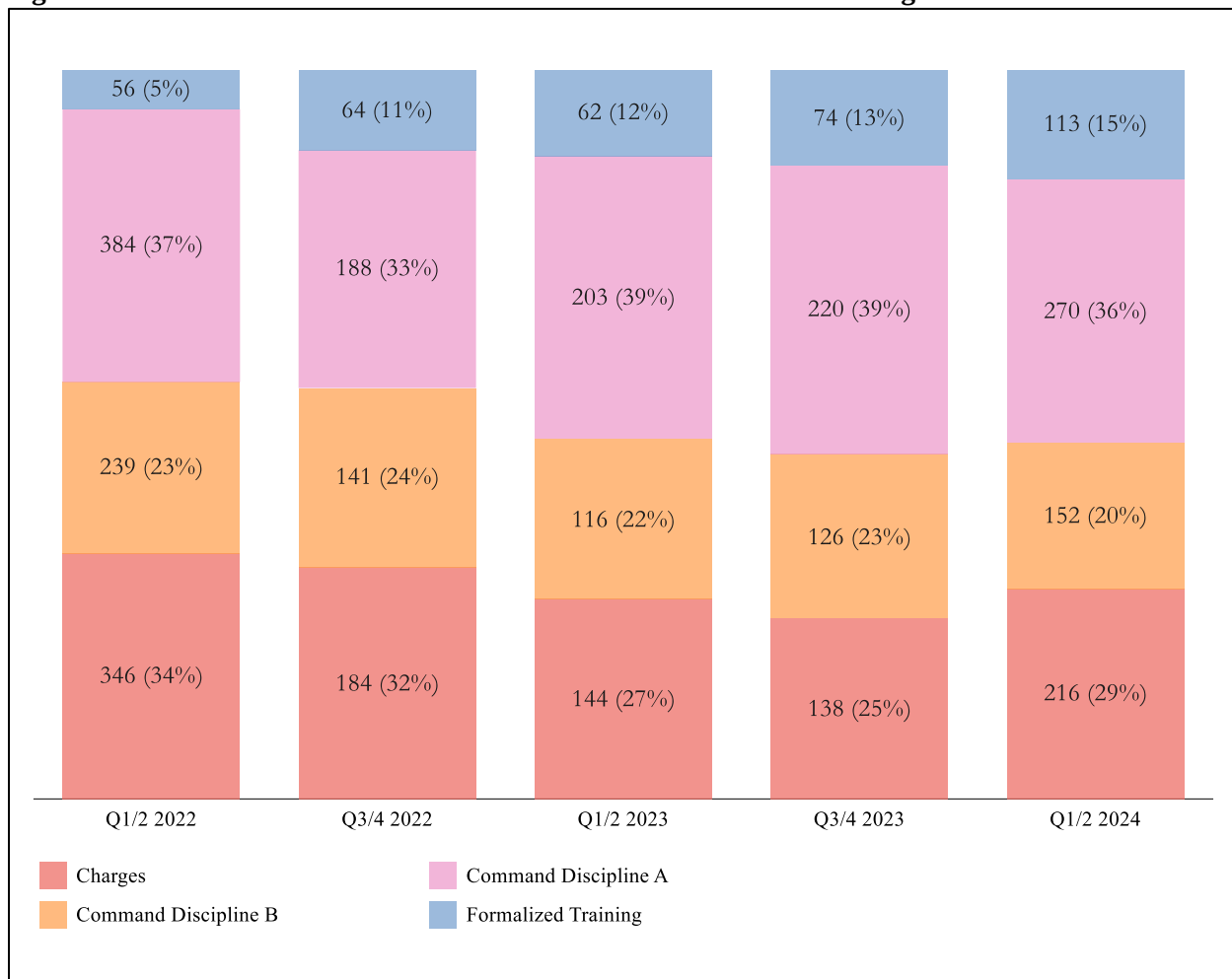
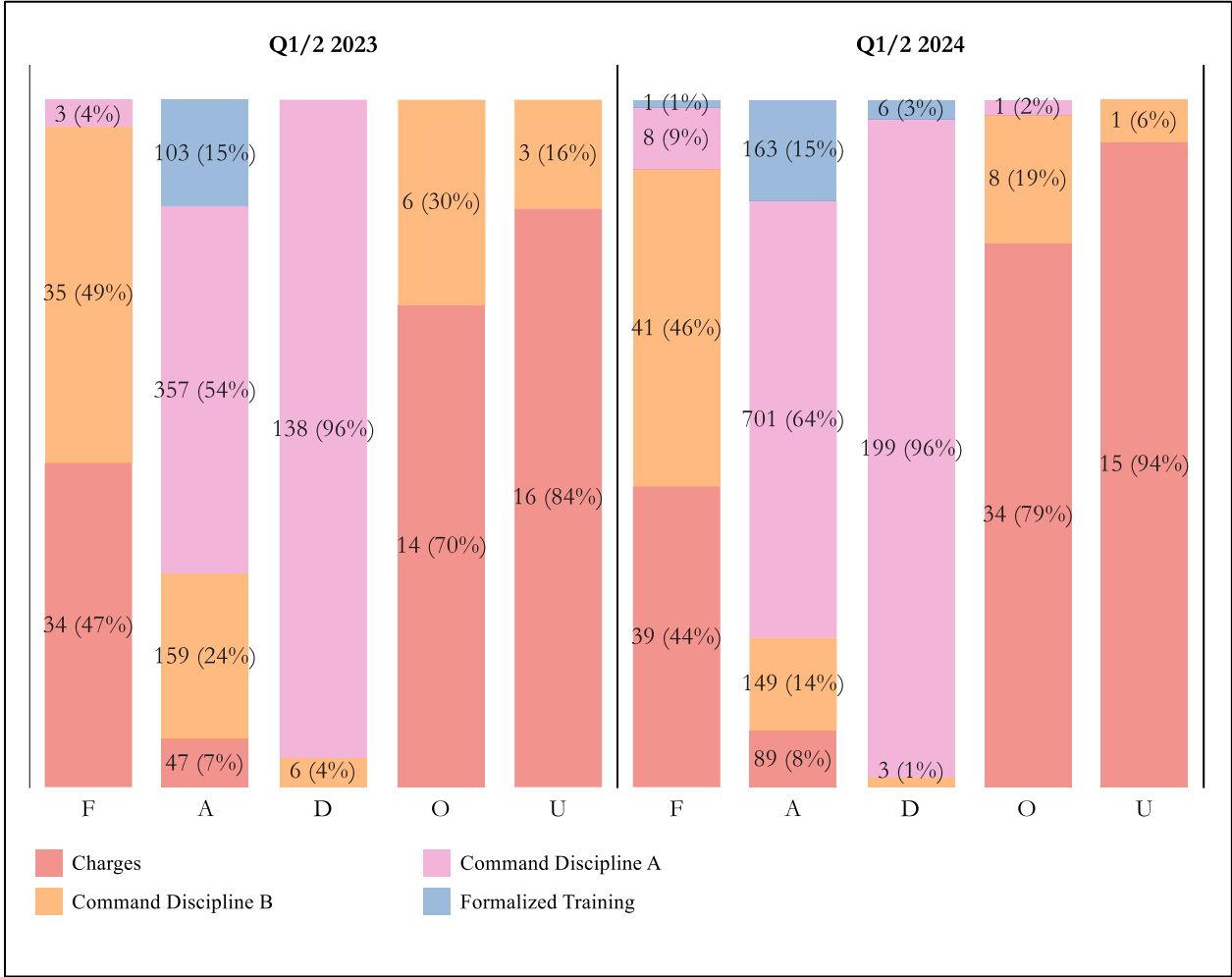


Figure 35: Board Disciplinary Recommendations by Substantiated FADO&U Allegations



NYPD DISCIPLINARY DECISIONS IN NON-CHARGES CASES

When the Board recommends Command Discipline B, Command Discipline A, or Formalized Training, the case is handled by the NYPD's Department Advocate's Office (DAO). DAO reports the final disposition of each case, along with the discipline imposed by the Police Commissioner, if any, back to the CCRB.

DAO case outcomes in non-charges cases are shown in Figure 36 on the following page. Explanations of some of the terms used in Figure 36 are as follows:

1. "Closed Administratively" – the officer's conduct was previously adjudicated, or is currently being adjudicated, by DAO.
 - a. Prior to 2021, DAO did not report the final outcome of previously adjudicated cases.
 - b. Final outcomes are not reported while a case is being adjudicated by DAO.
 - c. Where no final outcome was reported to the CCRB, the case appears as "Closed Administratively: No penalty reported."
2. "Guilty – DCT" and "No Disciplinary Action – DCT Not Guilty/Dismissed" – reference a guilty or not guilty verdict by an NYPD trial commissioner where charges were filed because the officer refused to accept a Command Discipline A/B penalty issued by the Police Commissioner.
 - a. Officers have the right to refuse a Command Discipline penalty and opt for a trial.
 - b. As of 2022, these cases are prosecuted by the APU.
3. "No Disciplinary Action – DUP" – the Department chose not to take any disciplinary action.
 - a. "DUP" stands for "Department Unable to Prosecute."
4. "No Disciplinary Action – Short SOL" – the Department did not pursue discipline because DAO felt that the Board's discipline recommendation was made too close to the expiration of the statute of limitations (SOL) period.
 - a. DAO closed an unusually large number of cases as "No Disciplinary Action – Short SOL" in 2022.
 - b. These cases are discussed in greater detail in the following section (see Figure 37 and Figure 38).

Figure 36: Department Advocate's Office Outcomes by Board Discipline Recommendation

		Q1/2 2022	Q3/4 2022	Q1/2 2023	Q3/4 2023	Q1/2 2024
Substantiated (Command Discipline B)	Command Discipline - B: Detail not reported	1 (0%)	3 (1%)	7 (1%)	5 (2%)	5 (1%)
	Command Discipline - B: Vacation < 6 days	10 (3%)	25 (6%)	43 (9%)	44 (14%)	36 (5%)
	Command Discipline - B: Vacation >= 6 days	7 (2%)	2 (0%)	3 (1%)	2 (1%)	2 (0%)
	Guilty - DCT: Vacation < 10 days	1 (0%)				
	Guilty - DCT: Vacation >= 10 days	3 (1%)				
	Command Discipline - A: Vacation < 6 days	6 (2%)	2 (0%)	1 (0%)	1 (0%)	6 (1%)
	Formalized Training/Instructions	6 (2%)	7 (2%)	1 (0%)	1 (0%)	
	No Disciplinary Action - DUP	12 (4%)	21 (5%)	35 (7%)	10 (3%)	14 (2%)
	No Disciplinary Action - Short SOL	51 (16%)	92 (20%)	81 (16%)	32 (10%)	111 (17%)
	Closed Administratively (Command Discipline - A)		2 (0%)	3 (1%)		1 (0%)
	Closed Administratively (Instructions)		1 (0%)			1 (0%)
	Closed Administratively: Suspension/Probation		1 (0%)			
	No Disciplinary Action - SOL Expired	6 (2%)	2 (0%)	7 (1%)	1 (0%)	
Substantiated (Command Discipline A)	Retired/Resigned	3 (1%)	4 (1%)	4 (1%)	2 (1%)	
	Command Discipline - A: Detail not reported	73 (22%)	92 (20%)	88 (18%)	86 (28%)	103 (16%)
	Command Discipline - A: Vacation < 6 days	23 (7%)	18 (4%)	22 (4%)	22 (7%)	30 (5%)
	Guilty - DCT: Vacation < 10 days	1 (0%)				
	Formalized Training/Instructions		2 (0%)	3 (1%)	3 (1%)	
	No Disciplinary Action - DCT Not Guilty/Dismissed	1 (0%)				
	No Disciplinary Action - DUP	4 (1%)	5 (1%)	7 (1%)	4 (1%)	5 (1%)
	No Disciplinary Action - Short SOL	82 (25%)	110 (24%)	95 (19%)	44 (14%)	207 (31%)
	Closed Administratively (Command Discipline - A)		1 (0%)	2 (0%)		4 (1%)
	Closed Administratively (Command Discipline - B)	2 (1%)			1 (0%)	1 (0%)
	Closed Administratively (Instructions)	5 (2%)	1 (0%)	2 (0%)	2 (1%)	2 (0%)
	Closed Administratively: Detail not reported		2 (0%)	1 (0%)		
	No Disciplinary Action - SOL Expired	9 (3%)	14 (3%)	8 (2%)	2 (1%)	
	Retired/Resigned	4 (1%)	13 (3%)	12 (2%)	4 (1%)	2 (0%)
Substantiated (Training/ Instructions)	Command Discipline - A: Vacation < 6 days				1 (0%)	1 (0%)
	Formalized Training/Instructions	9 (3%)	25 (6%)	60 (12%)	29 (9%)	59 (9%)
	No Disciplinary Action - DUP		1 (0%)		3 (1%)	2 (0%)
	No Disciplinary Action - Short SOL	8 (2%)	1 (0%)	6 (1%)	3 (1%)	65 (10%)
	Closed Administratively (Command Discipline - B)				1 (0%)	
	Closed Administratively (Instructions)				2 (1%)	1 (0%)
	Closed Administratively: Detail not reported			1 (0%)		
	No Disciplinary Action - SOL Expired	1 (0%)	4 (1%)	5 (1%)		
	Retired/Resigned	1 (0%)	3 (1%)	2 (0%)	1 (0%)	2 (0%)

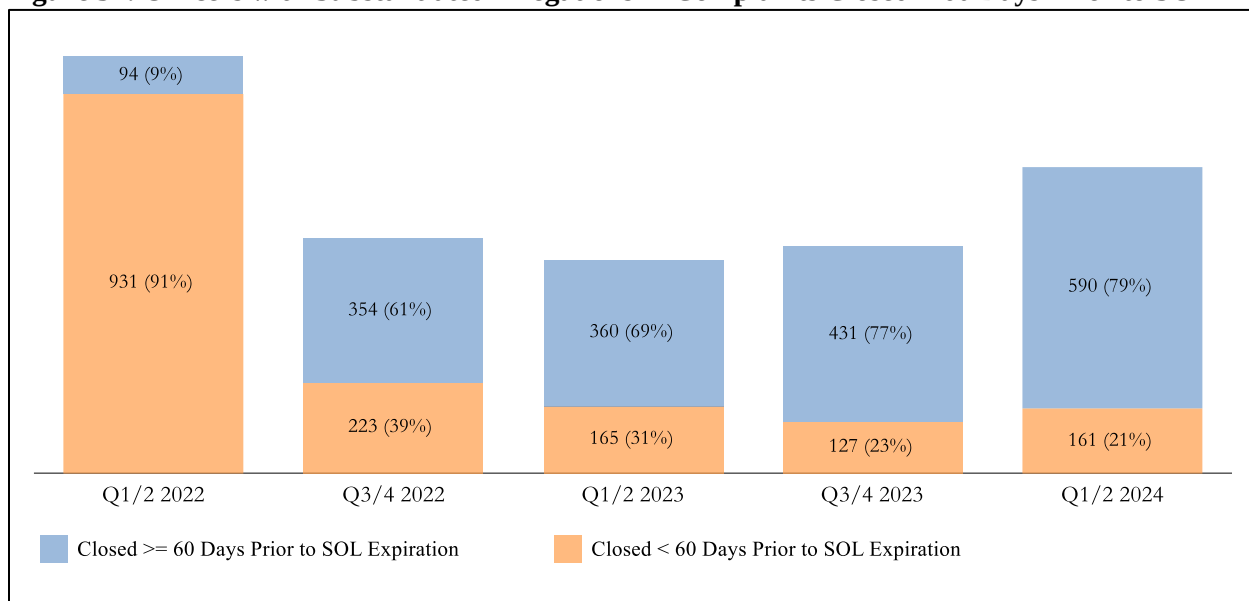
 Concurrence	 Non-Concurrence w/out Discipline
 Non-Concurrence w/ Discipline	 Not Adjudicated

STATUTE OF LIMITATIONS & NYPD’s “SHORT SOL” DISCIPLINARY DECISIONS

In the first half of 2024, DAO reported 383 cases as “No Disciplinary Action – Short SOL.” This means that the Department decided not to pursue disciplinary proceedings against an officer because DAO determined that the Board’s discipline recommendation was made too close to the expiration of the statute of limitations (SOL) period. Under Civil Service Law § 75(4), disciplinary proceedings for misconduct generally must be commenced within 18 months of the incident.³⁷

As shown in Figure 37, in first half of 2024, the CCRB substantiated allegations against 161 officers in complaints that were closed within 60 days of the SOL expiration.

Figure 37: Officers with Substantiated Allegations in Complaints Closed < 60 Days Prior to SOL



In the first half of 2024, DAO reported “No Disciplinary Action – Short SOL” for 279 substantiated officers whose complaints were closed 60 or more days prior to the SOL expiration. Of these, 33 of the “Short SOL” decisions related to MOS with a substantiated Stop, Question & Frisk allegation.

Figure 38: “Short SOL” Decisions Returned by Days to SOL Expiration

	Q1/2 2022		Q3/4 2022		Q1/2 2023		Q3/4 2023		Q1/2 2024	
	MOS w/SQF Sub	All MOS w/Sub	MOS w/SQF Sub	All MOS w/Sub	MOS w/SQF Sub	All MOS w/Sub	MOS w/SQF Sub	All MOS w/Sub	MOS w/SQF Sub	All MOS w/Sub
03 <= Days < 05	0	8	0	0						
05 <= Days < 10	1	10	1	6			0	4		
10 <= Days < 20	8	29	15	120	12	67	0	1	2	8
20 <= Days < 30	0	37	3	33	2	27	4	6	0	4
30 <= Days < 40	6	41	3	23	0	25	0	1	2	15
40 <= Days < 50	2	13	6	18	2	16	1	5	1	30
50 <= Days < 60	0	3	0	3	0	11	2	13	11	47
60 <= Days < 90	0	0	0	0	0	36	8	49	33	279
90 <= Days	0	0	0	0	0	0	0	0	0	0
Total	17	141	28	203	16	182	15	79	49	383

³⁷ During the COVID crisis, Emergency Executive Orders issued by the Governor tolled most statutory time limits from March 20 to November 3, 2020.

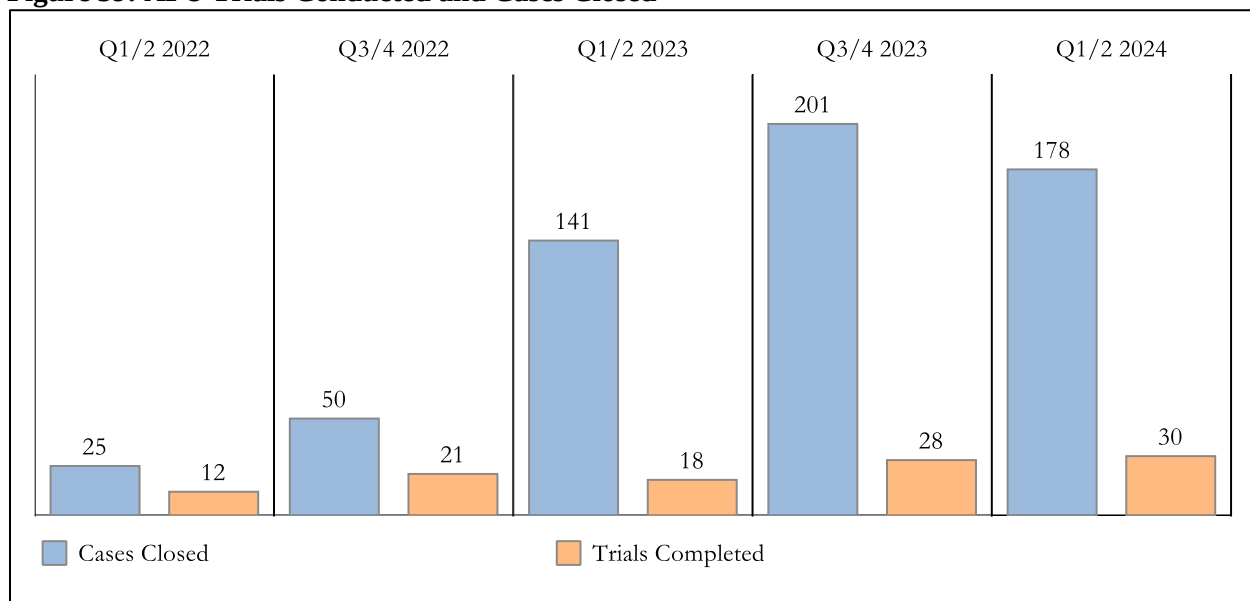
ADMINISTRATIVE PROSECUTION UNIT

When the Board substantiates a misconduct allegation(s) and recommends Charges and Specifications, in most instances the case is prosecuted by the CCRB's Administrative Prosecution Unit (APU) pursuant to a Memorandum of Understanding (MOU) between the CCRB and the NYPD.³⁸ The Police Commissioner may retain a case under the limited circumstances specified in paragraph 2 of the MOU.³⁹

The APU prosecutes cases before the NYPD Deputy Commissioner of Trials (DCT) or an Assistant Deputy Commissioner of Trials (ADCT). The member of service (MOS) can accept a plea offer in lieu of a trial. If the MOS goes to trial and is found guilty, the NYPD trial commissioner will recommend a penalty. The Police Commissioner may accept, reject, or modify any plea agreement, trial verdict, or penalty recommendation.

The APU treats each officer against whom an allegation is substantiated as a separate case.⁴⁰ A single CCRB complaint may generate more than one APU case depending on the number of officers against whom the Board recommends Charges and Specifications.

Figure 39: APU Trials Conducted and Cases Closed



³⁸ The full text of the MOU, which was signed in 2012 and became effective in 2013, can be found here: https://www1.nyc.gov/assets/ccrb/downloads/pdf/about_pdf/apu_mou.pdf.

³⁹ Paragraph 2 of the MOU states:

...in those limited instances where the Police Commissioner determines that CCRB's prosecution of Charges and Specifications in a substantiated case would be detrimental to the Police Department's disciplinary process, the Police Commissioner shall so notify CCRB. Such instances shall be limited to such cases in which there are parallel or related criminal investigations, or when, in the case of an officer with no disciplinary history or prior substantiated CCRB complaints, based on such officer's record and disciplinary history the interests of justice would not be served.

⁴⁰ The APU treats each officer's substantiated allegations as a separate "case." All APU data discussed in this Report uses the same terminology. While there may be trials or incidents that involve multiple officers, the word "case" should be interpreted as "case against a single officer."

APU CASE CLOSURES

APU cases can close in one of four ways: (1) trial; (2) plea bargain; (3) Police Commissioner retention; and (4) “Other.”

Cases are typically closed as “Other” when the incident has already been subject to a disciplinary review by the Department or the officer left the Department before the disciplinary process was complete.

Figure 40: APU Case Outcomes

		Q1/2 2022	Q3/4 2022	Q1/2 2023	Q3/4 2023	Q1/2 2024
Trial	Guilty after trial: Forfeit Vacation >= CCRB Reqstd Days	1 (4%)	1 (2%)		3 (1%)	5 (3%)
	Guilty after trial: Suspension 10 days / Forfeit vacation 10 days				1 (0%)	
	Guilty after trial: Dismissal Probation < CCRB Reqstd	1 (4%)				
	Guilty after trial: Forfeit Vacation < CCRB Reqstd Days	1 (4%)	2 (4%)	4 (3%)	2 (1%)	15 (8%)
	Trial verdict reversed by PC, Guilty: Forfeit vacation 5 days					1 (1%)
	Dismissed by Police Commissioner: No penalty	1 (4%)	2 (4%)			2 (1%)
	Not guilty after trial: No penalty	1 (4%)	9 (18%)	10 (7%)	12 (6%)	17 (10%)
Plea	Trial verdict reversed by PC, Not Guilty: No penalty	1 (4%)			1 (0%)	
	Plea Renegotiated by PC: Forfeit vacation 1 days				1 (0%)	
	Plea Renegotiated by PC: Forfeit vacation 10 days			1 (1%)		
	Plea Renegotiated by PC: Forfeit vacation 3 days / Command Discipline A				1 (0%)	
	Plea Renegotiated by PC: Suspension 10 days			1 (1%)		
	Plea set aside, Comm. Disc. B: Forfeit vacation 10 days / Command Discipl..				1 (0%)	1 (1%)
	Plea set aside, Comm. Disc. B: Forfeit vacation 5 days / Command Discipl..				1 (0%)	
	Plea set aside, Formalized Training: Command Discipline A / Formalized T..			1 (1%)		
	Plea set aside, Formalized Training: Formalized Training			8 (6%)	3 (1%)	
	Resolved by plea: Command Discipline B					1 (1%)
	Resolved by plea: Command Discipline B 10 days					1 (1%)
	Resolved by plea: Dismissal Probation			1 (1%)	2 (1%)	
	Resolved by plea: Forced Separation / Forfeit vacation 26 days				1 (0%)	
	Resolved by plea: Forfeit vacation <= 10 days	2 (8%)	5 (10%)	7 (5%)	38 (19%)	55 (31%)
	Resolved by plea: Forfeit vacation > 10 days	2 (8%)	5 (10%)	3 (2%)	9 (4%)	9 (5%)
	Resolved by plea: Suspension	1 (4%)				
	Resolved by plea: Training/Instructions			1 (1%)	6 (3%)	1 (1%)
Retained	Plea set aside, Comm. Disc. A: Command Discipline A		3 (6%)		8 (4%)	6 (3%)
	Plea set aside, Without discipline: No penalty		1 (2%)	4 (3%)	4 (2%)	8 (4%)
	Retained, with discipline: Command Discipline (A/B)				5 (2%)	14 (8%)
	Retained, with discipline: Forfeit vacation <= 10 days	2 (8%)	2 (4%)	2 (1%)	2 (1%)	6 (3%)
	Retained, with discipline: Training/Instructions				1 (0%)	
Other	Retained, with discipline: No penalty					1 (1%)
	Retained, without discipline: No penalty	2 (8%)	2 (4%)	4 (3%)	7 (3%)	16 (9%)
	Charges not served: No penalty		2 (4%)	55 (39%)	63 (31%)	1 (1%)
	Dismissed by APU: No penalty					2 (1%)
	Other: No penalty				1 (0%)	6 (3%)
	Prev. adjudicated, with discipline: CD (A/B) / Training/Inst.	2 (8%)		1 (1%)	1 (0%)	1 (1%)
	Prev. adjudicated, with discipline: Command Discipline B 5 days					1 (1%)
	Prev. adjudicated, with discipline: Dismissal Probation		1 (2%)			
	Prev. adjudicated, with discipline: Forfeit vacation <= 10 days			1 (1%)		
	Prev. adjudicated, with discipline: Forfeit vacation > 10 days				1 (0%)	
	Prev. adjudicated, without discipline: No penalty			1 (1%)		
	Retired / Resigned: Dismissal Probation		1 (2%)			
	Retired / Resigned: Retired/Resigned	7 (28%)	10 (20%)	14 (10%)	12 (6%)	5 (3%)
	SOL Expired in APU: No penalty		1 (2%)		3 (1%)	3 (2%)
	SOL Expired prior to APU: No penalty		3 (6%)	22 (16%)	10 (5%)	
	Terminal leave: No penalty	1 (4%)				
	Terminated: No penalty				1 (0%)	

Concurrence	Non-Concurrence w/out Discipline
Non-Concurrence w/ Discipline	Not Adjudicated

CONCURRENCE AND DISCIPLINE RATES

The concurrence rate measures how often the Police Commissioner imposes the same (or more severe) discipline as recommended by the Board. The discipline rate measures how often the Police Commissioner imposes discipline of any kind on officers for whom the Board recommended discipline. Certain “Not Adjudicated” case outcomes, such as when a case was previously adjudicated or when the officer left the force prior to discipline being imposed, do not factor into the concurrence or discipline rate. See Figure 36 and Figure 40 for a complete breakdown of the case outcomes that factor into the concurrence and discipline rates.

Figure 41: Concurrence Rates

	Q1/2 2022			Q3/4 2022			Q1/2 2023			Q3/4 2023			Q1/2 2024		
	Total	Cnt	%	Total	Cnt	%	Total	Cnt	%	Total	Cnt	%	Total	Cnt	%
Non-APU	298	128	43%	406	165	41%	452	223	49%	290	189	65%	646	236	37%
APU	15	6	40%	32	11	34%	47	23	49%	109	67	61%	159	73	46%
CCRB	313	134	43%	438	176	40%	499	246	49%	399	256	64%	805	309	38%

Figure 42: Discipline Rate

	Q1/2 2022			Q3/4 2022			Q1/2 2023			Q3/4 2023			Q1/2 2024		
	Total	Cnt	%	Total	Cnt	%	Total	Cnt	%	Total	Cnt	%	Total	Cnt	%
Non-APU	298	140	47%	406	176	43%	452	228	50%	290	194	67%	646	242	37%
APU	15	10	67%	32	18	56%	47	29	62%	109	85	78%	159	115	72%
CCRB	313	150	48%	438	194	44%	499	257	52%	399	279	70%	805	357	44%

Due to the high number of cases returned as “No Disciplinary Action – Short SOL,” it is helpful to see what the concurrence and discipline rates would be with these cases removed from consideration.

Figure 43: Concurrence Rates Excluding “No Disciplinary Action – Short SOL”

	Q1/2 2022			Q3/4 2022			Q1/2 2023			Q3/4 2023			Q1/2 2024		
	Total	Cnt	%	Total	Cnt	%	Total	Cnt	%	Total	Cnt	%	Total	Cnt	%
Non-APU	157	128	82%	203	165	81%	270	223	83%	211	189	90%	265	236	89%
APU	15	6	40%	32	11	34%	47	23	49%	109	67	61%	159	73	46%
CCRB	172	134	78%	235	176	75%	317	246	78%	320	256	80%	424	309	73%

Figure 44: Discipline Rates Excluding “No Disciplinary Action – Short SOL”

	Q1/2 2022			Q3/4 2022			Q1/2 2023			Q3/4 2023			Q1/2 2024		
	Total	Cnt	%	Total	Cnt	%	Total	Cnt	%	Total	Cnt	%	Total	Cnt	%
Non-APU	157	140	89%	203	176	87%	270	228	84%	211	194	92%	265	242	91%
APU	15	10	67%	32	18	56%	47	29	62%	109	85	78%	159	115	72%
CCRB	172	150	87%	235	194	83%	317	257	81%	320	279	87%	424	357	84%

SECTION 5: MEDIATION

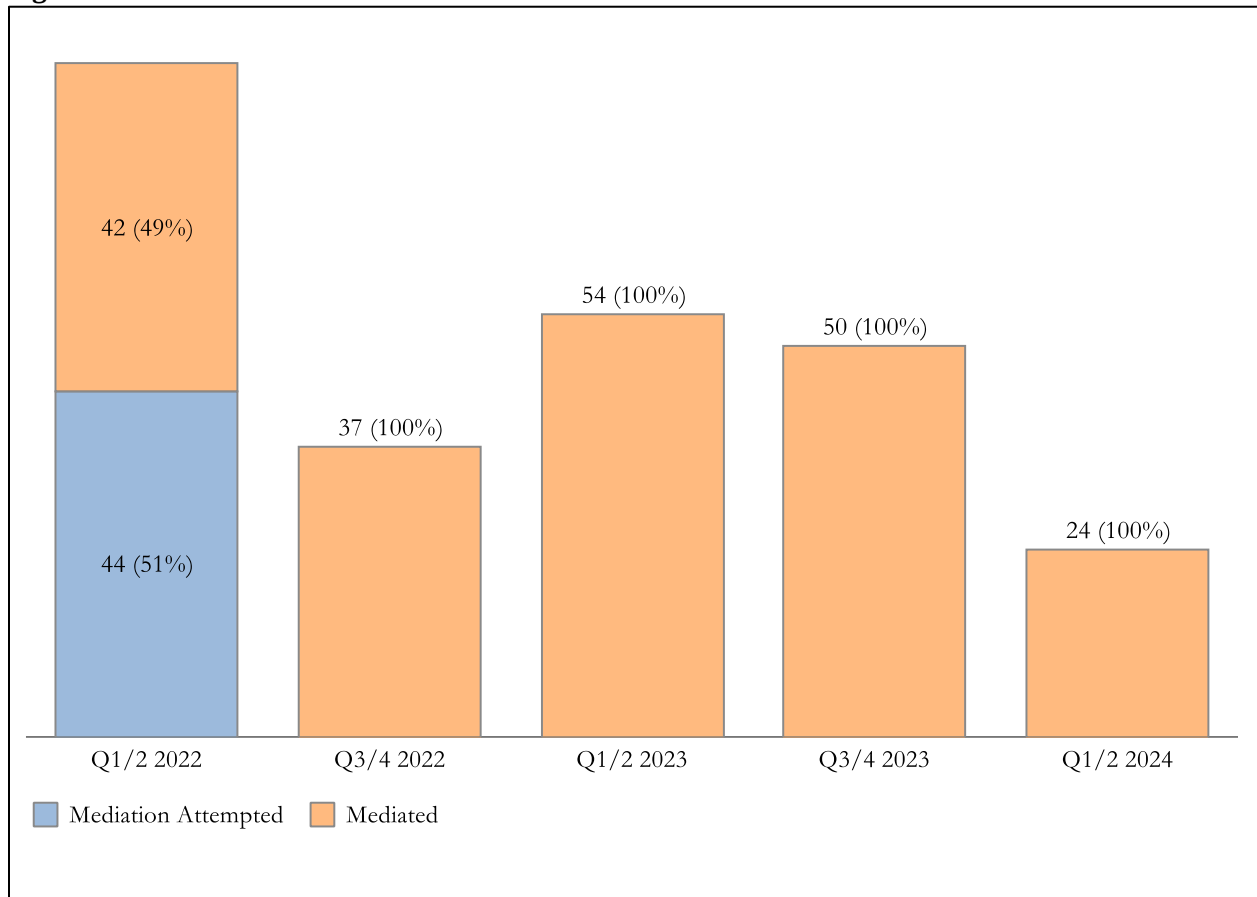
The New York City Charter mandates that the CCRB offer mediation as an option for resolving allegations of police misconduct. The goal of mediation is to allow civilians and officers the opportunity to voluntarily resolve the issues contained in the complaint by means of a face-to-face meeting with the assistance of a neutral mediator contracted by the CCRB. The mediator guides the session and facilitates a confidential dialogue between the complainant and the member of service about the circumstances leading to the complaint.

Mediation is not offered in all cases because some factors render a complaint unsuitable for the Mediation Program. These include allegations of serious physical injury or property damage, a pending criminal case or a civil lawsuit, or a concurrent Internal Affairs Bureau investigation.

Mediation is complainant-driven and voluntary; a case will only go to the Mediation Unit if the complainant wants to participate in mediation. Investigators are required to fully describe both the mediation process and the investigative process to complainants in mediation-suitable cases. After being provided with both options, the complainant chooses the process in which they want to participate. If the complainant selects mediation, the option is then presented to the officer. Mediations only take place when both the complainant and the officer voluntarily agree to mediate the complaint. Complainants reserve the right to have the case returned to the investigative process if they change their mind prior to mediation or are unsatisfied with the outcome of the mediation.

A mediation session ends when all parties involved agree that they have had an opportunity to discuss the issues in the case. In most mediated cases, the parties resolve the allegations raised in the complaint. After a completed mediation, the complaint is closed as “mediated,” meaning that there will be no further investigation and the officer will not be disciplined. If the mediation is not completed or is unsuccessful, the case returns to the Investigations Division for a full investigation.

Figure 45: Mediation Closures



“Mediation attempted” is a designation for a case in which both the officer and the civilian agree to mediate but the civilian either fails to appear twice for the scheduled mediation session without good cause or fails to respond to attempts to schedule a mediation session and the civilian does not request that the investigation resume.

Figure 46: Average Days to Successful Mediation

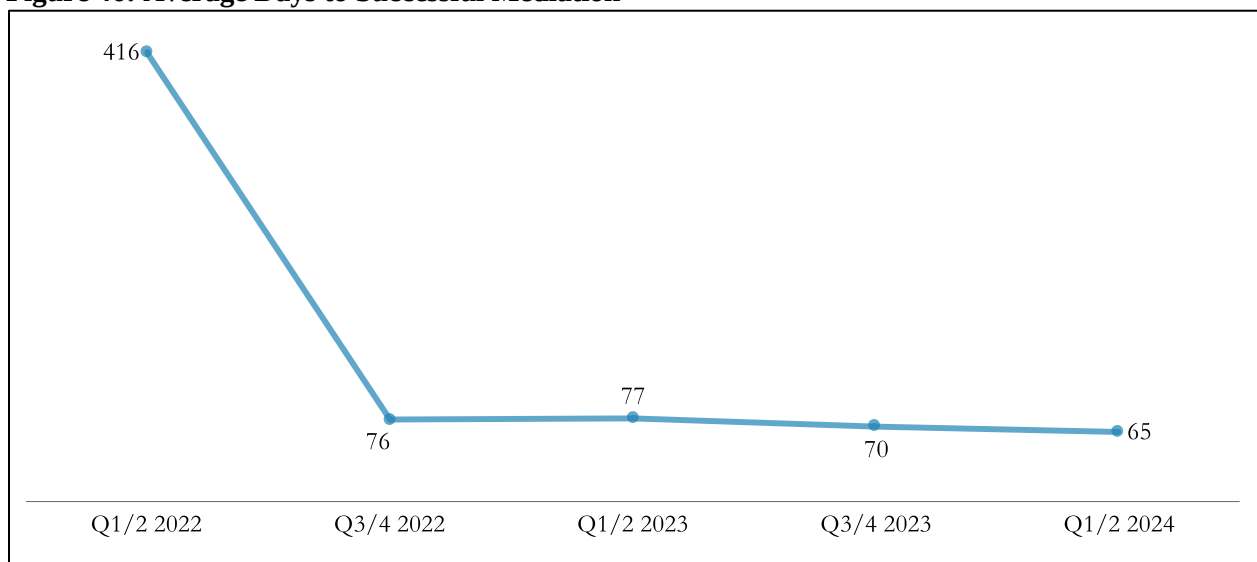


Figure 47: Percentage of Cases in which Mediation was Offered

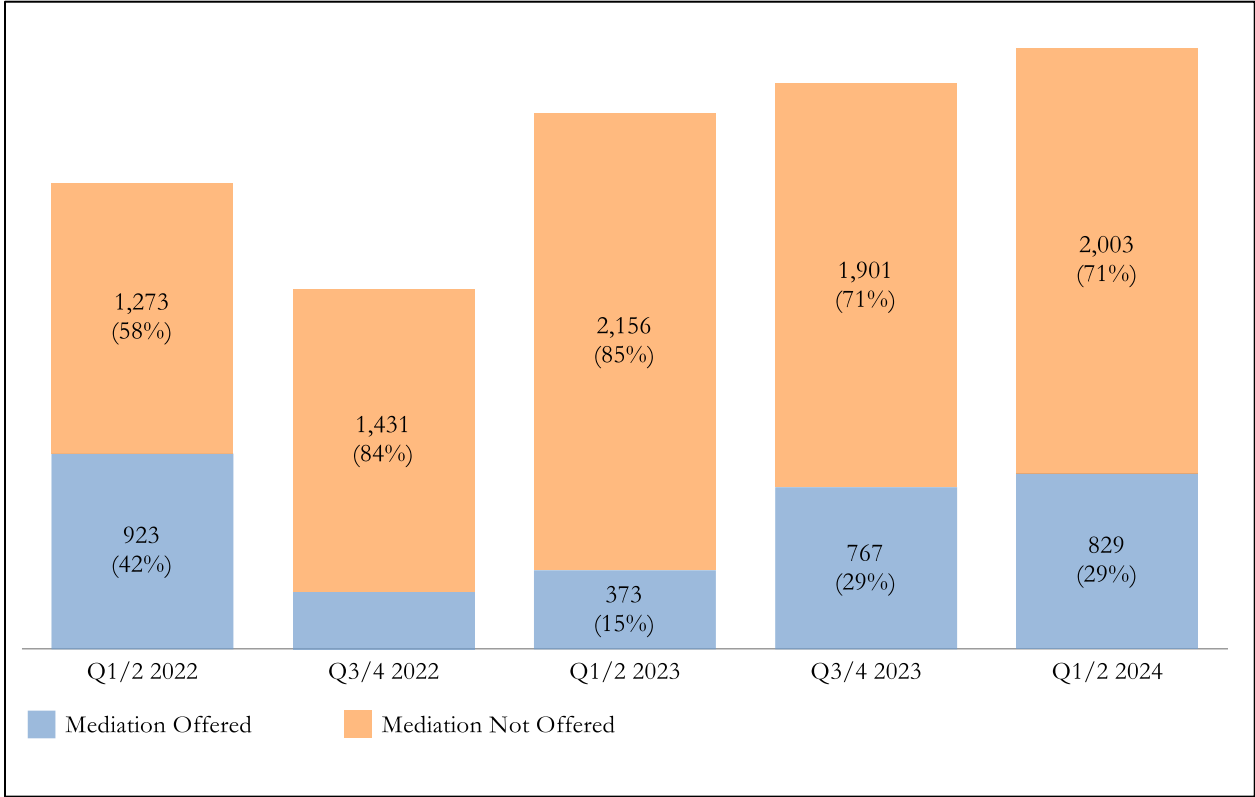


Figure 48: Number of Civilians and MOS that Accepted Mediation When Offered

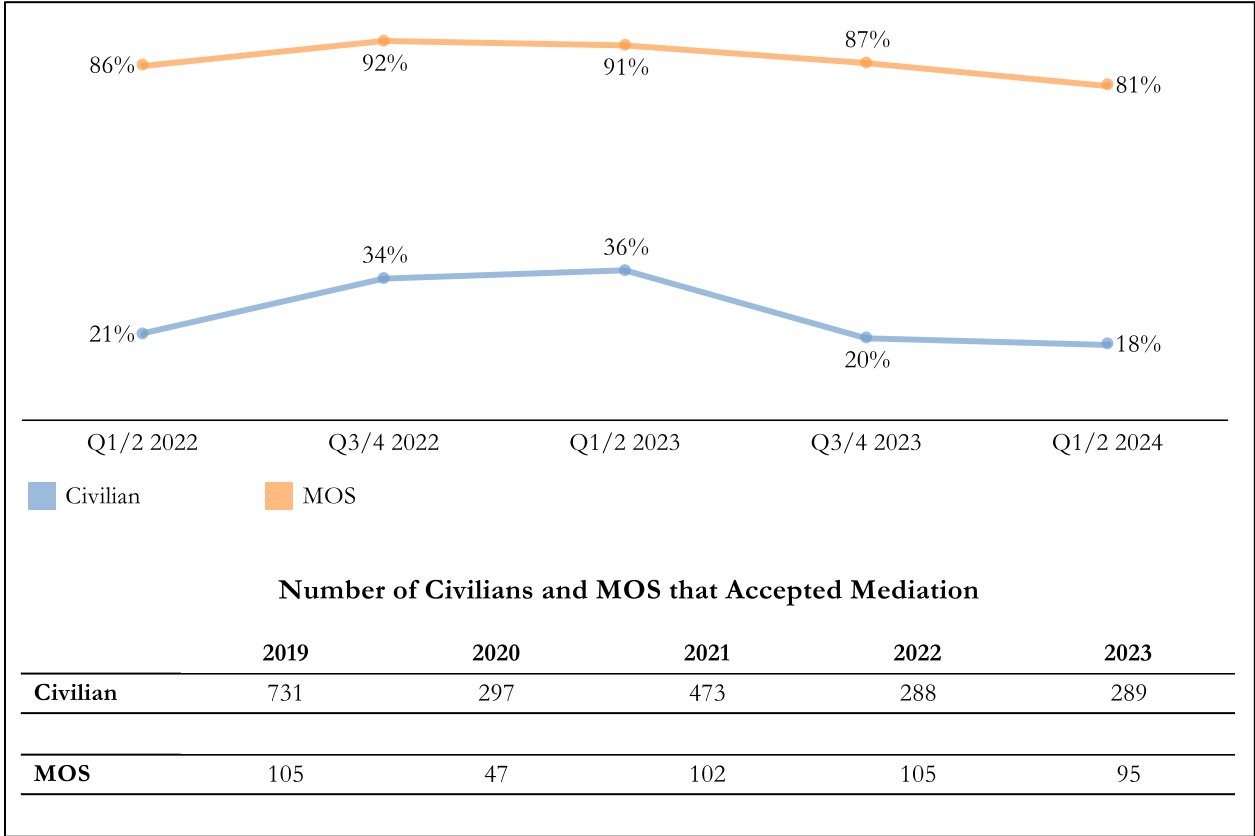
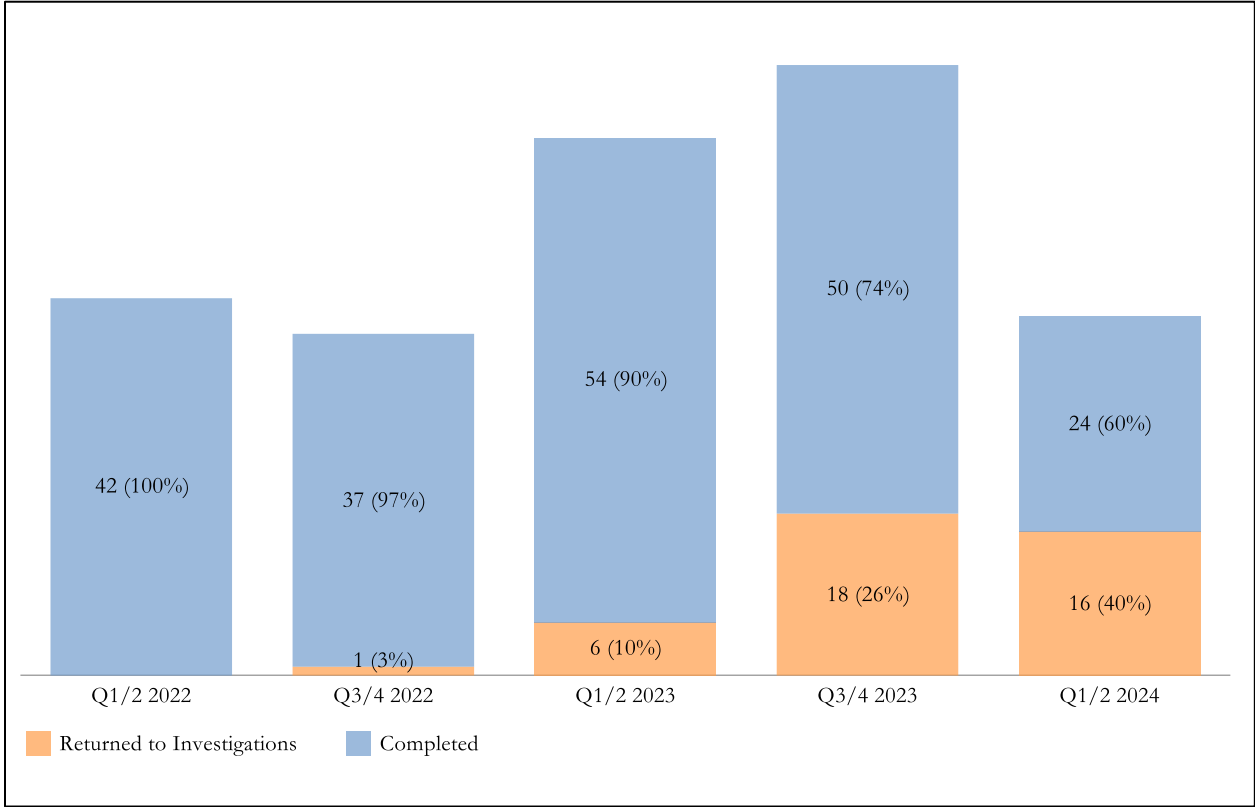


Figure 49: Mediation Completion Rate



SECTION 6: THE IMPACT OF BODY-WORN CAMERA FOOTAGE AND OTHER VIDEO EVIDENCE

In 2013, Judge Shira Scheindlin of the United States District Court for the Southern District of New York, presiding over *Floyd v. City of New York*,⁴¹ found that the NYPD violated the Fourth and Fourteenth Amendments through its use of unconstitutional stop, question, and frisk practices. The court also found that the NYPD had a “policy of indirect racial profiling” that disproportionately targeted Black and Hispanic individuals for stops. As a result, the court ordered changes to certain policies, practices, and training curricula and appointed a monitor to oversee these reforms. The court also ordered a one-year Body-Worn Camera (BWC) pilot to determine whether BWCs were effective in reducing unconstitutional stops.

From December 2014 through March 2016, the NYPD conducted a small BWC experiment utilizing 54 volunteer police officers. After reviewing the results of this experiment, the NYPD began the larger-scale court-ordered pilot on a precinct-by-precinct basis starting in April 2017. By December 31, 2018, BWCs had been deployed to 15,826 members of service (MOS) across 81 commands.

Today, the NYPD’s BWC program is the largest in the United States with over 24,000 members of the Department equipped with BWCs. In the first half of 2024, the CCRB was able to collect BWC footage in 75% of all fully investigated complaints.

The availability of BWC footage greatly reduces the likelihood that a complaint will be closed as “Unable to Determine” or “Officer Unidentified.”

⁴¹ *Floyd v. City of N.Y.*, 959 F. Supp. 2d 540 (S.D.N.Y. 2013).

Figure 50: Complaints With Video

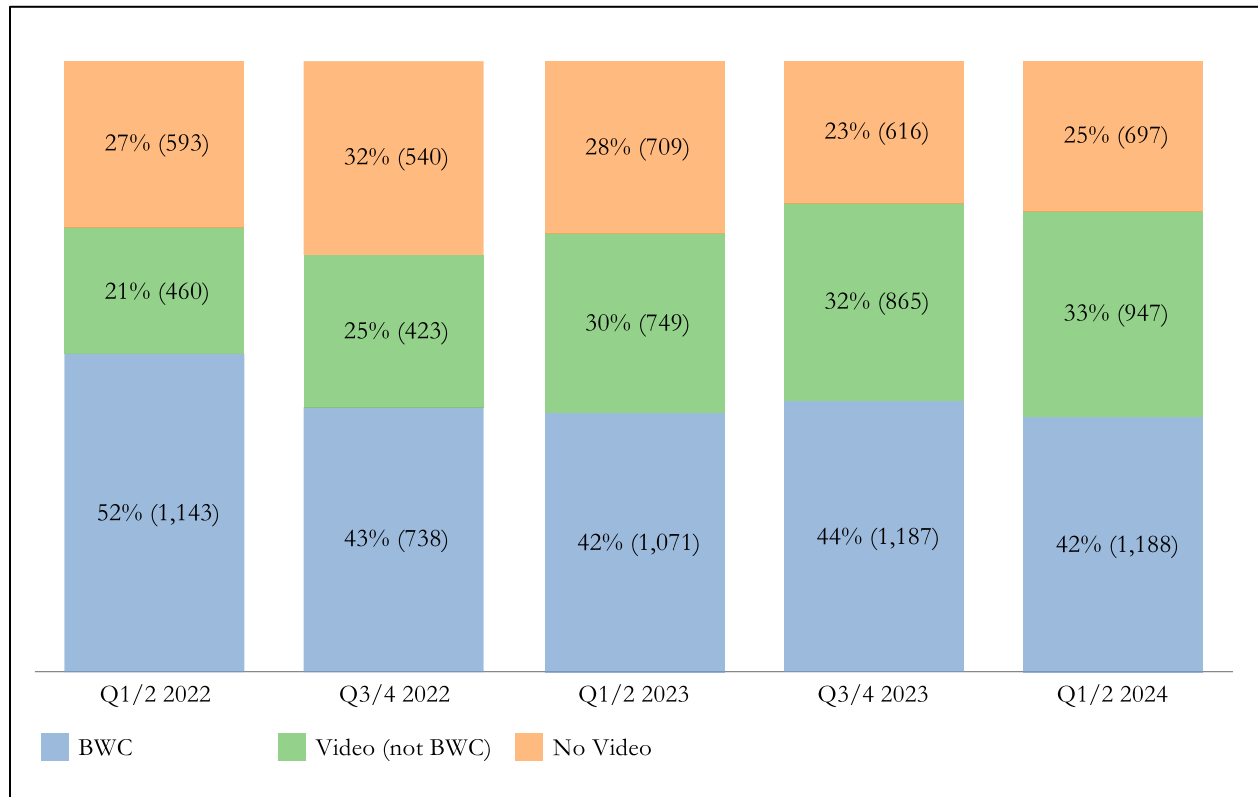
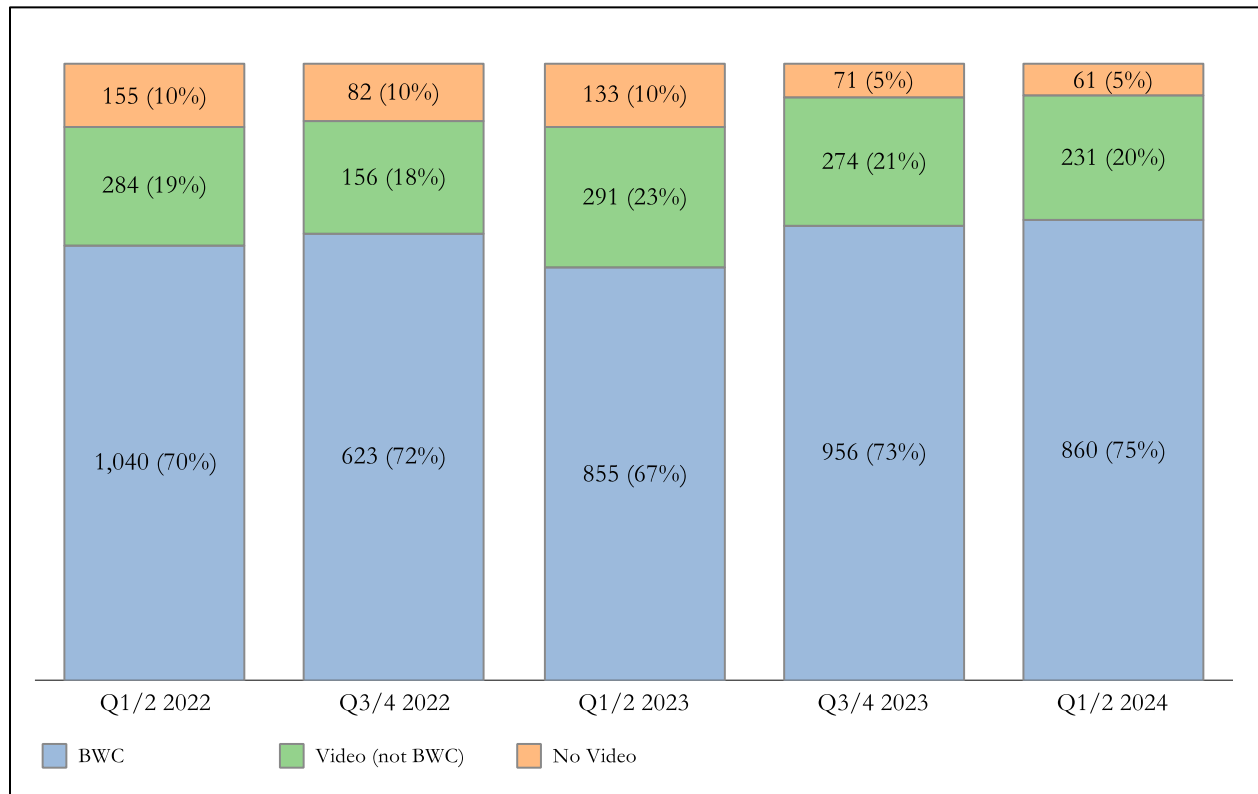


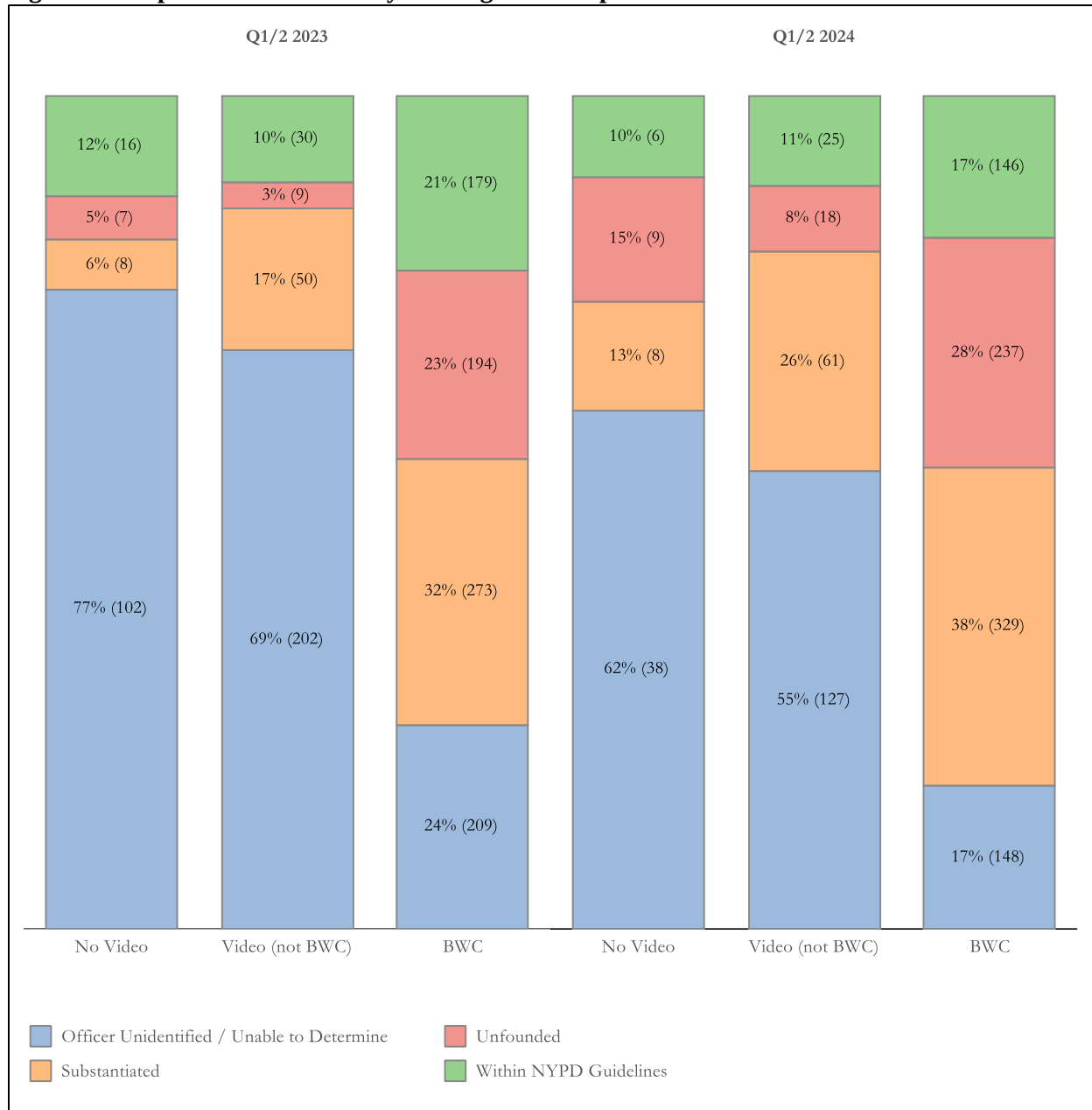
Figure 51: Full Investigations With and Without Video



THE IMPACT OF BWC AND OTHER VIDEO EVIDENCE

The availability of video evidence allows for a more robust interpretation of the circumstances surrounding a police-civilian encounter. Video evidence, especially BWC footage, can have a substantial impact on the outcome of a CCRB investigation, particularly the rate of allegations closed “on the merits” (i.e., Substantiated, Within NYPD Guidelines, or Unfounded).

Figure 52: Impact of Video on Fully Investigated Complaints Closed on the Merits



The availability of BWC evidence has a particularly significant impact on the Board’s ability to decide Discourtesy and Offensive Language allegations on the merits. In the absence of video, and any accompanying audio, the Board often has no means of resolving the conflicting testimony of officers and complainants about what was said during an encounter.

Figure 53: Impact of Video on Allegation Closures on the Merits by FADO

FADO Type	Board Disposition	Q1/2 2023						Q3/4 2023						Q1/2 2024					
		No Video		Video (not BWC)		BWC		No Video		Video (not BWC)		BWC		No Video		Video (not BWC)		BWC	
Force	Officer Unl'd / Unable to Determine	25	89%	96	70%	184	15%	5	100%	53	40%	150	12%	10	71%	68	55%	185	14%
	Substantiated	1	4%	7	5%	64	5%			5	4%	66	5%			9	7%	80	6%
	Within NYPD Guidelines			26	19%	639	51%			58	44%	692	56%	1	7%	28	23%	663	51%
	Unfounded	2	7%	8	6%	362	29%			17	13%	327	26%	3	21%	18	15%	377	29%
Abuse of Authority	Officer Unl'd / Unable to Determine	189	71%	432	64%	502	18%	68	63%	425	62%	555	18%	60	58%	398	58%	463	14%
	Substantiated	8	3%	107	16%	551	20%	5	5%	98	14%	600	20%	16	15%	146	21%	940	29%
	Within NYPD Guidelines	63	24%	119	18%	1229	45%	34	31%	138	20%	1268	42%	22	21%	107	16%	1188	36%
	Unfounded	7	3%	20	3%	458	17%	1	1%	25	4%	596	20%	6	6%	32	5%	670	21%
Discourtesy	Officer Unl'd / Unable to Determine	65	93%	129	83%	161	31%	40	87%	141	89%	135	26%	29	76%	90	66%	126	22%
	Substantiated	3	4%	15	10%	126	24%	2	4%	8	5%	151	29%	1	3%	29	21%	178	32%
	Within NYPD Guidelines	1	1%	4	3%	109	21%	4	9%	2	1%	107	20%			8	6%	113	20%
	Unfounded	1	1%	8	5%	123	24%			7	4%	134	25%	8	21%	10	7%	145	26%
Offensive Language	Officer Unl'd / Unable to Determine	19	100%	31	97%	45	46%	6	100%	33	92%	32	31%	10	83%	29	88%	33	28%
	Substantiated					20	20%					29	28%			2	6%	41	34%
	Within NYPD Guidelines					1	1%					3	3%					2	2%
	Unfounded			1	3%	32	33%			3	8%	39	38%	2	17%	2	6%	44	37%

SECTION 7: OUTREACH AND INTERGOVERNMENTAL AFFAIRS

Over the past several years, the CCRB has sought to increase the scope and scale of its Outreach Program to raise awareness of the Agency’s mission and foster the public’s trust in its investigative process. The CCRB Outreach and Intergovernmental Affairs (IGA) Unit has a director, a deputy director, and a coordinator for each borough who acts as that borough’s main liaison for the Agency.

The Outreach and IGA Unit conducts presentations at schools, public libraries, tenant associations, advocacy organizations, cultural groups, religious organizations, community boards, and precinct community councils, among other groups, in all five boroughs. These presentations provide an overview of the CCRB complaint process, explain the basic legal contours of police encounters, and stress the importance of de-escalation when interacting with the police.

Figure 54: Number of Outreach Events

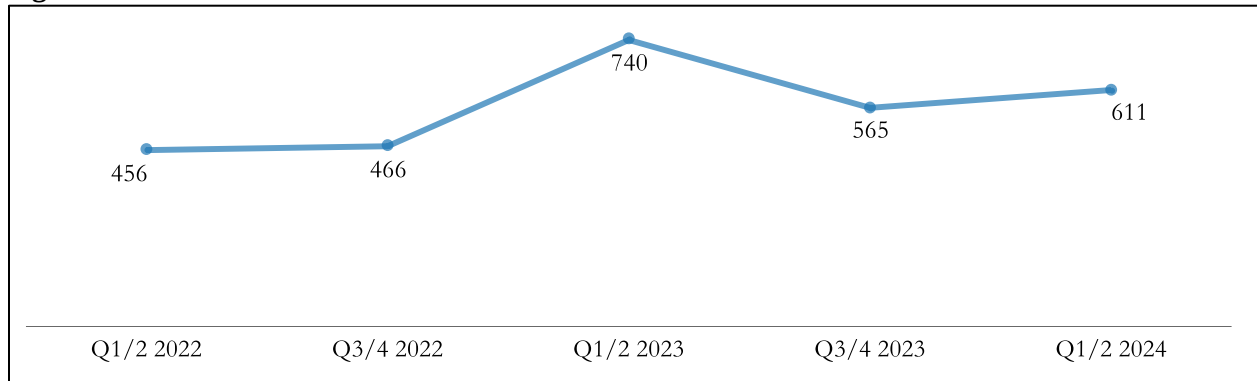


Figure 55: Outreach Events by Borough

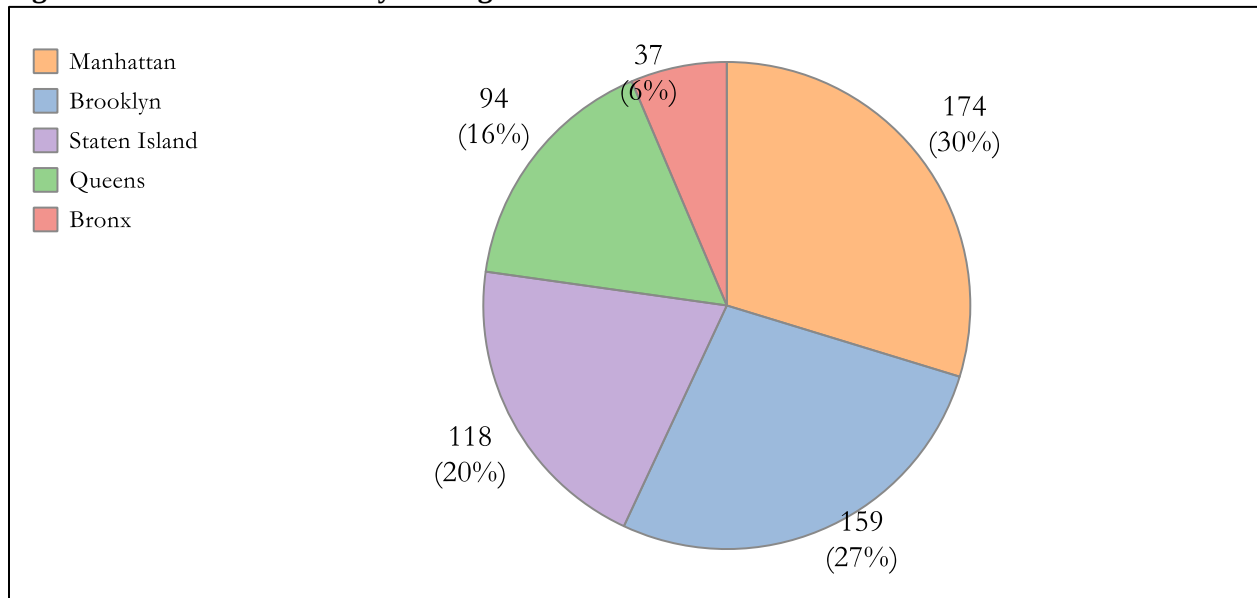
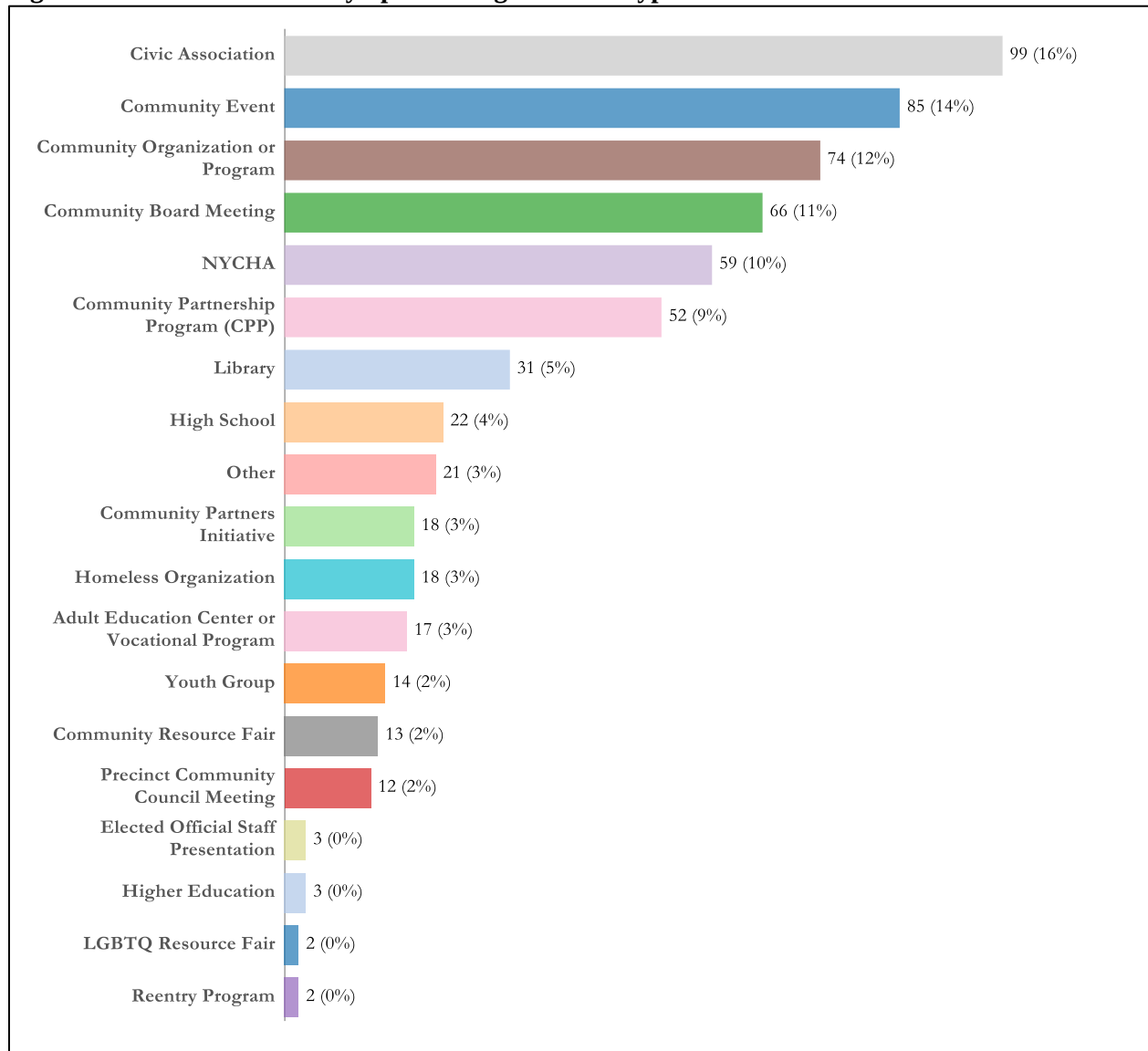


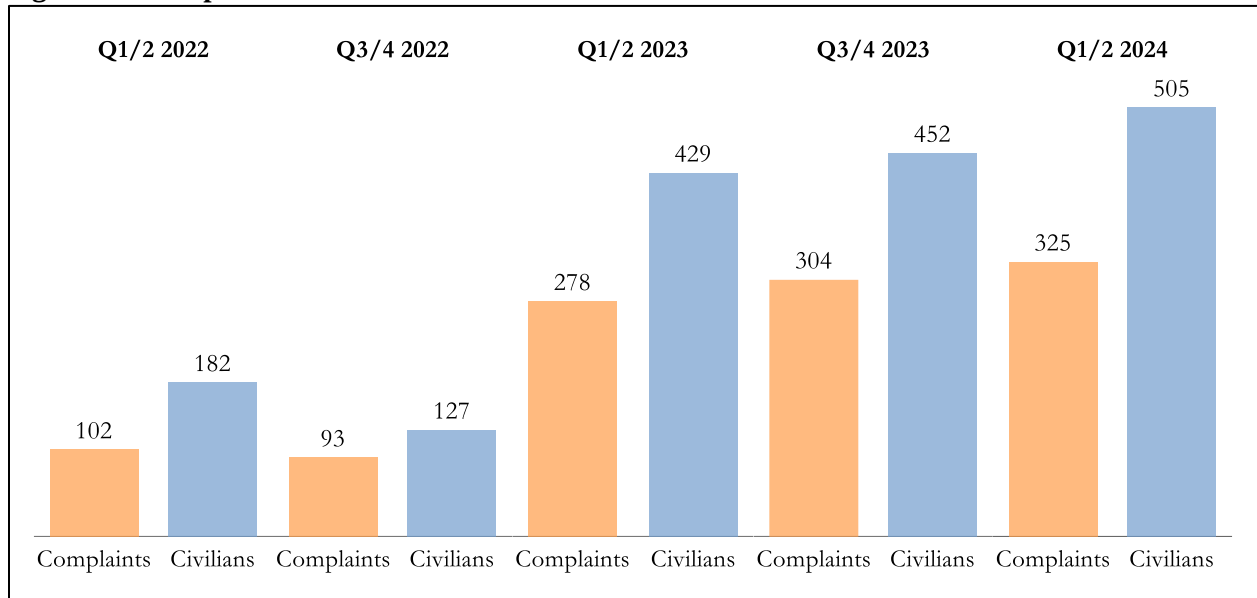
Figure 56: Outreach Events by Specific Organization Type



SECTION 8: CIVILIAN ASSISTANCE UNIT

Launched in 2021, the CCRB's Civilian Assistance Unit (CAU) provides services to civilians who require social and psychological support while navigating the Agency's investigative process.

Figure 57: Complaints Referred to CAU and Civilians Involved



In October 2022, the CCRB developed a system to categorize the types of services provided by CAU.

Figure 58: Specific Services Provided by CAU

	Q1/2 2023	Q1/2 2024
Assistance with restitution	1	
Criminal advocacy/accompaniment	1	
Crisis intervention		1
Emergency financial assistance		1
Individual advocacy	457	1,954
Individual counseling	93	247
Information about the criminal justice process	23	3
Information about victim rights	106	182
Interpreter services	2	2
Referral to other services	60	146
Referral to other victim service programs	4	7
Therapy	2	
Vocational or Housing Intervention	1	1
Total	750	2,544

The Charter of the City of New York established the CCRB and empowered it to receive and investigate complaints from members of the public concerning misconduct by members of the NYPD. The CCRB is required to conduct its investigations “fairly and independently, and in a manner in which the public and the police department have confidence.” Under the City Charter, the CCRB has jurisdiction to investigate the following categories of police misconduct: **Force**, **Abuse of Authority**, **Discourtesy**, and **Offensive Language**, and **Untruthful Statements**, collectively known as **FADO&U**. The CCRB notes **other possible misconduct** when it uncovers conduct by officers that is outside its jurisdiction but warrants the attention of the Department. Examples of other possible misconduct include failures to enter necessary information in memo books and failures to complete required documentation of an incident.

The **Board** consists of 15 members, five appointed by the City Council, five appointed by the Mayor, three designated by the Police Commissioner, and one appointed by the Public Advocate. The Chair of the Board is jointly appointed by the Mayor and City Council Speaker. Under the City Charter, the Board must reflect the diversity of the City’s residents and all members must live in New York City. No member of the Board may have a law enforcement background, except those designated by the Police Commissioner, who must have had a law enforcement vocation. No Board member may be a public employee or serve in public office. Board members serve three-year terms, which can be, and often are, renewed.

The **Executive Director** is appointed by the Board and is the Chief Executive Officer, who is responsible for managing the day-to-day operations of the Agency and overseeing its more than 200 employees. The Agency consists of a 150-member **Investigations Division** responsible for investigating allegations of police misconduct and for making investigative findings. The most serious police misconduct cases, for which the Board has substantiated misconduct and recommended discipline in the form of Charges and Specifications, are prosecuted by the **Administrative Prosecution Unit (APU)**. The APU began operating in April 2013, after the CCRB and the NYPD signed a **Memorandum of Understanding** establishing the unit. APU attorneys are responsible for prosecuting and resolving cases before an NYPD Deputy Commissioner of Trials or Assistant Deputy Commissioner of Trials at One Police Plaza.

The Agency also includes a **Mediation** program that works to resolve less serious allegations between a police officer and a civilian. A complainant may **mediate** their case with the subject officer, in lieu of an investigation, with the CCRB providing a neutral, third-party mediator.

The **Outreach and Intergovernmental Affairs Unit** acts as a liaison with various entities and is responsible for intergovernmental relations, outreach presentations, and community events throughout the five boroughs.

Members of the public who file complaints of alleged misconduct by NYPD officers are referred to as **complainants**. Other civilians involved in the incident are categorized as **victims** or **witnesses**. Officers who are alleged to have committed acts of misconduct are categorized as **subject officers**, while officers who witnessed or were present for the alleged misconduct are categorized as **witness officers**. The **Intake Unit** receives complaints from members of the public, which can be filed in-person, by telephone, voicemail, online, or referred by another agency. When a **complaint** is filed, the CCRB assigns it a unique complaint identification number. The CCRB also refers to complaints as **cases**. A single complaint or case may contain multiple FADO&U **allegations**.

Allegations regarding improper entries, searches, or failures to show a warrant fall within the CCRB’s Abuse of Authority jurisdiction. The vast majority of complaints regarding improper entries, searches, or warrant executions involve only a single incident of entry or search, but some complaints involve multiple entries or searches (occurring on the same day or on different days). Each allegation is reviewed separately during an investigation.

During an **investigation**, the CCRB’s civilian investigators gather documentary and video evidence and conduct interviews with complainants, victims, civilian witnesses, subject officers, and witness officers in order to determine whether the allegations occurred and whether they constitute misconduct. At the conclusion of the investigation, a **closing report** is prepared, summarizing the relevant evidence and providing a factual and legal analysis of the allegations. The closing report and investigative file are provided to the Board before it reaches a disposition. A panel of three Board members (**Board Panel**) reviews the material, makes findings for each allegation, and if any allegations are substantiated, makes recommendations as to the discipline that should be imposed on the subject officers.

The **Disposition** is the Board’s finding of the outcome of a case. The Board is required to use a **preponderance of the evidence** standard of proof in evaluating cases. Findings **on the merits** result when the CCRB is able to conduct a full investigation and obtain sufficient credible evidence for the Board to reach a factual and legal determination regarding the officer’s conduct. In these cases, the Board may arrive at one of the following findings on the merits for each allegation in the case: **Substantiated**, **Within NYPD Guidelines**, or **Unfounded**. Substantiated cases are those where it was proven by a preponderance of evidence that the alleged acts occurred, and the acts constituted misconduct. Within NYPD Guidelines cases are those where it was shown by a preponderance of the evidence that the alleged acts occurred, but the acts did not constitute misconduct. Unfounded cases are those where there was a preponderance of the evidence that the alleged acts did not occur. **Unable to Determine** cases are those where the CCRB was able to conduct a full investigation, but there was insufficient evidence to establish by a preponderance of the evidence whether or not an act of misconduct occurred. In some cases, the CCRB is unable to conduct a full investigation or mediation and must close the case as **Unable to Investigate**.⁴²

⁴² Fully investigated cases comprise complaints disposed of as Substantiated, Unable to Determine, Within NYPD Guidelines, Unfounded, Officers Unidentified, or Miscellaneous. Miscellaneous cases are those where an officer retires or leaves the Department before the Board receives the case for decision. Unable to Investigate cases are disposed of in one of the following ways: complainant/victim uncooperative, complainant/victim unavailable, and victim unidentified.

CHAPTER 18-A

CIVILIAN COMPLAINT REVIEW BOARD

§440 Public complaints against members of the police department.

(a) It is in the interest of the people of the city of New York and the New York city police department that the investigation of complaints concerning misconduct by officers of the department towards members of the public be complete, thorough and impartial. These inquiries must be conducted fairly and independently, and in a manner in which the public and the police department have confidence. An independent civilian complaint review board is hereby established as a body comprised solely of members of the public with the authority to investigate allegations of police misconduct as provided in this section.

(b) *Civilian complaint review board.*

1. The civilian complaint review board shall consist of 15 members of the public. Members shall be residents of the city of New York and shall reflect the diversity of the city's population. The members of the board shall be appointed as follows: (i) five members, one from each of the five boroughs, shall be appointed by the city council; (ii) one member shall be appointed by the public advocate; (iii) three members with experience as law enforcement professionals shall be designated by the police commissioner and appointed by the mayor; (iv) five members shall be appointed by the mayor; and (v) one member shall be appointed jointly by the mayor and the speaker of the council to serve as chair of the board.
2. No member of the board shall hold any other public office or employment. No members, except those designated by the police commissioner, shall have experience as law enforcement professionals, or be former employees of the New York city police department. For the purposes of this section, experience as a law enforcement professional shall include experience as a police officer, criminal investigator, special agent, or a managerial or supervisory employee who exercised substantial policy discretion on law enforcement matters, in a federal, state, or local law enforcement agency, other than experience as an attorney in a prosecutorial agency.
3. The members shall be appointed for terms of three years. The public advocate shall make the public advocate's first appointment to the board on or before May 6, 2020. The board member so appointed shall assume office on July 6, 2020. The mayor and the speaker of the council shall make their initial joint appointment to the board on or before May 6, 2020. The member so appointed shall serve as the board's chair and shall assume office on July 6, 2020.
4. Members of the board shall serve until their successors have been appointed and qualified. In the event of a vacancy on the board during the term of office of a member by reason of removal, death, resignation, or otherwise, a successor shall be chosen in the same manner as the original appointment within 60 days from the date such vacancy occurred. A member appointed to fill a vacancy shall serve for the balance of the unexpired term. During any period in which the office of the chair is vacant, the mayor shall select a member of the board to serve as interim chair until such vacancy has been filled.

(c) *Powers and duties of the board.*

1. The board shall have the power to receive, investigate, hear, make findings and recommend action upon complaints by members of the public or complaints initiated by the board against members of the police department that allege misconduct involving excessive use of force, abuse of authority including bias-based policing and racial profiling, discourtesy, or use of offensive language, including, but not limited to, slurs relating to race, ethnicity, religion, gender, sexual orientation and disability. The board shall also have the power to investigate, hear, make findings and recommend action regarding the truthfulness of any material official statement made by a member of the police department who is the subject of a complaint received or initiated by the board, if such statement was made during the course of and in relation to the board's resolution of such complaint. The findings and recommendations of the board, and the basis therefor, shall be submitted to the police

commissioner. No finding or recommendation shall be based solely upon an unsworn complaint or statement, nor shall prior unsubstantiated, unfounded or withdrawn complaints be the basis for any such finding or recommendation.

2. The board shall promulgate rules of procedure in accordance with the city administrative procedure act, including rules that prescribe the manner in which investigations are to be conducted and recommendations made and the manner by which, when a member of the public is the complainant, such member of the public is to be informed of the status of his or her complaint. Such rules may provide for the establishment of panels, which shall consist of not less than three members of the board, which shall be empowered to supervise the investigation of matters within the board's jurisdiction pursuant to this section, and to hear, make findings and recommend action on such matters. No such panel shall consist exclusively of members appointed by the council, or designated by the police commissioner, or appointed by the mayor.
3. The board, by majority vote of its members, may compel the attendance of witnesses and require the production of such records and other materials as are necessary for the investigation of matters within its jurisdiction pursuant to this chapter. The board may request the corporation counsel to institute proceedings in a court of appropriate jurisdiction to enforce the subpoena power exercised pursuant to this chapter, and the board itself may, subject to [chapter 17](#) of the charter, institute such proceedings. The board may, subject to any conditions it deems appropriate, delegate to and revoke from its executive director such subpoena authority and authority to institute proceedings.
4. The board shall establish a mediation program pursuant to which a complainant may voluntarily choose to resolve a complaint by means of informal conciliation.
5. The board is authorized, within appropriations available therefor, to appoint such employees as are necessary to exercise its powers, including but not limited to the power to initiate complaints in accordance with paragraph 1 of this subdivision, and fulfill its duties. The board shall employ civilian investigators to investigate all matters within its jurisdiction.
6. The board shall issue to the mayor and the city council a semi-annual report which shall describe its activities and summarize its actions. Such report shall include, for each investigation initiated pursuant to section [441](#), such investigation's date of initiation, current status and any date of completion or termination, a description of any investigative findings and recommendations set forth in a written statement of final determination and a description of any written reports from the police commissioner in response to a written statement of final determination.
7. The board shall have the responsibility of informing the public about the board and its duties, and shall develop and administer an on-going program for the education of the public regarding the provisions of this chapter.

(d) *Cooperation of police department.*

1. It shall be the duty of the police department to provide such assistance as the board may reasonably request, to cooperate fully with investigations by the board, and to provide to the board upon request records and other materials which are necessary for investigations undertaken pursuant to this chapter, except such records or materials that cannot be disclosed by law.
2. The police commissioner shall ensure that officers and employees of the police department appear before and respond to inquiries of the board and its civilian investigators in connection with investigations undertaken pursuant to this chapter, provided that such inquiries are conducted in accordance with department procedures for interrogation of members.
3. The police commissioner shall report to the board in writing on any action taken, including the level of discipline and any penalty imposed, in all cases in which the board submitted a finding or recommendation to the police commissioner with respect to a matter within its jurisdiction pursuant to this section. In any case substantiated by the board in which the police commissioner intends to impose or has imposed a different penalty or level of discipline than that recommended by the board or by the deputy commissioner responsible for making disciplinary recommendations, the police commissioner shall provide such written report, with notice to the subject officer, no later than 45 days after the imposition of such discipline or in such shorter time frame as may be required pursuant to an agreement between the police commissioner and the board. Such report shall include a detailed explanation of the reasons for deviating from the board's recommendation or the recommendation of

the deputy commissioner responsible for making disciplinary recommendations and, in cases in which the police commissioner intends to impose or has imposed a penalty or level of discipline that is lower than that recommended by the board or such deputy commissioner, shall also include an explanation of how the final disciplinary outcome was determined, including each factor the police commissioner considered in making his or her decision.

(e) The provisions of this section shall not be construed to limit or impair the authority of the police commissioner to discipline members of the department. Nor shall the provisions of this section be construed to limit the rights of members of the department with respect to disciplinary action, including but not limited to the right to notice and a hearing, which may be established by any provision of law or otherwise.

(f) The provisions of this section shall not be construed to prevent or hinder the investigation or prosecution of members of the department for violations of law by any court of competent jurisdiction, a grand jury, district attorney, or other authorized officer, agency or body.

(g) 1. Beginning in fiscal year 2021 and for each fiscal year thereafter, the appropriations available to pay for the personal services expenses of the civilian complaint review board during each fiscal year shall not be less than an amount sufficient to fund personal services costs for the number of full-time personnel plus part-time personnel, calculated based on full-time equivalency rates, equal to 0.65 percent of the number of uniform budgeted headcount of the police department for that fiscal year, as determined consistent with published budgeted headcount documents of the office of management and budget. The calculation to determine the minimum appropriations for the personal services expenses of the civilian complaint review board pursuant to this paragraph shall be set forth in the preliminary expense budget, the executive expense budget, and the adopted budget.

2. Notwithstanding paragraph 1 and in addition to any action that may be undertaken pursuant to section [106](#), the appropriations available to pay for the personal services expenses of the civilian complaint review board may be less than the minimum appropriations required by paragraph 1 provided that, prior to adoption of the budget pursuant to section [254](#) or prior to the adoption of a budget modification pursuant to section [107](#), the mayor determines that such reduction is fiscally necessary and that such reduction is part of a plan to decrease overall appropriations or is due to unforeseen financial circumstances, and the mayor sets forth the basis for such determinations in writing to the council and the civilian complaint review board at the time of submission or adoption, as applicable, of any budget or budget modification containing such reduction.

(Am. L.L. 2019/215, 12/11/2019, eff. 12/11/2019 and 3/31/2020; Am. L.L. 2021/047, 4/25/2021, eff. 1/20/2022; Am. L.L. 2022/024, 1/9/2022, eff. 1/20/2022)

§ 441. Investigating past professional conduct by members of the police department.

a. Definitions. As used in this section, the following terms have the following meanings:

Act of bias. The term “act of bias” means an act stemming from a specific incident:

- (i) that is motivated by or based on animus against any person on the basis of race, ethnicity, religion, gender, sexual orientation or disability, and
- (ii) that the board is empowered to investigate pursuant to paragraph 1 of subdivision c of section 440.

Board. The term “board” means the civilian complaint review board.

Covered entity. The term “covered entity” means the police department, the board, the commission on human rights, the department of investigation, a court of competent jurisdiction or any other officer or body designated by the board.

- b. 1. The board: (i) shall conduct an investigation of past conduct in the course of performance of official duties by a current or former member of the police department whom a covered entity has found, in a final determination reached after such member was afforded an opportunity to respond to the relevant allegations, to have engaged in a severe act of bias, regardless of whether such member was on or off duty when engaging in such act, if the date that such investigation commences would be less than five years after such final determination was made; and (ii) may conduct an investigation of past conduct in the course of performance of official duties by a current or former member of the police department whom a covered entity has found, in a final determination reached after such member was afforded an opportunity to respond to the relevant allegations, to have engaged in an act of bias other than a severe act of bias, regardless of whether such member was on or off duty when engaging in such act, if the date that such investigation commences would be less than five years after such final determination was made.
2. For the purposes of initiating such investigations, the board shall define what constitutes a severe act of bias and, in consultation with each covered entity, what constitutes a covered entity’s final determination that such a member engaged in an act of bias or severe act of bias, provided that off-duty conduct may be the basis for initiating such investigation only if (i) such conduct could have resulted in removal or discipline by the police department, (ii) the board reasonably believes such conduct has had or could have had a disruptive effect on the mission of the police department, and (iii) the police department’s interest in preventing actual or potential disruption outweighs the member’s speech interest.
3. Within 10 days after making or changing a definition made pursuant to paragraph 2 of this subdivision, the board shall communicate such definition or change to each covered entity and shall make such definition or change publicly available online.
4. If a covered entity that is an agency makes a final determination that such a member engaged in an act of bias or a severe act of bias, such covered entity shall promptly provide notice to the board in a time, form and manner designated by the board in consultation with such covered entity.
5. Within 120 days after the effective date of sections one through four of the local law that added this section, each covered entity that is an agency shall, to the extent practicable, provide the board with a written list of such members whom such covered entity has finally determined to have engaged in an act of bias or severe act of bias before such effective date and on or after January 1, 2016; provided that such list shall be provided in a form and manner, and shall include such additional information, as the board may require in consultation with such covered entity.
6. At least once every 4 months after the effective date of sections one through four of the local law that added this section, the board shall request from each covered entity that is not an agency, except a court with jurisdiction within the state of New York, information about final determinations made by such entity that such a member engaged in an act of bias or severe act of bias, including final determinations made on or after January 1, 2016.
7. The board shall consult with the law department to obtain information about final determinations by a covered entity that is a court with jurisdiction within the state of New York that such a member has engaged in an act of bias or severe act of bias, including final determinations made on or after January 1, 2016.

- c. The board shall determine the scope of past conduct in the course of performance of official duties by such member to investigate based on the member's professional rank and assigned roles and the nature of the member's act of bias. The board shall investigate all or a representative sampling of such member's past conduct within such scope beginning from the date of hire by the police department until and including, for a former member of the police department, the last day of employment by the police department, or, for a current member of the police department, the date of initiation of an investigation pursuant to this section.
- d. 1. Within 10 days after the board initiates such investigation, the board shall provide written notice to the member being investigated and to the relevant covered entity.
2. Within 10 days after the completion of such investigation, the board shall provide a written statement of final determination to the member being investigated. Such statement shall include (i) the investigation's details, when it was initiated and concluded, the identity of its subject and a summary of the materials reviewed by the board during the investigation; (ii) the board's investigative findings, including the identification of any threat to the safety of an individual or the public and whether the board found evidence of any additional past acts of bias committed in the course of performance of official duties; (iii) if applicable, any recommendations of the board for remedial action, including training, discipline, where consistent with section 75 of the civil service law, or both; and (iv) if applicable, a statement that the board has determined to terminate the investigation and an explanation why.
3. The board shall provide an opportunity for the member being investigated to answer in writing, within a time period established by rule, any findings or recommendations made by the board. If such member timely submits such an answer, the board shall consider it and determine whether to revise any such findings or recommendations in response.
4. Within 10 days after finalizing the written statement of final determination pursuant to paragraphs 2 and 3 of this subdivision, the board shall submit such written statement to the police commissioner, any other parties to whom notice was sent pursuant to paragraph 1 of this subdivision and any other appropriate agency or official as determined by the board. Within 120 days after receiving such written statement, the police commissioner shall report to the board in writing on any action taken or planned to be taken in response, including the level of discipline and any penalty imposed or to be imposed upon such member, as well as any other remedial action. If such action taken or planned to be taken differs from that recommended by the board, the police commissioner shall provide in such written report a detailed explanation for deviating from the board's recommendations and an explanation of how the final disciplinary or remedial decision was determined, including each factor the police commissioner considered in making such decision. If the police commissioner takes action in response to such written statement of final determination after such 120-day period, the police commissioner shall provide an updated version of such written report to the board within 30 days after taking such action.
- e. 1. The board may, subject to any conditions it deems appropriate, delegate to and revoke from its chair or executive director any responsibility or authority assigned by this section to the board.
2. The board may, subject to any conditions it deems appropriate, designate a third party to assist with any investigation conducted under this section. Any such third party shall keep confidential and is prohibited from disclosing except to the board any information it obtains in the course of such investigation, except as otherwise required by law.
- f. The board shall, in accordance with subdivisions b, c and d of this section, promulgate rules that further prescribe the manner in which the board is to conduct investigations, present findings, make recommendations, provide notice and provide an opportunity for the member being investigated to be heard.

g. This section shall not be construed to limit or impair the police commissioner's authority to discipline members of the police department at any time. Nor shall this section be construed to limit the rights of members of the department with respect to disciplinary action, including but not limited to the right to notice and a hearing, which may be established by any provision of law or otherwise.

h. This section shall not be construed to prevent or hinder any investigation or prosecution undertaken by any covered entity.

(L.L. 2021/047, 4/25/2021, eff. 1/20/2022)

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The data in this report is as of 07/30/2024.

BOARD MEMBERS

INTERIM CHAIR OF THE BOARD: MAYORAL APPOINTEE

Arva Rice

Arva Rice has more than 15 years of experience in the non-profit arena, ranging from working with New York City entrepreneurs in a micro lending program to working with young people as a counselor, mentor and tutor. She has extensive experience in collaboration building, strategic planning, fundraising and marketing. Arva is President & CEO of the New York Urban League (NYUL) an organization that has a rich history and long legacy of service to New Yorkers. Today, the mission of the NYUL is to enable African Americans and other underserved communities to secure a first-class education, economic self-reliance, and equal respect of their civil rights through programs, services and advocacy.

Prior to joining the League, she served as the Executive Director of Project Enterprise, an organization that provides business loans, technical assistance and peer support to New York City entrepreneurs who lack adequate access to business financing.

Arva is a member of the Women's Forum and Greater New York Chapter of The Links Incorporated. She is also on the Board of Trustees of First Corinthians Baptist Church. In the past she has served on the Board of Directors of the Central Brooklyn Partnership (CBP), a non-profit dedicated to financial literacy and education in Bedford-Stuyvesant. Arva was appointed to the board by Mayor Bill de Blasio and appointed as Interim Chair by Mayor Adams.

B.A. Northwestern University

MAYORAL APPOINTEES

Kevin Jemmott

Kevin Jemmott is a lifelong New Yorker and Queens resident with extensive experience in communications, technology, and civic engagement. Mr. Jemmott has been part of the Cambria Heights Civic Association for decades where he served both as Vice President and President. While leading the Association, he advocated for, and achieved investment in many community initiatives, namely education and zoning changes. Mr. Jemmott believed investment in the local Cambria Heights economy to be a priority, as well as the regulation of overdevelopment and building of illegal residences. Under his oversight, the Cambria Heights Civic Association furnished numerous college scholarships for local students and negotiated improvements in local schools. Mr. Jemmott also utilized his expertise from his career in technology to better the community when he designed TownsUnited.org, a website that, for years, connected the numerous civic and community groups in Eastern Queens.

Mr. Jemmott received a bachelor's degree from SUNY and a master's degree from Polytechnic University

June Northern

June Northern is a born and raised New Yorker based in Brooklyn. After her education and career brought her to Texas, she returned to New York in 2015 to work for Evolution Medical Communications. June has decades of experience in the healthcare and hospitality sectors: "I am honored to have been selected to serve on this prestigious board and have the opportunity to give back to my city. I look forward to working alongside my fellow board members to make New York City safer and fairer for everyone."

Ms. Northern received an Associate Degree from Austin Community College

John Siegal, Esq.

John Siegal is a partner in BakerHostetler, a national business law firm, where he handles litigation, arbitrations, and appeals for clients in the financial services, media, and real estate industries. Mr. Siegal's practice also includes constitutional law, civil rights, Article 78, and other cases both for and against government agencies and authorities. Mr. Siegal's public service experience includes working as an Assistant to Mayor David N. Dinkins and as a Capitol Hill staff aide to Senator (then Congressman) Charles E. Schumer. Throughout his legal career, Mr. Siegal has been active in New York civic, community, and political affairs. Mr. Siegal was appointed to the Board by Mayor Bill de Blasio.

J.D., New York University School of Law; B.A., Columbia College

Pat Smith

Patrick Smith joins the board with decades of experience across journalism, communications, public policy and New York City politics. Mr. Smith began his career in journalism at the Bucks County Courier Times and the Philadelphia Daily News before dedicating 12 years to the New York Post. At the New York Post, Smith served as Night City Editor, City Hall reporter, special assignment reporter and Brooklyn editor. From there, he went on to serve as the Public Affairs Director to then Brooklyn Borough President Howard Golden. In 1992, he advised Bill Clinton's Presidential campaign on how best to message and campaign throughout Brooklyn. Mr. Smith then spent nearly 30 years at Rubenstein where he rose to Managing Director. While at Rubenstein, he led many public policy driven initiatives for their clients including founding the Quinnipiac University Poll and growing the NYC Veterans Day Parade to the largest in the nation. Mr. Smith retired in 2020 but remains a very active member of his community, namely as the President of the Battery Park City Homeowners Coalition and as a father and grandfather.

CITY COUNCIL APPOINTEES

Joseph A. Puma

Joseph Puma's career in public and community service has been exemplified by the various positions he has held in civil rights law, community-based organizations, and local government. As a paralegal with the NAACP Legal Defense and Education Fund, Puma handled cases involving criminal justice, voting rights, employment discrimination, and school desegregation. Prior to joining the NAACP LDF, he worked for over six years at the NYC Office of Management and Budget, where he served in roles in intergovernmental affairs, policy, and budget.

From 2003 to 2004, Puma served as a community liaison for former NYC Council Member Margarita López. Since 2007, he has been involved with Good Old Lower East Side (GOLES), a community organization helping residents with issues of housing, land use, employment, post-Sandy recovery and long-term planning, and environmental and public health. A lifelong City public housing resident, Puma currently serves as GOLES's Board President and has participated in national public housing preservation efforts. Mr. Puma was appointed to the Board by the Manhattan City Council.

M.A., Union Theological Seminary; Certificate, Legal Studies, Hunter College, City University of New York; B.A., Yale University

AU Hogan

AU Hogan is the Queens City Council Appointee. Mr. Hogan was born and raised in Queens and has spent over thirty years serving and investing in his local community. Between getting his BA at York College and his masters at Queens College, Mr. Hogan began his career working for NYC Parks and Recreation before pivoting to education. For the last ten years, Mr. Hogan has worked at Life Camp, a non-profit dedicated to providing youth and families that have been impacted by violence with the tools they need to stay in school and out of the criminal justice system. Mr. Hogan served as Assistant Executive Director and Chief Team Leader before taking on his current role as Chief of Streets. Through his work at Life Camp, Mr. Hogan has created a burgeoning community police partnership with the goal of improving public safety.

M.A., Queens College, B.A., York College

Herman Merritt

Herman Merritt is a lifelong New Yorker who has served the city throughout his career. Mr. Merritt worked for the Department of Education (DOE) for 36 years, first as a teacher, then an assistant principal and finally as an elementary school principal for 18 years. After leaving the DOE, Mr. Merritt joined the Council of School Supervisors and Administrators as their Political Director, where he is currently the Assistant Political Director.

Born and raised in Brooklyn, Mr. Merritt attended New York University on a Martin Luther King scholarship and has long considered himself an activist. He joined the DOE right after graduating, aspiring to reform the New York public education system. He is deeply proud of what he accomplished while working for the city and hopes to continue his activism by bringing a fair, impartial perspective to the board. He is excited to give his community a voice and help the CCRB gain awareness. Mr. Merritt was appointed to the board by the Brooklyn City Council.

Professional Diploma, City College of New York; M.A., New York University; B.A., New York University

Esmerelda Simmons, Esq.

Esmeralda Simmons is an accomplished lawyer and public servant who has spent decades fighting for human and civil rights on the federal, state, and municipal levels. Ms. Simmons founded the Center for Law and Social Justice at Medgar Evers College, a community-based racial justice advocacy center that focuses on legal work and research on civil rights and domestic human rights violations. Recently retired, she advocated for equity in public education, voting, policing, and the child welfare system as the Center's executive director for 34 years. Through the Center, Simmons provided community organizations with legal counsel and research assistance.

Before founding and directing the Center for Law and Social Justice, Ms. Simmons served as First Deputy Commissioner at the New York State Division of Human Rights, where she developed and led the implementation of policy in support of New Yorkers' human and civil rights, and as an Assistant Attorney General for the State of New York. In addition, she has served on several major public boards in New York City government, including the NYC Board of Education and the NYC Districting Commission.

Ms. Simmons also volunteers her skills and currently serves on the board of directors of UPROSE, a climate justice organization; the Council of Elders for African Cultural Heritage; and Little Sun People, an African-centered early childhood education center. In the recent past, she has served on several boards of national organizations: the Applied Research Center (now "Race Forward"); Vallecitos Mountain Retreat Center; the Child Welfare Fund; and the Poverty and Race Research Action Council (PRRAC).

Ms. Simmons has served as counsel or co-counsel on numerous major federal Voting Rights Act cases and election law cases and has secured victories before the United States Supreme Court. She is a member of the Metropolitan Black Bar and American Bar associations, Ile Ase, Inc., and the New York Voting Rights Consortium. Ms. Simmons was appointed to the Board by the Public Advocate.

J.D., Brooklyn Law School; B.A., Hunter College, City University of New York

Charlane Brown, Esq.

Charlane Brown is a lifelong New Yorker, born and raised in Queens. Following in her father's footsteps, she joined the NYPD in 1986 and served the people of New York for 26 years. While serving as a police officer, Ms. Brown obtained a law degree from New York Law School and rose up the ranks in the police department, eventually becoming one of the NYPD's first African American woman to serve as a Captain and Deputy Inspector. She was awarded a Fulbright Fellowship in police studies and, among other things, is an expert in internal investigations, police community relations, training, bias based policing and equal employment opportunity laws. Since retiring from the NYPD, Ms. Brown has continued to practice law and is a professor of criminal justice and law enforcement at Berkeley College. Ms. Brown has also contributed to numerous publications about counterterrorism and policing. She is a member of the NYC Bar Association, the NYS Bar Association, Linc Inc., and Alpha Kappa Alpha Inc.

Upon appointment to the Civilian Complaint Review Board, Ms. Brown said: "Joining the Civilian Complaint Review Board is the perfect opportunity for me to utilize all the skills I have acquired throughout my life, as an officer, a lawyer, a professor, a New Yorker and someone who has raised young boys of color in this great city. I want to thank Commissioner Sewell and Mayor Adams for once again giving me the opportunity to serve the people of New York."

Ms. Brown received a bachelor's degree from the City University of New York and a law degree from New York Law School.

Frank Dwyer

Frank Dwyer, a Brooklyn native and current Queens resident, consults with and teaches at police departments and educational institutions throughout the United States. In 1983, he joined the NYPD and served in Queens, Brooklyn, and Manhattan in a variety of assignments, including as a Police Academy Law Instructor, the Commanding Officer of the 7th precinct on the lower eastside of Manhattan, and the Commanding Officer of the Office of the Deputy Commissioner for Operations. He worked in lower Manhattan on 9/11 and in the months that followed. Retiring in 2012 at the rank of Deputy Inspector, Dwyer is currently pursuing a doctorate in Criminal Justice. He has consulted for several police departments including Newark, New Jersey, and Wilmington. He has also taught at or consulted to the following educational institutions: John Jay College of Criminal Justice, Teachers College, Boston College, Morgan State University, and the University of San Diego. Mr. Dwyer is a Police Commissioner designee to the Board appointed by Mayor Bill de Blasio.

M.S.W., Hunter College, City University of New York; M.St., Cambridge University; M.P.A., Harvard University; M.A., Fordham University; B.A., Cathedral College

Joseph Fox

Mr. Fox joined the NYPD in 1981, serving 37 years, rising to a three-star Chief. Mr. Fox spent the last seven years of his career in the NYPD as Chief of the Transit Bureau and invested much of his time in personal and professional development of executives and younger officers, as well as strengthening police community relationships throughout the city. Since retiring from the department, Joe currently serves on several boards and travels the country as an executive coach, life coach, leadership trainer, and public speaker.

Mr. Fox received a bachelor's degree from John Jay College and is a graduate of the Police Management Institute at Columbia University.

EXECUTIVE AND SENIOR STAFF

EXECUTIVE STAFF

Executive Director: Jonathan Darche, Esq.

General Counsel: Matt Kadushin, Esq.

Deputy Executive Director of Administration: Jeanine Marie

Chief of Investigations: Mercer (“Monte”) Givhan, Esq.

Senior Advisor to the Executive Director & Director of Intergovernmental Affairs: Yojaira Alvarez

SENIOR STAFF

Chief Prosecutor: Andre Applewhite, Esq.

Deputy Chief Prosecutor: Brian Arthur, Esq.

Deputy Chief Prosecutor: Claudia Avin, Esq.

Director of Human Resources: Jennelle Brooks

Deputy Chief of Special Operations: Lily Carayannis

Director of Racial Profiling and Bias Policing Unit: Darius Charney, Esq.

Director of Budget and Operations: Winnie Chen

Deputy Chief of Investigations: Heather Cook, Esq.

Director of NYPD Relations: Christopher DeNitto

Director of Information Technology: Carl Esposito

Director of Investigative Training: Jennifer Jarett

Director of Analytics & Application Development / Acting Director of Policy: Lincoln MacVeagh

Director of Case Management: Eshwarie Mahadeo

Deputy Chief of Investigations: Suzanne O’Hare, Esq.

Communications Advisor: Clare Platt

Director of Outreach: Jahi Rose

Director of Civilian Witness Assistant Unit: Baiana Turat, LCSW, CCM